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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

June 30, 2026

WEBVTT

1
00:00:35.950 --> 00:00:37.760
Boardroom: Oh, that's so…

2
00:01:10.190 --> 00:01:15.730
Boardroom: Councilmember Taplin, can you, see us and hear us?

3
00:01:24.600 --> 00:01:34.319
Boardroom: Councilmember Taplin, can you, can you do a audio and video test with us?

4
00:02:11.490 --> 00:02:22.590
Boardroom: Sorry.

5
00:02:23.360 --> 00:02:29.740
Boardroom: Okay, hello everyone, good evening!

6
00:02:31.020 --> 00:02:33.970
Boardroom: I'm calling to order the Berkeley City Council meeting.

7
00:02:34.500 --> 00:02:37.829
Boardroom: Today is Tuesday, June 30th.

8
00:02:39.030 --> 00:02:43.150
Boardroom: June 30th, 2026. It is 6.05 p.m.

9
00:02:43.430 --> 00:02:45.180
Boardroom: Can we please start off with a roll?

10
00:02:45.320 --> 00:02:50.429
Boardroom: Okay, Councilmember Kesarwani is currently absent.

11
00:02:50.850 --> 00:02:52.360
Boardroom: Councilmember Taplin?

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12
00:02:53.480 --> 00:02:56.400
Boardroom: Present, Bartlett is absent.

13
00:02:56.770 --> 00:02:59.289
Boardroom: Vice Mayor Treghum? Present.

14
00:02:59.610 --> 00:03:01.480
Boardroom: Councilmember O'Keefe? Here.

15
00:03:01.520 --> 00:03:07.060
Boardroom: Blackaby? Here. Lunapara? Here. Humbert? Present. And Mayor Ishii? Here.

16
00:03:07.080 --> 00:03:21.530
Boardroom: Okay, quorum is present. Alright, for our ceremonial matters this evening, I want to start us off with our adjournment in memory. And tonight, I want to recognize and honor the life of Flora Russ, long-time educator, leader, and mentor.

17
00:03:21.820 --> 00:03:24.180
Boardroom: Her family is with us this evening.

18
00:03:24.480 --> 00:03:36.909
Boardroom: Flora served our Berkeley community for 50 years. Since coming to work for Berkeley Unified in 1968, she taught thousands of students in subjects of math, science, and computer arts.

19
00:03:36.930 --> 00:03:56.500
Boardroom: During her tenure, she taught at King Middle School and Berkeley High. She made it her mission not only to teach her students, but to mentor and support the many new teachers she worked with over the years, fostering a strong sense of belonging amongst the BUSD community. Her philosophy was, everyone graduates.

20
00:03:56.500 --> 00:04:03.900
Boardroom: Students know Ms. Russ as a person who would go to the ends of the earth to support each child in reaching their potential.

21
00:04:04.470 --> 00:04:14.709
Boardroom: Floor founded the Computer Academy, the first California Partnership Academy at Berkeley High School, which later became Community Partnerships Academy, and is now known as AMPS.

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22
00:04:14.710 --> 00:04:31.770
Boardroom: Academy of Medicine and Public Service in 1991. She led and taught in the small school program for many years, and touched the lives of multitudes of students who went on to access higher education, only to return to give back by entering community service professions.

23
00:04:32.150 --> 00:04:43.279
Boardroom: She also was a workability coordinator at Berkeley High, where she worked with students with disabilities to find shadowing, internships, and paid employment opportunities while in high school.

24
00:04:43.280 --> 00:04:59.829
Boardroom: She tracked the transition plans of current and former special education students throughout their four years of high school and beyond, managing the Transition Partnership Program grant in collaboration with the U.S. Department of Vocational Rehabilitation. She leaves behind a legacy.

25
00:05:00.070 --> 00:05:16.160
Boardroom: Her students are now community organizers, teachers, professors, detectives, artists, firefighters, legislators, medical professionals, and so much more. They share the value of stewardship and strive to repair the world because of Flora's influence.

26
00:05:16.470 --> 00:05:29.780
Boardroom: Flora is survived by her five nieces and nephews, and by her late partner's two children, Stacey Wagner, who was like a daughter to her, and John Grisby, Stacy's two sons, Jordan and Jaron, and five beautiful great-granddaughters.

27
00:05:29.800 --> 00:05:42.069
Boardroom: Flora's Celebration of Life will be on August 9th at 1pm at Berkeley High School Donahue Gym. And tonight, we are joined by Stacey Wagner, representing the family and also family members who are here this evening.

28
00:05:42.180 --> 00:05:47.809
Boardroom: Thank you so much for joining us this evening. We're adjourning tonight in Forrest's honor. Thank you for being here.

29
00:05:56.870 --> 00:06:02.630
Boardroom: Tonight, we are also honoring Berkeley Lab Director Mike Witherrell on his retirement.

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30
00:06:03.070 --> 00:06:13.430
Boardroom: And I will have Councilmember Blackaby read the proclamation. Great, thank you. We'll read the proclamation, and then, have you come up and take a photo.

31
00:06:13.830 --> 00:06:28.219
Boardroom: Dr. Witherell is the 8th Director of the Lawrence Berkeley National Lab. He's also a District 6 resident. He's served as director of the lab for the last 10 years and is retiring this month, and we wanted to take this moment to honor him for his service. So here's the text of the proclamation.

32
00:06:29.260 --> 00:06:36.279
Boardroom: Whereas for more than 5 decades, Dr. Michael Stewart Witherell has combined the curiosity of a pioneering physicist

33
00:06:36.290 --> 00:06:50.929
Boardroom: With the vision of an exceptional scientific leader, helping shape some of America's most important advances in particle physics, computing, and energy research. And I should note, also serving as inspiration of a West Wing character. That's a story for another time.

34
00:06:51.280 --> 00:07:08.219
Boardroom: Whereas, as a scientist, he made landmark contributions to our understanding of the fundamental structure of matter, including a groundbreaking Fermilab experiment that isolated particles containing the charm quark, and earned him the prestigious Panofsky Prize in Experimental Particle Physics.

35
00:07:08.290 --> 00:07:23.210
Boardroom: And, whereas, never content to stop exploring, he later turned his attention to one of science's greatest mysteries, dark matter, contributing to the LUX collaboration and helping design the next generation Lux Zeppelin experiment.

36
00:07:23.210 --> 00:07:29.029
Boardroom: A quest worthy of someone who has spent a career chasing the universe's best-kept secrets.

37
00:07:29.310 --> 00:07:53.570
Boardroom: And, whereas after serving as director of Fermilab and Vice Chancellor of research at UC Santa Barbara, Dr. Witherell became director of Lawrence Berkeley National Laboratory. From 2016 to 2026, he led more than 4,000 employees and a billion-dollar annual budget through a decade

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of remarkable achievement, during which Berkeley Lab scientists earned four Nobel Prizes, 2 National Medals.

38
00:07:53.620 --> 00:07:56.669
Boardroom: and dozens of National Academy elections.

39
00:07:56.870 --> 00:08:14.419
Boardroom: And, whereas Dr. Witherall's leadership modernized Berkeley Lab for the future through major investments in world-class scientific infrastructure, including the Advanced Light Source Upgrade, the Perlmutter Supercomputer, the Dudena Project, BioEpic, and other transformative facilities.

40
00:08:14.420 --> 00:08:38.159
Boardroom: while also positioning the laboratory at the forefront of quantum information science and artificial intelligence for discovery. Now, therefore, be it resolved that Adina Ishii, Mayor of the City of Berkeley, does hereby commend Dr. Michael Witherell for his exceptional contributions, dedicated service, collaborative leadership, and enduring stewardship, and congratulate him on his retirement.

41
00:08:38.360 --> 00:08:39.309
Boardroom: Thank you.

42
00:08:43.840 --> 00:08:46.150
Boardroom: Did you want to say a few words? Yeah.

43
00:08:51.260 --> 00:08:52.810
Boardroom: So, here.

44
00:08:52.890 --> 00:09:05.939
Boardroom: So, thank you. Yes, I'm a proud resident at 640 Euclid, so, since I came with my wife and daughter, since they called me for this job 10 years ago.

45
00:09:05.940 --> 00:09:21.629
Boardroom: And besides all those other great things in the laboratory, we're also leading the fight to be resilient against wildfire for the city and the area that we're very proud of. And we also have developed a really great K-12

46
00:09:21.630 --> 00:09:24.429
Boardroom: STEM program over the last several years.

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47
00:09:24.430 --> 00:09:36.350
Boardroom: to help our, students and teachers in the East Bay, that I'm very proud of. And I couldn't be prouder to be a resident of the City of Berkeley. So, thank you so much.

48
00:09:44.200 --> 00:09:50.770
Boardroom: You're okay.

49
00:09:59.450 --> 00:10:04.929
Boardroom: 1, 2, 3… Thank you, thank you.

50
00:10:19.970 --> 00:10:27.390
Boardroom: Also, this evening, We are recognizing National Breastfeeding Month.

51
00:10:27.590 --> 00:10:32.629
Boardroom: And I believe that Ruth Konoff is here. Hi! Welcome! You can feel free to come up if you'd like.

52
00:10:33.170 --> 00:10:58.160
Boardroom: 2026 National Breastfeeding Month, whereas the American Academy of Pediatrics and World Health Organization recommend exclusive breastfeeding for the first 6 months of life, with continued breastfeeding for 2 years or beyond, as mutually desired by the mother and child, and whereas the consistent and well-documented health, economic, and environmental benefits of human milk feeding show that this investment will continue to produce measurable outcomes for families and

53
00:10:58.160 --> 00:11:23.060
Boardroom: and communities alike, and whereas many families face barriers to achieving their infant feeding intentions due to long-standing policy gaps and underfunding of public health initiatives that address the needs of lactating parents and the providers that serve them, which disproportionately affect Black, Indigenous, and people of color BIPOC populations, resulting in reduced breastfeeding rates and an associated increase in the risk for a variety of negative health outcomes

54
00:11:23.060 --> 00:11:27.910
Boardroom: And whereas protecting and supporting human milk feeding is essential to ensuring

55
00:11:27.990 --> 00:11:51.689
Boardroom: infant nutrition security, and immunologic protection for Berkeley's youngest people, and whereas National Breastfeeding Month and

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World Breastfeeding Week provide important opportunities to increase awareness of and address barriers to human milk feeding faced by families. Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby recognize August 2026

56
00:11:51.690 --> 00:11:55.500
Boardroom: as breastfeeding slash Chest Feeding Month in the City of Berkeley.

57
00:12:05.510 --> 00:12:16.570
Boardroom: So, I'd love to get a picture with you in a few minutes, but anyone who's known me for more than 5 minutes knows that I could speak at length about the wonders of breastfeeding and human milk.

58
00:12:17.000 --> 00:12:20.759
Boardroom: But I promise I'll keep my remarks shorter than that.

59
00:12:20.900 --> 00:12:21.640
Boardroom: Yeah.

60
00:12:21.800 --> 00:12:34.309
Boardroom: So, council members, mayor, staff, thank you for the proclamation, recognizing the importance of breastfeeding, chest feeding, and human milk feeding for our community.

61
00:12:34.430 --> 00:12:49.719
Boardroom: The substantial benefits to the health of both the child and the lactating parent, and to society as a whole, are widely recognized, and the vast majority of expectant parents, over 94% in our county.

62
00:12:49.840 --> 00:12:56.199
Boardroom: Intend to breastfeed, they plan to breastfeed, they initiate breastfeeding.

63
00:12:57.430 --> 00:13:06.649
Boardroom: things go downhill often from there. This year, World Breastfeeding Week, the first week in August.

64
00:13:06.790 --> 00:13:12.089
Boardroom: has the theme, Breastfeeding for a Sustainable Start in Life.

65
00:13:12.300 --> 00:13:15.059
Boardroom: Strengthen what works.

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66
00:13:16.020 --> 00:13:25.829
Boardroom: While there's still a lot we have to learn, we do know a fair amount about what works to help families achieve their infant feeding intentions.

67
00:13:26.430 --> 00:13:42.260
Boardroom: And I don't just mean equitable access to skilled lactation care. That's just the tip of the iceberg. I want to talk about how the community can support people who choose to breastfeed their babies.

68
00:13:43.050 --> 00:13:50.279
Boardroom: First, we know that support from a trusted peer, both before and after baby is born.

69
00:13:50.570 --> 00:13:54.100
Boardroom: Has a significant impact on their success.

70
00:13:55.010 --> 00:14:08.670
Boardroom: At Berkeley WIC, and I'm realizing I forgot to introduce myself, but I'll do that in a moment, at Berkeley WIC, we're able to provide breastfeeding peer counselor support to many of our participants, and we see the difference it makes.

71
00:14:09.660 --> 00:14:17.649
Boardroom: Another predictor of success is support provided by dads, partners, other family members.

72
00:14:18.100 --> 00:14:26.350
Boardroom: Too often, they're waiting in the waiting room while the mom-to-be gets the breastfeeding prenatal education.

73
00:14:26.720 --> 00:14:28.359
Boardroom: That's not helpful.

74
00:14:28.890 --> 00:14:33.540
Boardroom: The broader family Is the breastfeeding team.

75
00:14:33.750 --> 00:14:37.559
Boardroom: Even if the parents are not in the same household.

76
00:14:38.750 --> 00:14:45.229

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Boardroom: And finally, what I really want to stress is out in the wider community. All of you, all of us.

77
00:14:46.250 --> 00:14:58.319
Boardroom: Employers, co-workers, educational institutions, child care providers. Too often, nursing mothers who are returning to work or school

78
00:14:58.440 --> 00:15:00.410
Boardroom: And we know that most of them do.

79
00:15:00.840 --> 00:15:06.799
Boardroom: Face barriers that make it more difficult to continue providing their own milk to their child.

80
00:15:07.660 --> 00:15:13.799
Boardroom: They may face challenges… challenges, excuse me, accessing adequate parental leave.

81
00:15:14.250 --> 00:15:20.620
Boardroom: Appropriate and legally mandated lactation accommodations at work or at school.

82
00:15:21.450 --> 00:15:34.159
Boardroom: And a special interest of mine, whoever is caring for that child when the parent is away, whether that's grandma, a large childcare center, the family child care home down this…

83
00:15:34.420 --> 00:15:35.330
Boardroom: block.

84
00:15:35.630 --> 00:15:39.230
Boardroom: They may not be supportive of feeding the baby expressed milk.

85
00:15:39.680 --> 00:15:54.020
Boardroom: Too often, I see ads for childcare centers that proclaim, we provide free formula. Nothing about, we welcome your expressed milk, we know how to feed it to your baby, we have a refrigerator to keep it safe.

86
00:15:56.510 --> 00:16:07.019
Boardroom: Too often what happens is that parents believe that the start of childcare means the end of breastfeeding, and it really doesn't need to be that way.

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87
00:16:07.710 --> 00:16:22.099
Boardroom: So I think I'll leave it at that, but just point out that tonight's Declaration of National Breastfeeding Month in Berkeley represents an opportunity to promote, protect, and support breastfeeding, chest feeding, and human milk feeding

88
00:16:22.240 --> 00:16:24.900
Boardroom: for everyone in the Berkeley community.

89
00:16:25.270 --> 00:16:29.630
Boardroom: And finally, before I leave, I just want to invite everyone here

90
00:16:30.640 --> 00:16:49.299
Boardroom: to the, Berkeley WIC annual Wicnic, which is a very fun picnic. You do not have to be breastfeeding, you don't have to ever have been breastfeeding to come and have fun, have food, dance, and enjoy the music. Would it be okay if I leave those on the back table?

91
00:16:51.380 --> 00:17:04.939
Boardroom: And you know what I should have done at the very beginning? I'm Ruth Conoff, I'm the Breastfeeding Peer Counselor Coordinator at the City of Berkeley WIC, and I'm also, an active member of the Alamia County Breastfeeding Coalition, and thank you for paying attention for so long.

92
00:17:42.500 --> 00:17:53.409
Boardroom: Thank you so much, and thank you for the invitation to the event as well. Okay, so finally, for our ceremonial items, I will pass it over to Councilmember Lunapara.

93
00:17:54.070 --> 00:18:03.219
Boardroom: Thank you. This isn't an official ceremonial item, but I want to take a moment to acknowledge a truly bittersweet milestone.

94
00:18:03.400 --> 00:18:12.100
Boardroom: Tonight is the final City Council meeting for my co-chief of Staff, Sarah Sarami, and I want to acknowledge everything she has given to the City. Sarah?

95
00:18:15.970 --> 00:18:33.999
Boardroom: Sarah was born and raised in Berkeley, and has given so much of her time, energy, and talent to our community. In her time in City Hall over the past few years, first in the District 4 office, and then in

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the District 7 office, Sarah has been the driving force behind countless transformative policies and projects, including Car Free Telegraph.

96
00:18:34.000 --> 00:18:47.249
Boardroom: Police oversight, missing middle housing, the residential vacancy tax, responsible budgeting, micro-mobility fees, and so much more. She's a fierce advocate for renters, workers, pedestrians, small businesses, and all who call District 7 home.

97
00:18:47.680 --> 00:19:01.319
Boardroom: Sarah has the incredible and unique ability to go about everything in her life with kindness, empathy, and curiosity. She's able to think big picture and stay focused on a long-term theory of change while still diving into each and every detail of day-to-day public service.

98
00:19:01.320 --> 00:19:08.439
Boardroom: Proving to the city and the world that democratic socialism and progressive and young energy can be just as pragmatic as it is visionary.

99
00:19:08.920 --> 00:19:21.479
Boardroom: Sarah is thoughtful, committed, tenacious, and innovative. Her creative and compassionate approach to policy development ensures that new ideas are brought to the forefront, and that those most impacted by our work are centered in every decision we make.

100
00:19:21.710 --> 00:19:30.889
Boardroom: She's been an incredible mentor to our interns, a culture setter on the fifth floor, and an amazing partner in our efforts to create a local government that truly supports all of Berkeley.

101
00:19:31.160 --> 00:19:39.929
Boardroom: Sarah treats each and every colleague and member of the public with utmost respect. She is hilarious, brilliant, generous, and endlessly caring.

102
00:19:40.110 --> 00:19:51.120
Boardroom: I would not have been able to get through the past two years without her and her friendship. And I am so incredibly grateful for the opportunity to work and have spent so much time thinking, scheming, working, and laughing with Sarah.

103
00:19:51.480 --> 00:20:00.059

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Boardroom: Sarah, on behalf of myself, Jonah, our interns, all of your colleagues, and our entire city, thank you so much for all you have given us, and wish you the very best in your future endeavors.

104
00:20:07.520 --> 00:20:09.240
Boardroom: Thank you so much, Mayor.

105
00:20:09.460 --> 00:20:14.770
Boardroom: Thank you, Councilmember, and yes, we are gonna miss you very much, Sarah.

106
00:20:14.840 --> 00:20:29.470
Boardroom: Okay, thank you all so much for the ceremonial items. I really appreciate everyone coming and representing their organizations or their families. It is really special that we get a chance to do this, and I just want to thank you all for being here, so…

107
00:20:31.080 --> 00:20:37.960
Boardroom: We are now moving on to City Manager comments. Mr. City Manager, do you have any comments this evening? I don't. Thank you, Madam Mayor.

108
00:20:38.360 --> 00:20:42.970
Boardroom: Thank you very much. Alright, we will now take public comment on non-agenda matters.

109
00:20:45.540 --> 00:21:03.800
Boardroom: Sorry, I'm so sorry, yes. Madam City Auditor, did you have comments for us this evening? Great. Thank you so much, good evening. First, I just wanted to echo a thank you to Sarah for your contributions. Something that I've really appreciated about you is.

110
00:21:03.880 --> 00:21:16.400
Boardroom: you're… you ask very, very good questions, and you really embody what I call my ABCs, which is always be curious. So, best wishes, Sarah. We're gonna miss you.

111
00:21:17.190 --> 00:21:32.820
Boardroom: Good evening. I'm here to, talk about items 50 and 51. This is to share my office's, audit plan for the upcoming year, and, to share our first annual whistleblower program report.

112
00:21:33.400 --> 00:21:43.460

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Boardroom: As you're all aware, the city, had to make some very difficult decisions to close the $30 million structural deficit, and will need to raise additional revenue.

113
00:21:43.880 --> 00:21:54.480
Boardroom: to avoid further cuts. Given the city's fiscal challenges, my office's audit plan this year focuses on enhancing revenue and evaluating expenses.

114
00:21:54.550 --> 00:22:13.970
Boardroom: This includes ongoing audits of the Rent Stabilization Board and of the City's Business License Tax Program, as well as new audits on the public health and Measure FF on Safe Streets. My goal is to ensure that city dollars are spent responsibly and aligned with Berkeley values.

115
00:22:14.610 --> 00:22:22.520
Boardroom: Our purpose as an independent office is to evaluate the city's operations and compliance with local laws and regulations by conducting independent audits.

116
00:22:22.690 --> 00:22:32.920
Boardroom: Berkeley City Charter establishes authority to carry out this work and gives my office unrestricted access to city employees, officials, records, and reports.

117
00:22:32.920 --> 00:22:46.470
Boardroom: Our role as an independent oversight body is even more important during periods of fiscal uncertainty, as taxpayers and residents expect timely information on how the city's using the limited public resources.

118
00:22:46.470 --> 00:22:50.960
Boardroom: Audits can also lead to new revenue opportunities, cost recovery, and savings.

119
00:22:51.350 --> 00:23:02.460
Boardroom: This fiscal year, my office will also continue working with city departments to report on the implementation status of audit recommendations through their submission of Council reports.

120
00:23:02.640 --> 00:23:13.679
Boardroom: We'll also continue implementation of the Whistleblower program, which provides a confidential way for city employees or officials to report concerns related to fraud, waste, and abuse of city resources.

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121
00:23:14.020 --> 00:23:27.759
Boardroom: By providing an independent and confidential reporting channel, the program helps identify risks, improve accountability, and strengthen public trust in city operations. I wanted to thank the city manager for helping us, with some of the outreach.

122
00:23:28.430 --> 00:23:33.139
Boardroom: As mentioned earlier, we just released our first annual whistleblower program report.

123
00:23:33.420 --> 00:23:37.039
Boardroom: During this first calendar year.

124
00:23:37.190 --> 00:24:00.179
Boardroom: In 2025, the program received 42 new reports and closed 41 cases. Cases may be closed for several reasons, including completion of an investigation, referral to another department or entity, insufficient information to proceed, or because the allegation was outside the program's authority. Looking forward, the program will continue to enhance intake and investigation procedures.

125
00:24:00.180 --> 00:24:02.309
Boardroom: And work closely with departments.

126
00:24:02.310 --> 00:24:12.189
Boardroom: to address fraud, waste, and abuse. I want to thank, HR and, the City Attorney's Office for their partnership, on this program.

127
00:24:12.430 --> 00:24:23.539
Boardroom: For more information, you can see tonight's information item on our audit plan and whistleblower report, and please don't hesitate to reach out to my office with any questions. Thank you.

128
00:24:25.070 --> 00:24:49.910
Boardroom: Thank you so much, Madam City Auditor, and thank you so much for your presentation to us as well. It is so important that we have these audits, and I really want to thank your office's role in helping us determine where we can do a better job as a city, especially during times of financial difficulty. And I did just want to particularly reinforce my support for the audit around the Public Health Division. I think it's important for

129
00:24:49.910 --> 00:24:57.790

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Boardroom: us to understand, you know, what that brings to our city, and also the expense. So thank you very much for looking into it.

130
00:24:57.790 --> 00:24:58.450
Boardroom: Yeah.

131
00:24:58.740 --> 00:25:01.249
Boardroom: Oh, yes, did you have comments? Yeah.

132
00:25:02.460 --> 00:25:21.789
Boardroom: Thank you, Madam Mayor. I want to thank Auditor Wong and her team for all their hard work on past and ongoing audits. I'm especially pleased to see the audit of our business license tax, since that is a major source of revenue for our city, and of the Rent Board, given our earlier discussion.

133
00:25:21.900 --> 00:25:42.839
Boardroom: And all of the other audits are important, too. I also look forward to Auditor Wong's work to ensure that we're spending our Safe Streets Measure FF funds wisely, and in a way that is consistent with what voters envisioned. I'm so pleased and grateful that we have such a dogged and fearless city auditor, and I look forward to learning more about these topics.

134
00:25:42.840 --> 00:25:48.500
Boardroom: As Auditor Wong and her staff bring forward the individual complete reports. Thank you.

135
00:25:49.320 --> 00:25:50.210
Boardroom: Thank you.

136
00:25:50.750 --> 00:25:52.260
Boardroom: Thank you so much.

137
00:25:52.590 --> 00:25:53.630
Boardroom: Okay.

138
00:25:58.860 --> 00:26:06.230
Boardroom: Very good. I love it. I love the support for the audits. Okay, we'll now take public comment on non-agenda matters.

139
00:26:06.560 --> 00:26:08.910
Boardroom: Okay, so there'll be,

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140
00:26:09.560 --> 00:26:19.189
Boardroom: Five cards chosen for in-person, non-agenda public comment, and then we will go to the first five hands raised.

141
00:26:19.310 --> 00:26:28.979
Boardroom: on the Zoom, so if you're on the Zoom now, it's time to raise your hand for non-agenda public comment. Each speaker will have, one minute.

142
00:26:30.510 --> 00:26:32.870
Boardroom: And… let's see what we got…

143
00:26:48.610 --> 00:26:53.910
Boardroom: Okay, we got 5… Cards, they can come up in any order.

144
00:26:54.210 --> 00:27:06.419
Boardroom: We have, Russell Bates, Celeste Marks… Steven Alpert, Gina Rieger, and Steve Tracy.

145
00:27:06.530 --> 00:27:11.399
Boardroom: And this is for items that are not on the agenda, so come up in any order.

146
00:27:28.990 --> 00:27:33.660
Boardroom: Hi, everybody. Nothing new. Letters.

147
00:27:33.910 --> 00:27:35.010
Boardroom: Rampage.

148
00:27:35.490 --> 00:27:52.590
Boardroom: in Lebanon, Gaza, elsewhere in the Luis is continuing. The largest bomb that's been dropped in peacetime history was dropped in Lebanon today. You don't see a lot of this stuff on the news. It's not on mainstream.

149
00:27:52.960 --> 00:27:56.510
Boardroom: Because it's not mainstream, and the mainstream doesn't know enough.

150
00:27:56.650 --> 00:27:58.839
Boardroom: To not support this.

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151
00:27:59.060 --> 00:28:01.720
Boardroom: And I would urge the City Council

152
00:28:02.000 --> 00:28:16.270
Boardroom: to what I've done recently is, when I have found myself believing something that I no longer believe, and realized I was foolish for believing it, and need to change my mind about it,

153
00:28:16.380 --> 00:28:20.690
Boardroom: I do it. So, I think… without…

154
00:28:22.000 --> 00:28:32.999
Boardroom: Condemning yourselves too much. Admit you made a mistake by not calling for a ceasefire in Gaza, not calling it genocide, and do so. Thank you.

155
00:28:44.580 --> 00:28:50.210
Boardroom: Good evening. Steve Tracy. I'm, I'm a cyclist. I have the silly shirt on.

156
00:28:50.440 --> 00:28:52.040
Boardroom: I'm also a driver.

157
00:28:52.520 --> 00:28:55.670
Boardroom: I'm a month early. What am I gonna talk about?

158
00:28:57.090 --> 00:28:58.800
Boardroom: Paving Hopkins.

159
00:29:00.230 --> 00:29:04.750
Boardroom: I have choices. I can ride Moran, I can ride Rose.

160
00:29:04.980 --> 00:29:09.739
Boardroom: I would never ride Hopkins in the condition it's in. I don't even want to drive it.

161
00:29:10.220 --> 00:29:12.820
Boardroom: But I know…

162
00:29:13.370 --> 00:29:19.820

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Boardroom: After cycling for 50 years, the cyclists are much safer with fresher pavement. I saw a group

163
00:29:20.100 --> 00:29:31.399
Boardroom: comment that it would be less safe with fresher pavement without a cycle track. Wrong! Please. No cycle track.

164
00:29:31.690 --> 00:29:37.510
Boardroom: Repave Hopkins, And use that extra money to repave other streets.

165
00:29:37.650 --> 00:29:38.410
Boardroom: Hurry in!

166
00:29:40.610 --> 00:29:41.840
Boardroom: Thank you.

167
00:29:46.750 --> 00:29:51.829
Boardroom: Good evening. I'm Gina Rieger, and I live on La Loma Avenue.

168
00:29:52.130 --> 00:30:01.379
Boardroom: Last year I spent, a good amount of time trying to reason with the city to keep my plants and trees regarded under the EMBER program.

169
00:30:01.380 --> 00:30:25.990
Boardroom: But now I find myself worried about my own… the risk to the safety of my house and my own life because of the possibility of the closing of the fire station number 4. I found the city manager's comments on page 23 of the proposed budget of 114 pages that was presented to you in May. Response time standards were not consistently met.

170
00:30:25.990 --> 00:30:37.370
Boardroom: Closure of Fire Station 4 will force responses from more distant stations, further degrading performance. Those are the words of your city manager.

171
00:30:37.880 --> 00:30:51.460
Boardroom: City Gate Consultants, in December of 23 wrote that the department is struggling to meet current demand, much less future growth in the city and the university. Thank you. Thanks for your comment.

172
00:30:52.570 --> 00:30:54.079
Boardroom: I'm seating one with it.

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173
00:30:56.320 --> 00:30:57.939
Boardroom: Okay, thank you.

174
00:31:02.160 --> 00:31:04.940
Boardroom: Good evening. I'm Dr. Steven Alpert.

175
00:31:05.120 --> 00:31:09.020
Boardroom: On May 19, Mayor Ishii interrupted my public comment remarks.

176
00:31:09.220 --> 00:31:16.469
Boardroom: The First Amendment Coalition advised that this was a violation of both the Brown Act and the First Amendment right to free speech.

177
00:31:16.850 --> 00:31:26.030
Boardroom: Per Government Code 54960, I forwarded a formal cease and desist letter requesting that henceforth the City not interrupt public comment remarks

178
00:31:26.150 --> 00:31:31.720
Boardroom: by our speaker addressing statements or positions publicly made by individual council members.

179
00:31:31.990 --> 00:31:41.839
Boardroom: The City has until July 8th to provide this commitment, which must be approved by the Council in an open session during a regular or special meeting as a separate agenda item.

180
00:31:42.480 --> 00:31:49.319
Boardroom: Or I can and I will file legal actions against the city as recommended by the First Amendment Coalition.

181
00:31:49.500 --> 00:31:50.690
Boardroom: That said.

182
00:31:50.880 --> 00:32:00.719
Boardroom: This council needs to stop pushing the false narrative that building more market-rate housing will readily produce affordable units. Real-world data contradict this.

183
00:32:01.010 --> 00:32:02.470

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Boardroom: The bookhold study.

184
00:32:02.690 --> 00:32:14.490
Boardroom: Reviewed and published by the prestigious London School of Economics demonstrated that in our area, it takes decades for newly built market-rate housing to eventually filter down and become affordable.

185
00:32:14.730 --> 00:32:21.060
Boardroom: Council members also assert that building more market rate housing invariably will drive down runs.

186
00:32:21.210 --> 00:32:34.189
Boardroom: Housing data from EOI Emeryville refute this. Despite a massive building boom between 2020 and 2024, Emeryville had a 16.3 year-over-year increase in one-bedroom rents.

187
00:32:34.390 --> 00:32:36.249
Boardroom: The largest in the Bay Area.

188
00:32:36.390 --> 00:32:48.650
Boardroom: As reported in April to Emeryville Tadler, Emeryville went to Gimby Way. Now it has the most expensive rent in the East Bay. The more apartments we build, the more expensive it is to rent.

189
00:32:49.000 --> 00:32:53.940
Boardroom: is the rentier Building more was supposed to bring cheaper rent. What happened?

190
00:32:54.290 --> 00:33:00.489
Boardroom: Our Council's fervor to build more market-rate housing may produce a similar outcome in Berkeley. Thank you.

191
00:33:02.830 --> 00:33:09.410
Boardroom: Okay. Thank you. Moving to the speakers on Zoom, the first, speaker is…

192
00:33:09.640 --> 00:33:12.709
Boardroom: Caller with a phone number ending in 211.

193
00:33:20.240 --> 00:33:23.810
1510****211: Hi, good evening. So, our measure is still out of town, I could not…

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194
00:33:24.250 --> 00:33:33.029
1510****211: give you some paper today, but I'd like to talk about very, very historical issues in Berkeley, especially with the great speaker about nuclear.

195
00:33:33.140 --> 00:33:33.820
1510****211: that.

196
00:33:34.510 --> 00:33:41.040
1510****211: I'd like to bring the… great Egyptian neuroscientist. Her name was Samira Musa. Samira Musa.

197
00:33:41.250 --> 00:33:43.050
1510****211: And she was kidnapped.

198
00:33:43.750 --> 00:33:47.049
1510****211: It's actually part of Oppenheimer group.

199
00:33:47.450 --> 00:33:52.450
1510****211: She was… she was also at Cal, she also was Lawrence,

200
00:33:52.640 --> 00:33:59.350
1510****211: nuclear laboratory, was kidnapped August 5th, 1952, by Mossad.

201
00:33:59.980 --> 00:34:09.720
1510****211: under phony donor invitation. She was driven to Pacifica Mountains. Her car was thrown over to the ocean, and she was killed.

202
00:34:09.760 --> 00:34:22.589
1510****211: Lawrence Labs have a 10-minute tribute to Lawrence… to Samira Musa. Please watch it, just Google, search, Samira Musa, the Egyptian mother of nuclear physics.

203
00:34:23.270 --> 00:34:24.860
1510****211: Israel have no limit.

204
00:34:24.860 --> 00:34:27.260
Boardroom: Thank you. Thanks for your comment.

205
00:34:28.110 --> 00:34:30.929

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Boardroom: Next up is Ashley Perez.

206
00:34:41.340 --> 00:34:45.120
Boardroom: Ashley should be able to… Unmute.

207
00:34:54.150 --> 00:34:55.750
Boardroom: Oh.

208
00:34:58.190 --> 00:34:59.919
Boardroom: Looks like you're unmuted.

209
00:35:04.500 --> 00:35:05.910
Boardroom: But we can't hear you.

210
00:35:10.400 --> 00:35:14.600
Boardroom: Alright, well, maybe we can, come back.

211
00:35:14.870 --> 00:35:16.029
Boardroom: To Ashley.

212
00:35:16.300 --> 00:35:21.010
Boardroom: Last hand is Cheryl Davil, a former council member.

213
00:35:24.460 --> 00:35:26.119
Cheryl Davila, Former Councilmember, Founder CEMTF: I'm here in the room.

214
00:35:35.840 --> 00:35:37.570
Cheryl Davila, Former Councilmember, Founder CEMTF: I'm gonna exit.

215
00:35:42.640 --> 00:35:43.240
Boardroom: Okay.

216
00:35:44.320 --> 00:35:58.799
Boardroom: So… Gaza, people are still bomb… they're bombing every day. People are still being martyred. Doctors, children, women, seniors.

217
00:36:01.120 --> 00:36:06.450
Boardroom: And it's not… Okay that you haven't done anything about it.

218
00:36:08.110 --> 00:36:12.949

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Boardroom: I don't understand how you can sit there and pretend like you don't hear me and you're not listening.

219
00:36:13.150 --> 00:36:19.639
Boardroom: That's really rude, and that's not your job. Your job is to listen to your constituents.

220
00:36:21.340 --> 00:36:23.610
Boardroom: And you should do something.

221
00:36:24.060 --> 00:36:25.860
Boardroom: More than what you're doing.

222
00:36:26.960 --> 00:36:31.110
Boardroom: We don't need… More market-rate housing.

223
00:36:31.820 --> 00:36:47.539
Boardroom: We don't need streets that you just have to go up and down like this every time you drive down them. Curtis hasn't been paved in… since I… before I was elected. So, y'all need to do a better job. Thank you.

224
00:36:48.650 --> 00:36:53.720
Boardroom: I'll go back to, ashley Perez, let's see if…

225
00:36:56.880 --> 00:37:00.660
Boardroom: Ashley should be able to… You're unmuted.

226
00:37:06.470 --> 00:37:08.880
Boardroom: But we… we still can't hear you.

227
00:37:11.200 --> 00:37:12.120
Boardroom: Alright.

228
00:37:14.680 --> 00:37:16.110
Boardroom: Okay, we have one more.

229
00:37:16.430 --> 00:37:20.390
Boardroom: speaker, realmalt?

230
00:37:23.730 --> 00:37:33.460

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Remmelt Ellen: Hey, I'm just saying that… I don't think it makes sense to expedite the process with, yeah, basically…

231
00:37:34.270 --> 00:37:41.889
Remmelt Ellen: With all this stuff that we're dealing with, the drones, drone usage, ALPR, PTC cameras, private camera integrations… Sorry, I…

232
00:37:41.890 --> 00:37:46.879
Boardroom: Can you make a comment on an item on consent?

233
00:37:47.740 --> 00:37:48.690
Remmelt Ellen: Yeah.

234
00:37:48.720 --> 00:37:53.679
Boardroom: We're actually on public comment on non-agenda matters at the moment, but you're welcome to give that comment.

235
00:37:53.680 --> 00:37:54.370
Remmelt Ellen: Goodbye, man.

236
00:37:54.370 --> 00:37:55.300
Boardroom: No worries, thank you.

237
00:37:57.840 --> 00:38:01.430
Boardroom: Okay, there's no more, hands raised.

238
00:38:02.170 --> 00:38:09.799
Boardroom: Thank you very much, to everyone for their comments. We are now moving on to our consent calendar.

239
00:38:10.010 --> 00:38:11.360
Boardroom: Alright.

240
00:38:12.040 --> 00:38:13.470
Boardroom: Councilmembers?

241
00:38:15.450 --> 00:38:17.650
Boardroom: Anyone have any comments?

242
00:38:22.950 --> 00:38:27.039

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Boardroom: I think this is not working, but Councilmember Blackaby, go ahead.

243
00:38:27.070 --> 00:38:30.099
Boardroom: My finger was furiously banging on the button, so…

244
00:38:30.110 --> 00:38:48.880
Boardroom: Just a few comments on items. I want to thank colleagues for the, the, office relinquishment items. I wanted to contribute on item 37, for the Replenishing Business Damage Mitigation Fund, $250 from our office account. Thanks to Councilmember Trega for that item.

245
00:38:49.010 --> 00:39:02.340
Boardroom: On the Berkeley Nikkei Senior Center, wanted to relinquish $250, thanks to the mayor for that item. On the Little Free Store, item 39, thanks to Councilmember Bartlett, wanted to contribute $250.

246
00:39:02.540 --> 00:39:11.519
Boardroom: And on item 41, Zero Empty Spaces in Downtown Berkeley, thanks again to Councilmember Taplin and the Mayor. We wanted to contribute $2.50.

247
00:39:11.520 --> 00:39:23.389
Boardroom: I wanted to thank, my partner in crime, Councilmember O'Keefe, on item 42 on the Solano Stroll, funding. It's, kind of a key time as we transition

248
00:39:23.390 --> 00:39:43.590
Boardroom: funding for that event, to more private sources. Just wanted to appreciate Councilmember O'Keefe's leadership on that item, as well as the mayor, for helping figure out a plan, both within the city budget, but also within our personal office budgets, to make sure that we could, support that event for another year while that funding transitions.

249
00:39:43.590 --> 00:39:52.720
Boardroom: So just wanted to note that, Councilmember O'Keefe is, is, is leading the charge, but we're also proud to contribute $15K from the, D.

250
00:39:52.750 --> 00:39:56.010
Boardroom: from our District 6 budget towards that event.

251
00:39:56.050 --> 00:40:10.449
Boardroom: Then lastly, I wanted to comment on item 19, which is the RFP for public safety tech tools. I just want to note for folks that this is

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a follow-up from the May 7th, meeting that we had about, technology, public safety technology.

252
00:40:10.450 --> 00:40:18.670
Boardroom: Had a very spirited debate, long discussion, lots of questions, and sort of where we ended on that was not to move forward with

253
00:40:18.670 --> 00:40:29.380
Boardroom: the flock contract as written, but rather to issue an RFP for all the components. And that's what this item is. It's, the next step in what Council directed the department to do.

254
00:40:29.420 --> 00:40:37.360
Boardroom: And it is an interim step. We still have many more steps in the process as we look at proposals from many different vendors, we hope.

255
00:40:37.410 --> 00:40:48.790
Boardroom: And then there's a whole decision-making process around what may or may not happen at that point. But anyway, I just want to indicate this is not a new item, this is a continuation on something that we agreed to together as a body on May 7th.

256
00:40:48.950 --> 00:40:57.150
Boardroom: I also want to thank the department for convening a working group of PAB board members, as well as BPD staff.

257
00:40:57.220 --> 00:41:12.219
Boardroom: to formulate the RFP and review it. I know that work is ongoing, and the process will continue. So, I'm proud to support that item. It is an extension of what Council's previously directed, no more, nor less. So, thank you.

258
00:41:12.320 --> 00:41:15.520
Boardroom: Thank you very much. Councilmember Humbert.

259
00:41:15.640 --> 00:41:34.090
Boardroom: Yes, thank you, Madam Mayor, and I want to associate myself with, the very accurate comments made by Councilmember Blackaby about the RFP. As to an… on item 37, which is replenishing the business damage mitigation Fund.

260
00:41:34.090 --> 00:41:39.340

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Boardroom: I'd like to contribute $250 from our office discretionary account.

261
00:41:39.360 --> 00:41:51.909
Boardroom: Item 38, which is the Berkeley Nikkei Senior Center, relinquishment of funds, to that center. I'd like to contribute $100, please.

262
00:41:52.020 --> 00:41:58.609
Boardroom: And… I think that's it. Thank you.

263
00:41:59.190 --> 00:42:02.759
Boardroom: Thank you very much. Alright, moving on to Councilmember O'Keefe.

264
00:42:03.250 --> 00:42:10.480
Boardroom: Thank you. I'll start with the items that aren't mine.

265
00:42:10.910 --> 00:42:16.190
Boardroom: I would like to donate,

266
00:42:16.740 --> 00:42:24.979
Boardroom: $500 to the, item 37, the Business Damage Mitigation Fund. I think that's a really, really important one, so I want to thank…

267
00:42:27.350 --> 00:42:39.300
Boardroom: It was yours, right? Yeah. Councilmember Tragué for, for bringing that in the mayor, yes. Anyway, thank you to the authors, and I'm happy to donate. I'd like to donate $200 to item 38, the Nikkei Senior Center.

268
00:42:39.460 --> 00:42:47.679
Boardroom: End of your party. And, item $200 to item 39 for the little 3-store item, that sounds fun. And,

269
00:42:48.360 --> 00:42:56.290
Boardroom: $200 to item 41, the zero empty spaces. So thank you to all those, seem like great items, happy to donate.

270
00:42:56.480 --> 00:43:00.539
Boardroom: And I really, Councilmember Blackaby already,

271

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00:43:00.880 --> 00:43:10.240
Boardroom: teed me up here to talk about my Solana Stroll item. I want to say, first of all, thank you so much to, Councilmember Blackaby.

272
00:43:10.240 --> 00:43:29.509
Boardroom: to the Mayor and Councilmember Kessarwani, for your really generous contributions. I'll let Councilmember Kessarwani say the number, but, all three have, been extremely generous, and, I'm so grateful. This is… I already talked about this item, when we gave it some funding last week, but I just want to say again, it's…

273
00:43:29.740 --> 00:43:42.029
Boardroom: It's, you know, it's the biggest street event, not just in Berkeley, but in the East Bay, and it's a huge deal. It's really important for the community in lots of different dimensions. It's,

274
00:43:42.620 --> 00:43:55.240
Boardroom: it's just… it's an event people look forward to every year. It generates a huge amount of economic activity for the area, and not just for the Solano businesses, but so many, nonprofits and other businesses and community organizations

275
00:43:55.240 --> 00:44:04.569
Boardroom: go there every year. It's a big recruiting event and a good place to showcase what they're doing. And so it's really, it's just such an invaluable, beautiful event, and I'm so proud to have it in my district.

276
00:44:04.570 --> 00:44:17.400
Boardroom: And, just really happy that we were able to figure out a way to keep it going, even with the funding challenges. And so this is a really important part of that, and I just want to say thank you again for the extreme generosity from the, from my co-sponsors.

277
00:44:18.990 --> 00:44:24.230
Boardroom: Thank you very much, council Member Lunapara.

278
00:44:25.620 --> 00:44:26.750
Boardroom: Thank you.

279
00:44:27.390 --> 00:44:35.019
Boardroom: I am really excited about item number 1, which is adjusting the parking permit fees.

280

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00:44:35.390 --> 00:44:48.000
Boardroom: I really want to thank the city manager and public works staff, especially Elliot Schwimmer, who worked extremely hard on this and presented an extremely convincing, thoroughly researched proposal a few weeks ago.

281
00:44:48.870 --> 00:44:56.550
Boardroom: I also, I want to give $200 to each 37, 38, 39…

282
00:44:56.930 --> 00:45:02.089
Boardroom: 41 and 42 to all of the items, all of the relinquishment items.

283
00:45:02.950 --> 00:45:11.389
Boardroom: And I have… Communicated,

284
00:45:11.500 --> 00:45:26.309
Boardroom: concerns with the… and questions on the RFP language, and am… am currently satisfied with the response. I want to make sure that the PAB has time to review the RFP before it goes public. I just wanted to say that also. Thanks.

285
00:45:27.370 --> 00:45:29.490
Boardroom: Thank you very much. Vice Mayor Jacob?

286
00:45:30.770 --> 00:45:33.360
Boardroom: Thank you, Madam Mayor.

287
00:45:34.510 --> 00:45:40.910
Boardroom: So, first of all, I want to recognize our city manager and…

288
00:45:41.270 --> 00:45:50.649
Boardroom: His team for doing incredible work, especially under some very strenuous circumstances with many unpredictable changes.

289
00:45:50.910 --> 00:45:51.860
Boardroom: Thank you.

290
00:45:51.900 --> 00:46:09.070
Boardroom: As I've been looking through this and many other consent calendars, I just can't help but see and recognize all the work that staff has been doing. I see staff applying for and receiving grants,

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continuing to do important work to support our seniors and the most vulnerable amongst us.

291
00:46:09.070 --> 00:46:13.610
Boardroom: Creating affordable housing, expanding access to wellness programs.

292
00:46:13.610 --> 00:46:23.140
Boardroom: Tending to our parks, and addressing the city's financial stability, and many more processes that go on within the city every day, whether

293
00:46:23.140 --> 00:46:34.530
Boardroom: we see them, or not. We truly have an exceptional team in the City of Berkeley, and I want to just take a moment to acknowledge and recognize all the amazing people selflessly serving.

294
00:46:34.580 --> 00:46:44.749
Boardroom: our community. With respect to the items, on item 37, which is replenishing the Business Damage Mitigation Fund.

295
00:46:44.820 --> 00:46:51.369
Boardroom: I want to thank Mayor Ishii for the partnership on this item.

296
00:46:51.520 --> 00:47:08.370
Boardroom: Over the past 2 years as the downtown representative, I visited and spoken to several business owners who unfortunately have experienced burglaries, break-ins, vandalism, and other property damage. And this program provides

297
00:47:08.480 --> 00:47:14.210
Boardroom: practical assistance, When they need it most, to get their business back up.

298
00:47:14.810 --> 00:47:32.470
Boardroom: Importantly, these funds can be utilized by businesses throughout Berkeley, regardless of the district. So, I thank my colleagues who have already generously contributed to this important fund, and invite others to do so as well.

299
00:47:33.140 --> 00:47:35.810
Boardroom: I am also happy to donate.

300

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00:47:35.870 --> 00:47:43.409
Boardroom: $150 to items 38, which is the Berkeley Nikkei Senior Center.

301
00:47:43.460 --> 00:47:51.510
Boardroom: $150 to item 39, little free store, and $150 to…

302
00:47:51.510 --> 00:48:03.519
Boardroom: Item 42, the Solano Avenue Stroll. And I want to thank the community partners, staff, and fellow council members of the Council who've helped bring these proposals forward.

303
00:48:04.100 --> 00:48:11.810
Boardroom: On item 40, I am very proud to put forward a position of support for Senate Bill 1830.

304
00:48:12.000 --> 00:48:26.779
Boardroom: 1483, by our former mayor and current state senator, Jesse Aragin, that, in my mind, corrects the unintended consequences, and makes sure that our housing is built

305
00:48:26.960 --> 00:48:45.820
Boardroom: By and not on the backs of people who are properly trained and skilled in their craft. It ensures that our hardworking people in the labor movement are getting fair wages and health benefits, and are able to participate in this shared economy.

306
00:48:46.320 --> 00:48:53.700
Boardroom: With respect to item 41, which is, our zero empty spaces in downtown Berkeley, item.

307
00:48:53.700 --> 00:49:16.389
Boardroom: I am so excited that Zero Empty Spaces is coming to Berkeley, and this is just a start, of helping… of us finding creative ways to bring artists, entrepreneurs, and community organizations into underutilized spaces. I'm grateful to our Downtown Berkeley Association and our Economic Development Department

308
00:49:16.390 --> 00:49:25.579
Boardroom: for making this happen. This is a type of innovative partnership that can create more vibrant streets while supporting both economic and cultural vitality.

309
00:49:25.580 --> 00:49:33.920
Boardroom: And lastly, on item 19, which is the RFP solicitation.

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310
00:49:33.920 --> 00:49:46.320
Boardroom: I would like to associate my comments with, those of Councilmember Lunapara and, the questions that, I had,

311
00:49:46.630 --> 00:49:55.919
Boardroom: have been answered to my satisfaction, and, I think we will maybe hear more about it in other comments. Thank you.

312
00:49:57.380 --> 00:50:00.239
Boardroom: Thank you very much. Councilmember Kesarwani?

313
00:50:01.670 --> 00:50:06.430
Boardroom: Thank you very much, Madam Mayor. So, I want to,

314
00:50:07.850 --> 00:50:11.200
Boardroom: Be the first to, really…

315
00:50:11.320 --> 00:50:36.300
Boardroom: appreciate item 29. This is the item that is acknowledging the change in ownership for the North Berkeley BART development. We have the East Bay Asian Local Development Corporation, Ebaldsy, taking over for Bridge. I think we have some representatives in the back. Oh, oh, quite a few! So, so thank you for being here. This was something we did not anticipate, because Bridge was one of the key

316
00:50:36.300 --> 00:50:37.270
Boardroom: he…

317
00:50:37.270 --> 00:51:01.669
Boardroom: partners in this, incredible development that we are going to see at North Berkeley BART, but when they made the decision to step away, Ebaldsi stepped in, and I want to acknowledge the work of our city staff and Ebaldsi, to secure the state funding that had been awarded to Bridge. That wasn't a guarantee, and it took a lot of work.

318
00:51:01.670 --> 00:51:03.149
Boardroom: and everyone…

319
00:51:03.150 --> 00:51:27.149
Boardroom: appreciating the vision of this site to get that done. I think I heard Liz Probst say that this project was too big to fail. It continues to be too big to fail, so I just want to acknowledge this

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incredible item. And then we are also advancing some pre-development funds to make sure that that work can happen, and we hope to break ground very soon.

320
00:51:27.150 --> 00:51:32.329
Boardroom: on this project, so… so thank you for that. And then in terms of…

321
00:51:32.520 --> 00:51:34.540
Boardroom: All of these items

322
00:51:34.730 --> 00:51:47.279
Boardroom: For relinquishment… relinquishment of funds. So, item 37, the Damage Mitigation Fund, for businesses, I'd like to be recorded as donating $250

323
00:51:47.370 --> 00:51:54.069
Boardroom: For item 38, the Berkeley Nikkei Senior Center, I'd like to donate $100.

324
00:51:54.130 --> 00:52:13.739
Boardroom: Item 39 is the Little Free Store and Community Services United Cleanup and Mural Painting Community Party. I'd like to do $100, and the item 41, Zero Empty Spaces in Berkeley, I'd like to donate $100. And then, as Councilmember O'Keefe, had talked about.

325
00:52:13.740 --> 00:52:17.790
Boardroom: the Solano Stroll item, which, you know, I'm grateful that

326
00:52:18.030 --> 00:52:34.110
Boardroom: we can support this incredible community event this year, and… and help… help the event be self-sustaining in the future. And so… so I'd like to be recorded as donating $4,000 from my office budget to that item.

327
00:52:34.540 --> 00:52:55.340
Boardroom: And then finally, on item 40, I want to thank Councilmember Trey Group for bringing the letter of support forward. I do have a difference of opinion on this that I'd like to put into the record. I'm concerned that this bill, as I understand it, does not consider any equivalent reduction in construction costs

328
00:52:55.470 --> 00:53:01.370

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Boardroom: To compensate for the inability of a developer to use the density bonus for labor standards.

329
00:53:01.420 --> 00:53:13.289
Boardroom: which, while laudable, do increase the cost of construction fairly significantly. Sometimes, as we know, to the point of financial infeasibility for the entire project.

330
00:53:13.290 --> 00:53:21.560
Boardroom: Which does not help construction workers, and it definitely doesn't help the people who are struggling with the cost of housing in our community.

331
00:53:21.560 --> 00:53:27.630
Boardroom: For this reason, I would like to be recorded as abstaining from item number 40. Thank you very much.

332
00:53:28.830 --> 00:53:33.370
Boardroom: Thank you, Councilmember. Seeing no more hands, I will just…

333
00:53:33.370 --> 00:53:52.159
Boardroom: briefly add my comments to item number 19. I know my number of my Council members have helped the public, helped to make sure that it was clear that this is simply allowing the RFP to be issued, and whether to enter into contract negotiations with any vendor will come back to the City Council for deliberation.

334
00:53:52.160 --> 00:54:03.169
Boardroom: Additionally, the City Manager assured me that the Berkeley Police Department will continue to work with the Police Accountability Board, they've already been doing that, to reach alignment, on this RFP.

335
00:54:03.180 --> 00:54:12.329
Boardroom: And I want to just plus one to item number 29. Thank you, Councilmember Kessarwani, for your comments. We're very excited about the North Berkeley BART.

336
00:54:12.330 --> 00:54:35.149
Boardroom: station, and that project moving forward. On item 37 for replenishing the damage mitigation fund, I just want to clarify that there is a typo in the background, which doesn't affect the actual recommendation. They were, the FY2021 budget allocation was $100,000, not 100 comma 00, it was just missing a zero at the end.

337

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00:54:35.150 --> 00:54:49.300
Boardroom: To provide one-time-only grants for the damage mitigation Fund, and then for item 39, we will relinquish $250 from my office. So, thank you all very much. And I will now open us up to, public comment.

338
00:54:50.920 --> 00:54:55.179
Boardroom: So again, this is public comment for the consent calendar or information items only.

339
00:54:58.900 --> 00:55:00.950
Boardroom: So, what is it, 1 minute?

340
00:55:01.630 --> 00:55:04.219
Boardroom: I have a one minute from Russell.

341
00:55:04.450 --> 00:55:13.920
Boardroom: Okay, thank you. It's George Lipman, Peace and Justice Commission and Human Welfare and Community Action Commission, but speaking only on my own behalf on item 19.

342
00:55:14.450 --> 00:55:26.919
Boardroom: understand that this is just a follow-up to the May 7th, but still want to speak out against the issuing of the RFP, and I hope that folks who were concerned and didn't vote for that at least will,

343
00:55:28.170 --> 00:55:35.010
Boardroom: will, will abstain on that part of the, agenda.

344
00:55:35.500 --> 00:55:38.020
Boardroom: And I don't have an expectation that…

345
00:55:38.280 --> 00:55:41.539
Boardroom: it will not pass today. I understand that.

346
00:55:41.700 --> 00:55:46.969
Boardroom: But… In studying this, the, the landscape.

347
00:55:47.320 --> 00:55:51.259
Boardroom: On May 7th and before, Flock was

348
00:55:51.860 --> 00:56:03.389

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Boardroom: completely discredited and impeached. And I don't have to go all over everything that was said, but they've lied to this council, they've lied to the staff.

349
00:56:03.700 --> 00:56:07.499
Boardroom: They're like a Swiss cheese operation.

350
00:56:07.890 --> 00:56:17.649
Boardroom: They don't have a relationship with ICE, they say, I believe it, but the data gets out anyway. And when you look at the other.

351
00:56:17.880 --> 00:56:28.560
Boardroom: candidates. We've studied, a number of them. Motorola's Vigilant Solutions is a key one. They have strategic partnerships with DHS.

352
00:56:29.030 --> 00:56:32.299
Boardroom: Axon, a strategic partnership with ICE.

353
00:56:32.710 --> 00:56:52.420
Boardroom: Vigilant has sent University of California's ALPR data to Customs and Border Patrol. Recourse Systems, which is similar to FLOC, has a large ALPR database that ICE and CBP frequently access through a side door, that is, state and local departments, as is the case with FLOC.

354
00:56:52.490 --> 00:56:53.979
Boardroom: Famously.

355
00:56:54.610 --> 00:57:09.430
Boardroom: In fact, these non-flock agencies may be even worse than flock. You're gonna wind up with a bad situation, with a bad partner, and you can put that end to it now. Or you're gonna be not looking that good. Thanks. Thanks, George.

356
00:57:13.720 --> 00:57:37.410
Boardroom: John Kainer, Downtown Berkeley Association, I want to thank you for the replenishment of the damage fund. We administer it free of cost, no overhead, but we're pleased to do it as a citywide benefit. Zero empty Spaces, thanks for your support. This is really exciting. Real Cook found this opportunity. We've driven with it. The mayor announced at our annual meeting, they're opening up, they have an open house on August 8th, up to 25 artists.

357

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00:57:37.410 --> 00:57:54.199
Boardroom: Highly modular. Gordon Properties is offering the space for free for 6 months, month to month. If and when they get it leased, we have other vacant spaces in the downtown and throughout the city where this can go. So this is going to be really, really fun and exciting. I have flyers, if you can pass it around, that'd be great.

358
00:57:54.210 --> 00:58:12.780
Boardroom: I just want to say on the security camera thing, make sure you look at Safe City Connect out of San Francisco. Incredible, high-integrity, local company. They have over 1,000 cameras in San Francisco, 500 in Oakland, and make sure that they're included in the evaluation. Thank you so much. Thank you, John.

359
00:58:19.290 --> 00:58:38.650
Boardroom: Good evening, Council and Mayor. My name is Jason Martins. I live in District 3. I want to talk about item 19. First of all, I think it's a little embarrassing, honestly, that you don't put the name of or what this is about in the title. I would love for more transparency about, like, what this item is. It doesn't even say, it just says an RFP.

360
00:58:38.680 --> 00:58:54.989
Boardroom: Second, I want to say I strongly encourage you to not proceed with this RFP process. Councilmember Trigub reported that 95% of the calls he got in his office were opposed to Flock, and the reason is Flock is a terrible company.

361
00:58:54.990 --> 00:58:58.209
Boardroom: And the alternatives that you have, Axon, Motorola.

362
00:58:58.210 --> 00:59:15.570
Boardroom: they are similarly terrible companies. They have active contracts with ICE that also go against our sanctuary policies. So I strongly encourage you to not proceed with this RFP process, because ultimately what the city… the people of Berkeley are saying is we don't want surveillance.

363
00:59:15.570 --> 00:59:16.440
Boardroom: Thank you.

364
00:59:16.780 --> 00:59:18.230
Boardroom: Thank you.

365
00:59:25.640 --> 00:59:30.859

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Boardroom: Hi, I'm Terry Garrettz, and I'm the owner of the Golden Duplex.

366
00:59:30.860 --> 00:59:51.089
Boardroom: And I'm very upset about this initiative. Sorry, this is actually something that's, on the action calendar, not on the consent calendar. Yes, it's on the, it's on a later time to comment, so right now we're just commenting on consent calendar. No worries, so just come back a little bit later. Thank you.

367
00:59:54.990 --> 00:59:56.640
Boardroom: Good evening, Mayor.

368
00:59:56.640 --> 01:00:15.489
Boardroom: Ishi, and good evening, council members. I am Janelle Chan, I'm the CEO of East Bay Asian Local Development Corporation, or EBALTC, and I'm commenting on item number 29. EBALTC's a non-profit, affordable housing provider and community developer, quite frankly. We build vibrant.

369
01:00:15.820 --> 01:00:16.870
Boardroom: safe.

370
01:00:16.870 --> 01:00:40.359
Boardroom: and healthy neighborhoods, and places of belonging. And we've been in the East Bay for 50 years, and just finishing up a senior project on Lake Merritt BART station. Excited about that, and I'm excited to be here with our partners, Colleen and Insight Housing Team. Thank you for your continued support of North Berkeley BART station. The master plan housing that's going to be in there, it's been

371
01:00:40.360 --> 01:01:01.180
Boardroom: A long time coming, and it's essential to keeping it on the track this vote today. Berkeley families are under enormous housing pressure. The North Berkeley Bar Station is really, truly a rare opportunity for us to provide housing in a place that has an amazing community. So thank you. I urge the council members to vote. Thank you.

372
01:01:07.620 --> 01:01:20.489
Boardroom: Good evening, Mayor, Council Members, City Manager. I'm Colleen Egan with Insight Housing, your local service provider and developer. Thank you so much for your continued partnership with the North Berkeley BART Development.

373
01:01:20.490 --> 01:01:40.020

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Boardroom: I respectfully ask for your support with agenda item number 29. Insight Housing is excited to welcome a Balsi to step in as the lead developer. Their expertise, combined with our experience providing permanent supportive housing and services, creates a strong partnership to help bring this vision to life.

374
01:01:40.050 --> 01:01:58.340
Boardroom: Approval of the requested pre-dev funds is critical to keeping this project on schedule as we move toward construction financing and ultimately groundbreaking and moving people into much-needed housing. So thank you again for your support on this agenda item, and looking forward to seeing how it goes.

375
01:01:58.830 --> 01:02:00.250
Boardroom: Thank you.

376
01:02:08.250 --> 01:02:28.840
Boardroom: On item 19, you directed that the PAB would have a role, a strong role in reviewing this, but it has not been reviewed by the PAB. It has not been on their agenda. They are a Brown Act. They can't review things without doing it in public on their agenda. I don't know if you're expecting them to somehow have a meeting between… over the holiday weekend between now and July 8th.

377
01:02:28.900 --> 01:02:43.640
Boardroom: You really should stop, because right now, the Supreme Court decision in Chatri v. U.S. has really, changed what you might be able to expect from how the surveillance data collected in this way could be used legally.

378
01:02:43.640 --> 01:02:52.840
Boardroom: You need to look at that. Why don't you have the actual draft of the RFP accompanying this and other documentation available in tonight's agenda?

379
01:02:52.950 --> 01:03:13.249
Boardroom: I don't see how you can have a group discussion about whether it's actually going to be compliant, will result in a contract that's compliant with Berkeley's policies and appropriate for the city's needs, and finally, to commit this much money with the possibility of millions more in lawsuits at a time when we are in dire financial straits does not seem responsible.

380
01:03:19.460 --> 01:03:24.670
Boardroom: Good evening, Mayor and Councilmembers and Staff. I'm Angela Upshaw, COO with Inside Housing.

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381
01:03:24.710 --> 01:03:42.859
Boardroom: And I'd like to express my appreciation to each of you for your consideration of item number 29, for the pre-development funding approval for the North Berkeley BART project. Also want to express my gratitude and unwavering partnership for the City and Housing staff. They've stood alongside Inside Housing since 2022.

382
01:03:42.860 --> 01:03:49.440
Boardroom: And the part of the Developer Selection, advocating for the first 100% PSH development at the North Berkeley BART station.

383
01:03:49.440 --> 01:03:58.829
Boardroom: Also want to express my gratitude for our partners at Bonsai. I'm grateful for their continued partnership and their instrumental role in making sure this project stays on track.

384
01:03:58.950 --> 01:04:10.569
Boardroom: And the funding momentum is real. A Homekey Plus application has already been submitted to HCD in partnership with the city, with the tax credit application coming soon, and this approval.

385
01:04:10.570 --> 01:04:23.050
Boardroom: Keeps that momentum moving. And this vote unlocks construction. Approving the pre-development funding advances and lets the project move toward construction, with the finance closing. So, thank you so much for your support. Thanks, Angela. Thanks.

386
01:04:28.970 --> 01:04:32.919
Boardroom: Hello, I'm here to, comment on item number 19.

387
01:04:34.390 --> 01:04:45.860
Boardroom: I just want to, highlight, I'm sure you've heard this before, but I just want to highlight that ALPR cameras are essentially creating databases for

388
01:04:46.170 --> 01:04:52.050
Boardroom: Law enforcement and others to search and be able to have access to.

389
01:04:52.150 --> 01:05:07.630
Boardroom: all of our habits, our movements, and our associations on a daily basis, without the need for a warrant, have hot lists so that they

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can track, our movement without the need for a warrant. This is something ACLU is suing San Jose for at the moment.

390
01:05:07.840 --> 01:05:13.700
Boardroom: And these kinds of things have, you know, they've been shown to, share

391
01:05:13.830 --> 01:05:32.300
Boardroom: and have partnerships with DHS, ICE, have, completely insecure and inadequate security, be vulnerable to hacking, and, irresponsibly use, third-party data brokers for, other kinds of data that they, package with things. So, thank you for… I hope you consider it carefully.

392
01:05:32.890 --> 01:05:33.580
Boardroom: Thank you.

393
01:05:43.110 --> 01:05:47.449
Boardroom: Hello, I'm gonna need another minute. If somebody offer me another minute? Thank you.

394
01:05:48.050 --> 01:05:48.890
Boardroom: Okay.

395
01:05:50.090 --> 01:05:58.509
Boardroom: Greetings, Councilmember and Mayor Eshii. Thank you for listening to our comments. I am Sally Nelson in Berkeley for 49 years.

396
01:05:59.160 --> 01:06:04.980
Boardroom: I challenge the assumption… I am concerned about the fascination with surveillance.

397
01:06:05.090 --> 01:06:09.540
Boardroom: And today, about agenda Items 19 and 46.

398
01:06:09.730 --> 01:06:15.209
Boardroom: I challenge the assumption that surveillance creates greater public safety.

399
01:06:15.380 --> 01:06:22.870
Boardroom: A safe situation is preventative, and it is rare to document what injury or crime did not happen.

400

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01:06:23.330 --> 01:06:37.950
Boardroom: Surveillance notifies us during and after an injury or crime occurs. It does not necessarily make us more safe. Clearly, it is making us all anxious about our privacy and our personal agency.

401
01:06:38.630 --> 01:06:51.229
Boardroom: The cost of proposed surveillance tools is $2,408,500, while Berkeley City budget is already $30 million in debt.

402
01:06:51.310 --> 01:07:00.159
Boardroom: The city proposes to lay off employees and eliminate the funding of programs that truly are making us all more safe.

403
01:07:00.410 --> 01:07:04.530
Boardroom: Live Free is one excellent program that deserves more funding.

404
01:07:04.810 --> 01:07:22.879
Boardroom: We should be supporting programs that provide measurable benefits and building community which enhances safety. We should not be blanketing our city with multiple electronic surveillance devices. Move both agenda items off of the consent calendar and onto the action calendar.

405
01:07:23.030 --> 01:07:25.999
Boardroom: Thank you very much. Thank you.

406
01:07:39.820 --> 01:07:43.309
Boardroom: Of course, this is on item 19.

407
01:07:44.900 --> 01:07:48.900
Boardroom: First of all, look at the specifications on that sheet, okay?

408
01:07:52.160 --> 01:07:56.319
Boardroom: There are… Several vendors out there, possible.

409
01:07:57.430 --> 01:07:59.069
Boardroom: One, and only.

410
01:07:59.310 --> 01:07:59.990
Boardroom: one.

411
01:08:00.130 --> 01:08:03.690

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Boardroom: Fits those specifications really well.

412
01:08:04.330 --> 01:08:06.469
Boardroom: I think you know who I'm talking about.

413
01:08:08.560 --> 01:08:13.700
Boardroom: Secondly, Don't we have better use for 2.4 million books?

414
01:08:14.020 --> 01:08:16.410
Boardroom: And spying on Berkeley citizens?

415
01:08:19.109 --> 01:08:20.279
Boardroom: Thank you.

416
01:08:27.899 --> 01:08:29.300
Boardroom: Kelly Hammergren?

417
01:08:29.680 --> 01:08:35.999
Boardroom: I don't have a speech written. I've already… Sent you two emails.

418
01:08:36.109 --> 01:08:41.329
Boardroom: The second one asking you to withdraw number 19.

419
01:08:41.790 --> 01:08:49.840
Boardroom: I think this is a poor decision, and watching how Council acts, and…

420
01:08:49.970 --> 01:08:55.669
Boardroom: how things go forward. You might say that the train has left the station.

421
01:08:55.979 --> 01:08:59.680
Boardroom: And you are just going to all go forward.

422
01:09:00.670 --> 01:09:05.660
Boardroom: I am concerned at each step of the way that the train

423
01:09:06.010 --> 01:09:11.669
Boardroom: Of surveillance just keeps moving faster and faster and faster.

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424
01:09:12.130 --> 01:09:19.689
Boardroom: And… I think it is time to stop, to pull the emergency brake.

425
01:09:20.529 --> 01:09:31.110
Boardroom: And to really consider what you're doing, and the impact on the public, and what kind of risks you are taking for this city. Thank you. Thank you, Kelly.

426
01:09:35.890 --> 01:09:47.899
Boardroom: Hi, I'd strongly encourage you to reject this Item 19 RFP and all mass surveillance in general. Many AI surveillance technologies are relevant to our topics tonight, so I offer you this warning.

427
01:09:48.130 --> 01:09:57.970
Boardroom: Americans overwhelmingly hate forced AI, we hate forced data centers, and we hate state surveillance, because they're all anathema to American values.

428
01:09:58.860 --> 01:10:13.400
Boardroom: I talk to people all over this country, Democrats, Republicans, I even have some mega friends who hate this. I'm gonna ask you, like, please do not make the mistake of ending your political career by enabling the suppressive state surveillance.

429
01:10:13.950 --> 01:10:20.429
Boardroom: Coming up on America's 250th, I really… I have to demand our freedom from surveillance.

430
01:10:20.580 --> 01:10:23.230
Boardroom: Do the right thing for America's birthday. Thank you.

431
01:10:24.390 --> 01:10:25.560
Boardroom: Thank you.

432
01:10:28.050 --> 01:10:50.459
Boardroom: Hello, my name is Alan Kane, I'm the Executive Director of the Solano Avenue Association. I would just like to, again, thank you for supporting the Solano Avenue stroll. I know that the Council both considered it and supported it, so I would actually like to thank you by name. Of course, Mayor Ishii, Vice Mayor Trey Gubb, thank you so much. Councilperson Blackaby, Councilperson Lenopara, Councilperson Caselwani.

433

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01:10:50.460 --> 01:10:54.289
Boardroom: And of course, Councilperson O'Keefe, thank you so much.

434
01:10:54.320 --> 01:10:56.129
Boardroom: And I know that,

435
01:10:56.290 --> 01:11:02.669
Boardroom: Ben Bartlett and Terry Taplin are out there in the universe as well. Thank you to them as well. Thank you. Thank you, Alan.

436
01:11:11.830 --> 01:11:19.279
Boardroom: Hi, my name is Jason Bellevue. I am actually the president of the Solano Avenue Association. I've been on that board 20 years now.

437
01:11:19.470 --> 01:11:25.050
Boardroom: I am a Berkeley resident, and I can't thank you enough for at least helping us get to a point where we can

438
01:11:25.550 --> 01:11:32.280
Boardroom: work on different stuff for next year, because that means the world to us, and this is a very special event, so thank you so much.

439
01:11:32.720 --> 01:11:33.780
Boardroom: Thank you!

440
01:11:38.010 --> 01:11:46.240
Boardroom: Carol Morasovic. So as to item 19, you've already made the decision that you want to do the RFP.

441
01:11:46.240 --> 01:11:59.020
Boardroom: However, there's been additional information that has come in about San Francisco since then, if you didn't already have enough information. But regardless of that, if you move ahead with this, it should be delayed.

442
01:11:59.070 --> 01:12:07.750
Boardroom: Until the PAB reviews the RFP. It just should be, because when you don't do that, it…

443
01:12:07.970 --> 01:12:19.330
Boardroom: It diminishes your credibility that you respect the input of the Police Accountability Board. There should at least be that input from them

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444
01:12:19.560 --> 01:12:22.209
Boardroom: Before this proceeds. Thank you.

445
01:12:23.850 --> 01:12:25.430
Boardroom: Thank you.

446
01:12:28.790 --> 01:12:32.629
Boardroom: I have a minute from this person and from over here.

447
01:12:33.190 --> 01:12:40.030
Boardroom: So that's 3 minutes total, in case you can't count. Sorry, your hand's one more time, I missed.

448
01:12:40.770 --> 01:12:42.980
Boardroom: She'll be paying attention.

449
01:12:43.100 --> 01:12:48.909
Boardroom: Who, thank you. Sometimes it's hard to see behind. And who was the second person? Thank you.

450
01:12:53.260 --> 01:13:03.560
Boardroom: Public Safety Technology Tools for item number 19. Up to 4-year procurement issued for a single RFP with divisible

451
01:13:03.890 --> 01:13:14.010
Boardroom: Awards. Each of the six components below may bid and be awarded separately on a combination. Drone at first responder, drones and docking stations.

452
01:13:14.160 --> 01:13:21.199
Boardroom: Unmanned aircraft systems, UAS field deployed, automated license plate readers.

453
01:13:21.330 --> 01:13:32.309
Boardroom: Pan, tilt, zoom, PTZ, Fixed Cameras, investigate software and platform, privately owned camera interrogation system.

454
01:13:32.490 --> 01:13:39.230
Boardroom: We don't need any of this. This is surveillance in a fascist… World that we live in.

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455
01:13:39.880 --> 01:13:42.700
Boardroom: I guess y'all know that, except for maybe one.

456
01:13:43.390 --> 01:13:50.149
Boardroom: Because you kind of act a little fascist a lot of times, sadly. Pay attention, I'm talking! Thank you.

457
01:13:53.410 --> 01:14:00.849
Boardroom: We don't need this surveillance, especially when BPD has a problem with racial profiling.

458
01:14:01.540 --> 01:14:05.440
Boardroom: And all the things that are going on in this country.

459
01:14:06.520 --> 01:14:10.309
Boardroom: And in the world that we're living in, with 47,

460
01:14:12.270 --> 01:14:16.269
Boardroom: and all the fascism that they're doing, and the… and ICE…

461
01:14:16.460 --> 01:14:21.690
Boardroom: And all these things, people are getting killed all the time, we have a genocide going on.

462
01:14:21.950 --> 01:14:27.430
Boardroom: And you want to bring more surveillance to Berkeley to spy on your citizens?

463
01:14:28.260 --> 01:14:34.160
Boardroom: You should be ashamed of yourself. You should take this, and it should not be on the consent calendar.

464
01:14:34.580 --> 01:14:37.779
Boardroom: So 3 of y'all need to pull it off consent.

465
01:14:38.550 --> 01:14:45.440
Boardroom: And you should have listened to the 300 or 400 people that were here on May 7th that all opposed

466
01:14:46.300 --> 01:14:47.620
Boardroom: Surveillance.

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467
01:14:49.480 --> 01:14:52.300
Boardroom: Not only, like, one person.

468
01:14:52.750 --> 01:14:58.579
Boardroom: was for the surveillance. Who's here opposed to surveillance tonight?

469
01:15:02.700 --> 01:15:04.830
Boardroom: Most of the people here…

470
01:15:05.070 --> 01:15:21.969
Boardroom: Can I say, no flock for Berkeley? No, all the Axion, or any of those people, because they're all bad companies. They all follow the same M.O. They give their information to ICE.

471
01:15:23.640 --> 01:15:26.010
Boardroom: Or Homeland Security.

472
01:15:26.570 --> 01:15:31.180
Boardroom: We're bombing all these countries, killing all these people, and you want to come?

473
01:15:31.340 --> 01:15:33.570
Boardroom: have this crap happen in Berkeley.

474
01:15:33.940 --> 01:15:37.469
Boardroom: When, you know, who knows if we're gonna go into a civil…

475
01:15:37.580 --> 01:15:43.239
Boardroom: war in this country with all the chaos that's going on. We don't need this.

476
01:15:43.580 --> 01:15:49.930
Boardroom: We need to feel safe, we need to protect ourselves, That's not gonna protect us.

477
01:15:50.260 --> 01:15:52.339
Boardroom: It's gonna really mess us up.

478
01:15:53.330 --> 01:15:55.980

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Boardroom: Do better, free Palestine. Thank you.

479
01:15:59.660 --> 01:16:08.700
Boardroom: Okay, online public art? Yes, the time, on the Zoom, if you wanna… Provide comments on consent.

480
01:16:08.890 --> 01:16:13.320
Boardroom: calendar items or information calendar items, now it's time to raise your hand.

481
01:16:14.740 --> 01:16:19.149
Boardroom: Currently have 9 hands raised. First speaker is Tim Frank.

482
01:16:20.130 --> 01:16:21.310
Boardroom: We have one minute.

483
01:16:21.830 --> 01:16:24.279
Tim Frank: Yes, thank you very much, and can you hear me now?

484
01:16:24.560 --> 01:16:25.280
Boardroom: Yes.

485
01:16:25.900 --> 01:16:33.989
Tim Frank: Thank you, and I'm Tim Frank, and I'm representing the Alameda County Building and Construction Trades Department, Council.

486
01:16:33.990 --> 01:16:48.629
Tim Frank: And I wanted to first speak in support of, progress for the North Berkeley BART. It's a project that we've been following for a long time and are very excited about, and appreciate the work that you're doing to help make sure that it comes to reality.

487
01:16:48.630 --> 01:17:08.489
Tim Frank: And then the second thing I wanted to comment on was our act of support, obviously, for item number 40, and we appreciate the leadership of Council Members Tree Grubb and Bartlett and Taplin in bringing this measure, this, motion to you, in support of

488
01:17:08.630 --> 01:17:11.270
Tim Frank: estate…

489
01:17:11.650 --> 01:17:24.540

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Tim Frank: Senate Bill, 1383, by our, esteemed local, state senator, Jesse Aragin, which would provide corrective, improvement of the local density bonus.

490
01:17:24.540 --> 01:17:26.670
Boardroom: Thank you.

491
01:17:27.360 --> 01:17:29.240
Tim Frank: Override local labor.

492
01:17:29.240 --> 01:17:35.719
Boardroom: Thanks, thanks for your comments, sorry, your time is up. Next is, musa Tariq?

493
01:17:38.120 --> 01:17:39.330
Musa Tariq (CAIR-SFBA): Hi, can you hear me?

494
01:17:39.530 --> 01:17:40.360
Boardroom: Yes.

495
01:17:40.360 --> 01:18:03.899
Musa Tariq (CAIR-SFBA): Perfect. Good evening, Mayor Ishii and Council members. My name is Musa with CARE, the Council on American Islamic Relations, speaking on item 19. We urge you to reject this surveillance vendor request for proposal. Last month, Berkeley residents overwhelmingly showed up and stopped the flock expansion. This RFP aims to bring back flock. The narrow criteria and short timeline of this proposal favors flock, despite being framed as a neutral procurement.

496
01:18:03.900 --> 01:18:28.679
Musa Tariq (CAIR-SFBA): ALPR systems like FLOC collect data and build detailed location histories that can be accessed by thousands of law enforcement agencies nationwide and shared with ICE, all without a warrant. There have been documented cases of abuse across jurisdictions, including tracking people seeking reproductive healthcare and officers stalking and harassing partners. These abuses are only discovered when victims come forward, meaning the true scale is vastly underreported.

497
01:18:28.700 --> 01:18:37.210
Musa Tariq (CAIR-SFBA): Mass surveillance is antithetical to public safety. Please uphold the voice of Berkeley residents and pull this RFP from the consent calendar. Thank you so much.

498
01:18:37.890 --> 01:18:38.770

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Boardroom: Thank you.

499
01:18:42.210 --> 01:18:44.020
Boardroom: Okay, next.

500
01:18:47.190 --> 01:18:51.450
Boardroom: Next speaker is Jordan and Avi.

501
01:18:56.140 --> 01:19:03.510
Jordan & Avi: Hi, my name's Jordan Parker. I am calling to voice my opposition to any contracting with Flock.

502
01:19:03.510 --> 01:19:26.459
Jordan & Avi: As many other speakers have already said, you overwhelmingly heard from your constituents that we do not want the surveillance technology in our communities. It has already been fed into ICE, it has already been used by officers stalking their girlfriends, and none of this is news to any of you. What might be news to you is the fact that I've never seen Berkeley as organized as we are against Flock.

503
01:19:26.460 --> 01:19:44.899
Jordan & Avi: I've never seen people as activated as we are against flock, and I've never seen people as unified. So understand that we are tracking your votes very closely, and we are prepared to run candidates in every district that kowtows, hedges, or allows flock to proliferate in our communities. Thank you.

504
01:19:48.410 --> 01:19:51.999
Boardroom: Next is a caller with a phone number ending in 211.

505
01:19:58.320 --> 01:19:59.690
1510****211: I totally agree.

506
01:19:59.900 --> 01:20:01.309
1510****211: Who's the last caller?

507
01:20:01.520 --> 01:20:06.070
1510****211: Totally agree with that. My point about two things. First, concerns item number four.

508
01:20:06.170 --> 01:20:09.989
1510****211: Our business contributed more than a million dollars to business.

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509
01:20:10.520 --> 01:20:14.809
1510****211: Visitor business finance through business launching and sales tax.

510
01:20:14.980 --> 01:20:18.270
1510****211: Second, thing, what I'd like to say.

511
01:20:18.400 --> 01:20:27.150
1510****211: is, how do we deal with the current situation we're right now? It affects everybody. You, I, and everybody else, as far as safety, and all of that.

512
01:20:27.480 --> 01:20:37.340
1510****211: Well, there is a beautiful place, parking… the parking situation as well. Very quickly, I'll say very quickly. New place on Kittridge and Shaddock that took over Beats.

513
01:20:37.660 --> 01:20:51.560
1510****211: Beautiful place, a lot of beautiful employees, beautiful coffee, beautiful tea. It is empty, most of the time, because of the parking, Meetings are maids running around, and people go to get a cup of coffee for 4 or 5 bucks, they got their $60 ticket.

514
01:20:51.860 --> 01:20:54.099
1510****211: In their car, and they never come back.

515
01:20:54.360 --> 01:21:00.660
1510****211: Let us take care of the parking situation. You are making it a milking cow.

516
01:21:00.660 --> 01:21:01.320
Boardroom: Thank you.

517
01:21:01.320 --> 01:21:02.460
1510****211: Comfort for people.

518
01:21:02.460 --> 01:21:04.580
Boardroom: Thanks for your public comment.

519
01:21:05.270 --> 01:21:09.719
Boardroom: Next, speaker is Joaquin Martillo.

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520
01:21:22.580 --> 01:21:23.590
Boardroom: Joaquin?

521
01:21:32.670 --> 01:21:36.949
Joachim Martillo: So, I'm very skeptical of Flock's contractual.

522
01:21:37.160 --> 01:21:48.159
Joachim Martillo: terms. As far as I can tell, Flock represents that the contracting customer owns the customer data generated by its flock devices.

523
01:21:48.160 --> 01:21:57.760
Joachim Martillo: But Flock retains contractual license rights to process and use that data for the service and product improvement.

524
01:21:57.940 --> 01:22:08.369
Joachim Martillo: And not every related record in the Flock Platform necessarily falls within the agency-owned customer data category.

525
01:22:08.770 --> 01:22:10.369
Joachim Martillo: And that's a real problem.

526
01:22:12.090 --> 01:22:13.090
Joachim Martillo: That's all.

527
01:22:13.560 --> 01:22:25.850
Boardroom: Thank you. I just want to clarify to folks online, there is no contract with Flock on the agenda this evening, so just in case folks are, are, you know, confused about that, I just want to make sure that that's clear.

528
01:22:32.030 --> 01:22:33.819
Boardroom: Okay, next speaker.

529
01:22:35.300 --> 01:22:37.340
Boardroom: It just says virtual meetings.

530
01:22:39.680 --> 01:22:41.169
Boardroom: But you should be able…

531

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01:22:41.480 --> 01:22:42.200
Virtual Meetings: Hi.

532
01:22:42.720 --> 01:22:43.719
Boardroom: Yep. Go ahead.

533
01:22:43.720 --> 01:22:44.540
Virtual Meetings: embassy.

534
01:22:45.520 --> 01:22:48.090
Virtual Meetings: Wendy Alston?

535
01:22:49.500 --> 01:22:51.279
Virtual Meetings: I'm off, Wendy. Go ahead.

536
01:22:51.570 --> 01:22:53.880
Virtual Meetings: I'm… I'm not too.

537
01:22:54.860 --> 01:22:56.959
Virtual Meetings: You want me to go back on? Yes.

538
01:22:58.640 --> 01:23:02.779
Virtual Meetings: My name is Wendy Alpin.

539
01:23:06.440 --> 01:23:11.620
Boardroom: Oh. Wendy, you're cutting in and out, we can't quite hear you. You're muted now.

540
01:23:16.710 --> 01:23:17.460
Boardroom: Restart.

541
01:23:23.930 --> 01:23:26.570
Virtual Meetings: I apologize.

542
01:23:29.260 --> 01:23:34.350
Virtual Meetings: I'm leaving. You stay on. I apologize. My name is Wendy Alston.

543
01:23:34.350 --> 01:23:53.739
Virtual Meetings: I live in District 4, speaking on behalf of Berkeley Friends Meeting with residents throughout the city, asking you to remove

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item 19 from the consent calendar, so there can be a fuller discussion regarding the proposal to spend $2.4.

544
01:23:53.780 --> 01:24:02.590
Virtual Meetings: Plus million dollars on various mass surveillance, technology, data integration, etc.

545
01:24:03.340 --> 01:24:05.389
Virtual Meetings: the RFP…

546
01:24:07.410 --> 01:24:16.910
Virtual Meetings: We would like to have a public engagement process. If there is to be one, we're personally opposed to it, but if you are going to proceed.

547
01:24:16.910 --> 01:24:30.530
Virtual Meetings: that the content of the RFP is really critical to this process and needs carefully monitored and supervised by the Council, not just assigned to the department.

548
01:24:30.640 --> 01:24:35.210
Virtual Meetings: and or the city manager in finance. Thank you. Critical.

549
01:24:35.210 --> 01:24:36.839
Boardroom: Thank you, Wendy, thanks for your comment.

550
01:24:36.840 --> 01:24:38.310
Virtual Meetings: Provisions!

551
01:24:39.070 --> 01:24:40.930
Boardroom: Next is Rocky Chow.

552
01:24:44.770 --> 01:24:57.690
Rocky Chau (he/him): Hi, good evening. My name is Rocky Xiao. I'm with the Berkeley Animal Rights Center, and I'd like to state my opposition to renewing of any contract with Flock or any surveillance state companies.

553
01:24:57.740 --> 01:25:17.470
Rocky Chau (he/him): These technologies are already and will continue to cost taxpayers millions of dollars that could easily be invested in building vibrant and resourced communities like libraries, healthcare, and schools and whatnot in our communities. ALPRs are always on

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surveillance systems that collect and store information on everyone who drives.

554
01:25:17.520 --> 01:25:35.970
Rocky Chau (he/him): Far fewer than 1% of scanned cars are connected to any sort of wrongdoing. So, like, 99% of scanned cars have not committed any offenses that law enforcement know of. But ALPRs still store everyone's detailed travel history. This infringes on our Fourth Amendment

555
01:25:35.970 --> 01:25:47.760
Rocky Chau (he/him): privacy rights, and breaks other laws that are supposed to protect us from police overreach. The ACLU and the Electronic Frontier Foundation sued the City of San Jose over the ALPR cameras.

556
01:25:47.760 --> 01:25:50.359
Boardroom: Thank you, Rocky. Thanks. Your time is up.

557
01:25:51.940 --> 01:25:53.559
Boardroom: Next is Marilyn.

558
01:25:59.690 --> 01:26:02.099
Boardroom: Marilyn, you should be able to unmute.

559
01:26:06.880 --> 01:26:09.290
Marilyn C: Hello, my name is Marilyn Cleveland.

560
01:26:09.440 --> 01:26:15.340
Marilyn C: I'm here on behalf of the Berkeley Society of Friends, Quakers, with members in every council district.

561
01:26:15.710 --> 01:26:22.219
Marilyn C: As stated in the prior written comments we provided with regard to items 19 and 46,

562
01:26:22.480 --> 01:26:40.929
Marilyn C: We support the Police Accountability Board and Public Safety Policy Committee findings that the proposed policies, the surveillance Acquisition report, and the RFP and proposed contract provisions are insufficient for the City Council to adopt as is and proceed with the RFP process.

563
01:26:41.020 --> 01:26:53.710

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Marilyn C: Therefore, we ask that the RFP be pulled from the consent calendar and not be approved this evening. We also asked the City Council to consider the unintended consequences of proceeding

564
01:26:53.710 --> 01:27:08.630
Marilyn C: with these surveillance measures, and the impacts of these surveillance tools on our free speech and other protected rights. With the actions by our federal government to curtail these rights, we ask that the City of Berkeley continue to be a safe haven for all our people.

565
01:27:08.670 --> 01:27:10.519
Marilyn C: Thank you for your attention.

566
01:27:10.520 --> 01:27:11.630
Boardroom: Thank you.

567
01:27:12.520 --> 01:27:14.730
Boardroom: Next is James McFadden.

568
01:27:17.600 --> 01:27:23.000
James Mcfadden: Hmm, thank you, please pull Nadine off the, consent calendar.

569
01:27:24.000 --> 01:27:40.889
James Mcfadden: But I thought, when I seen something like this, I wonder why the Democrats are always trying to turn our country into some kind of a surveillance state. This is not a Republican thing. This is a Democrat thing, because all of you on the board are Democrats. You know, it makes me wonder why anybody would want to be in that party.

570
01:27:41.090 --> 01:27:48.890
James Mcfadden: Are you ignorant of what's going on that Palantir's been doing in Israel, in the West Bank, and in Gaza?

571
01:27:49.250 --> 01:27:58.509
James Mcfadden: Are you trying to create a world that's similar here? Are you going to put in place the same kind of surveillance state so that… to control us here?

572
01:27:58.900 --> 01:28:11.220
James Mcfadden: I also wonder if any of you have even read any books on the subject. Have you read Surveillance Valley, or Techno-feudalism? Have you educated yourself on this, or are you just voting blind on this issue?

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573
01:28:11.380 --> 01:28:18.509
James Mcfadden: You guys need to educate yourself on what this world is being changed into by the tech bros in,

574
01:28:18.890 --> 01:28:22.069
James Mcfadden: They're in, Silicon Valley.

575
01:28:22.070 --> 01:28:24.450
Boardroom: Thank… thank you. Thanks for your comment.

576
01:28:25.270 --> 01:28:30.609
Boardroom: Next is… Do shine?

577
01:28:34.760 --> 01:28:49.370
Dewshine: Hi, this is Daria Rubel, a resident of District 1, and a City Council candidate in District 1 as well. I would also like to, request that item 19 be pulled from consent calendar.

578
01:28:49.370 --> 01:28:56.789
Dewshine: After our discussion on May 7th, it's very clear to me that the,

579
01:28:57.130 --> 01:29:05.550
Dewshine: that it's time to reconsider whether this technology is something the City of Berkeley needs at all, and, whether it could be

580
01:29:06.160 --> 01:29:15.340
Dewshine: Is it appropriate for us to put out an RFP if, it would be better, suited for us to just

581
01:29:15.460 --> 01:29:20.559
Dewshine: not request this technology in the first place. Thank you for your consideration.

582
01:29:21.150 --> 01:29:22.550
Boardroom: Thank you, Daria.

583
01:29:23.460 --> 01:29:31.880
Boardroom: And… The last speaker is… Giraffe.

584

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01:29:33.780 --> 01:29:36.229
Boardroom: Oh, there's one more. But giraffe, you're up.

585
01:29:37.570 --> 01:29:44.110
Giraffe?: Thank you so much. My name is Susan Hobart. I'm a long-time Bay Area resident, currently in Oakland.

586
01:29:44.260 --> 01:29:52.119
Giraffe?: And in case it's not obvious, I'll just be brief. What they all said, let's remove…

587
01:29:52.600 --> 01:30:02.569
Giraffe?: whatever it is, number 19 from the consent process. Flock is a horrible idea, and hopefully you've all figured that out. Thank you.

588
01:30:04.620 --> 01:30:05.600
Boardroom: Thank you.

589
01:30:06.040 --> 01:30:09.059
Boardroom: Okay, one more speaker is JL.

590
01:30:12.580 --> 01:30:13.959
JL: Hello, can you hear me?

591
01:30:14.850 --> 01:30:15.830
Boardroom: Yes.

592
01:30:15.830 --> 01:30:16.520
JL: Thank you.

593
01:30:16.550 --> 01:30:36.480
JL: I agree with all of the others who are calling for item 19 to be pulled from the consent calendar. I'm a long-time Berkeley resident, we do not want this technology here at all, and I encourage everyone to look up the reasons that other city councils have canceled their flock contracts, because they've learned things that either put the city at risk.

594
01:30:36.480 --> 01:30:39.749
JL: or show that Flock was lying about how it uses data.

595
01:30:39.750 --> 01:30:43.290

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JL: All of these things are out there, including ways that

596
01:30:43.390 --> 01:30:50.760
JL: Police agencies themselves can misuse the data with looking it up, looking things up for personal, reasons, looking up

597
01:30:50.930 --> 01:31:00.590
JL: people that they want to stock for personal reasons. So, there's just a whole host of issues with this, and I concur with everyone else who wants to pull it from the consent calendar.

598
01:31:00.880 --> 01:31:01.680
JL: Thank you.

599
01:31:03.570 --> 01:31:08.380
Boardroom: There's one more speaker here. We have, Kelsey Jackson.

600
01:31:12.590 --> 01:31:29.789
Kelsea Jackson, PhD: Hi, thank you so much. This is KJ Jackson calling and representing District 1, a future city council member. I firstly, just wanted to elevate the voices of everyone that I've heard today. In the earlier flock meeting that was had, and the 300 or 400 people that did show up.

601
01:31:29.920 --> 01:31:49.310
Kelsea Jackson, PhD: who elevated their voices and concerns. The response that I saw was not ideal and definitely not representative of the majority of the people in that room. I really want to challenge the current City Council members to listen to your constituents and understand that Flock originated from,

602
01:31:49.980 --> 01:31:57.000
Kelsea Jackson, PhD: originated from Israel with Red Wolf and Blue Wolf as it, as it still currently is…

603
01:31:57.190 --> 01:32:13.200
Kelsea Jackson, PhD: watching the people of both Palestine and Israel, we're on a similar track, just as the previous people in today's meeting have communicated. So, again, I just want to challenge y'all to listen to your constituents. It's terribly important. This was the first sanctuary city of the country.

604
01:32:13.580 --> 01:32:18.689

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Kelsea Jackson, PhD: This… this city, Berkeley, is setting a very important president that we need to…

605
01:32:18.690 --> 01:32:23.680
Boardroom: Thank you. Your time's up. Thank you. One more speaker, Sasha.

606
01:32:25.560 --> 01:32:27.959
Boardroom: Oh, where'd Sasha go here, Sasha?

607
01:32:30.940 --> 01:32:39.469
Sasha: Hi, yes, this is Sasha Futrin, District 1. You know, I'm not gonna speak about it, but I actually have this on in the background to…

608
01:32:39.470 --> 01:32:52.229
Sasha: speak to another item on your action calendar. However, I am reminded of the May 5th meeting that many spoke about, and well over 100 people spoke, and not one person

609
01:32:52.930 --> 01:33:06.310
Sasha: was in favor of flock. They were all voices against it. And yet that… those voices were entirely ignored. And I'm really wondering, do you all have anything to say about why you hear people speak

610
01:33:06.670 --> 01:33:16.949
Sasha: The public. What's the point of having a comment section if you pay no attention to the public? And I'd really love to hear one of you at least address that. Thank you.

611
01:33:18.230 --> 01:33:19.810
Boardroom: Thank you.

612
01:33:20.500 --> 01:33:24.129
Boardroom: I think that that is the remainder of our public comments.

613
01:33:25.300 --> 01:33:41.549
Boardroom: That's it, that's all. Okay. Alright, I do just want to, again, reiterate for folks that this is an RFP that's on the consent calendar, which was the request by the Council at the previous meeting about this topic of surveillance, but there is no flock contract on the…

614
01:33:41.550 --> 01:33:52.309

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Boardroom: calendar this evening, so I just want to make sure folks understand that. And then the other thing I wanted to say, I think there was a point brought up earlier, Kit, about the PAB

615
01:33:52.550 --> 01:34:08.900
Boardroom: and I just want to make sure folks understand that there have been PAB members on the review committee for this RFP, so they've been involved throughout the process, and they will continue to be involved, as the RFP language gets wrapped up. So I just want to make sure folks understand that, and I do thank everyone for their comments.

616
01:34:08.900 --> 01:34:15.020
Boardroom: Okay, and I think that… oh, yes, Councilmember Taplin is online, has his hand raised. Go ahead, Councilmember.

617
01:34:15.350 --> 01:34:16.960
Terry Taplin: Yes.

618
01:34:17.200 --> 01:34:21.840
Terry Taplin: Excuse me, and thank you, Madam Mayor, and thank you, everybody, and good evening, everyone.

619
01:34:23.140 --> 01:34:27.629
Terry Taplin: the mayor, has captured

620
01:34:27.780 --> 01:34:40.459
Terry Taplin: part of what I wanted to say already. I did want to say that at the May meeting… oh, also, sorry, I just kind of have to say this, but…

621
01:34:40.900 --> 01:34:50.639
Terry Taplin: One person spoke representing themselves as a representative of District 1, but District 1 has a representative who is elected to Council currently.

622
01:34:50.860 --> 01:34:58.449
Terry Taplin: And I do want to not erase the leaders that we do have representing our districts who were duly elected by the voters.

623
01:34:58.750 --> 01:35:08.779
Terry Taplin: That being said, at the May meeting, the action that Council took in response to the community was to issue an RFP, and that's what's before us.

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624
01:35:10.290 --> 01:35:15.229
Terry Taplin: So therefore, I move adoption of the action cal- of the Consent Calendar. Thank you.

625
01:35:15.230 --> 01:35:16.000
Boardroom: Second.

626
01:35:17.170 --> 01:35:22.150
Boardroom: Okay, thank you very much. Can we take the role in this, please?

627
01:35:22.860 --> 01:35:28.019
Boardroom: Okay, to approve the consent calendar, Councilmember Kisarwani? Yes. Taplin?

628
01:35:28.020 --> 01:35:28.910
Terry Taplin: Yes.

629
01:35:29.120 --> 01:35:31.599
Boardroom: Bartlett is absent. Trega…

630
01:35:31.850 --> 01:35:43.170
Boardroom: Aye. O'Keefe? Yes. McAvee? Yes. Lupara? Yes. Humbert? Yes. And Marishi? Yes. Okay, motion carries. Alright, thank you all very much.

631
01:35:43.430 --> 01:35:50.789
Boardroom: We are… let's see… I'm just… Scrolling through the consent calendar…

632
01:35:51.390 --> 01:36:01.849
Boardroom: Okay, for the action items this evening, we are gonna start off with… actually, I'm sorry, is Henry online? Yeah, but I can…

633
01:36:02.810 --> 01:36:05.300
Boardroom: Take it off. I can take this if you want to start.

634
01:36:05.680 --> 01:36:09.420
Boardroom: Are you moving to this next one? Sure, yes, I was gonna move us on to Action Calendar, yeah.

635
01:36:09.790 --> 01:36:26.680

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Boardroom: So, if we could go to item number 43, which is the borrowing of funds and the sale of issuance of FY2026-2027 Tax and Revenue anticipation Notes. Thank you. Thank you, Madam Mayor. This is an annual item that we bring before Council to help us bridge,

636
01:36:26.680 --> 01:36:31.409
Boardroom: A funding gap between when we receive the revenues we need to, run the city.

637
01:36:31.460 --> 01:36:35.400
Boardroom: And so it's… basically, we're just asking you for your approval to

638
01:36:35.560 --> 01:36:48.280
Boardroom: borrow these funds, as a bridge until we get property tax in that then we use to pay the bills that we have before us. So it's a straightforward item that we do every year.

639
01:36:53.060 --> 01:36:54.120
Boardroom: That's all.

640
01:36:54.420 --> 01:36:57.629
Boardroom: Thank you. Okay, any questions?

641
01:36:57.940 --> 01:36:59.190
Boardroom: From Councilmembers?

642
01:37:01.100 --> 01:37:02.289
Boardroom: Public comment?

643
01:37:02.290 --> 01:37:03.479
Henry Oyekanmi: This should be not.

644
01:37:04.210 --> 01:37:05.220
Boardroom: Oh, hi.

645
01:37:07.160 --> 01:37:09.170
Boardroom: Henry, are you trying to talk to us?

646
01:37:09.730 --> 01:37:13.209
Henry Oyekanmi: Yeah, I'm good. I think… I think the city manager did a perfect job.

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647
01:37:13.210 --> 01:37:21.000
Boardroom: Okay, thank you very much. Alright, yes, alright, is there any public comment on item number 43?

648
01:37:21.620 --> 01:37:29.349
Boardroom: Which is the borrowing of funds and the sale of issuance of FY2026-27 Tasks and Revenue Anticipation Notes.

649
01:37:30.650 --> 01:37:40.599
Boardroom: Anybody online? No. No speakers online. Okay. Alright, is there any public comment? Oh, yes. Moving on to Vice Mayor Trey Gubb.

650
01:37:41.580 --> 01:37:48.960
Boardroom: Thank you, Madam Mayor. I really appreciate the level of detail in this item.

651
01:37:49.330 --> 01:37:54.210
Boardroom: I actually read, oh, 84 pages.

652
01:37:54.310 --> 01:38:12.410
Boardroom: And I wanted to thank the Finance Director, Henry, for confirming on the bottom of page 2 that S&P Global Ratings has, in fact, given the Notes a rating of SB1+, and with that, I would like to move the item.

653
01:38:12.750 --> 01:38:18.459
Boardroom: Thank you very much. A second. Yeah, second from Councilmember Humbert. Can we take the roll on that, please, Clerk?

654
01:38:18.580 --> 01:38:29.829
Boardroom: Okay, to approve the, borrowing of, tax and revenue anticipation Notes. Councilmember Kastarwani? Yes. Taplin? Yes.

655
01:38:30.390 --> 01:38:37.280
Boardroom: Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unupara? Yes. Humbert?

656
01:38:37.340 --> 01:38:45.149
Boardroom: Yes, and Mayor Ishii? Yes. Okay, motion carries. Thank you very much to City Manager and team.

657

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01:38:45.150 --> 01:38:57.859
Boardroom: We will move on to item number 44, which is the issuance of $20 million in General Obligation Bonds Series C for the 2016 election, Infrastructure and Facilities Improvements, Measure T1.

658
01:38:58.650 --> 01:39:15.129
Boardroom: Thank you, Madam Mayor. This… we're requesting, authority for the final… the sale of the final tranche of Measure T1 bonds. So that was a $100 million, $100 million bond, and the,

659
01:39:15.230 --> 01:39:29.479
Boardroom: We've used all of it but this last 20 million, and we have a bunch of projects that are in the pipeline to get done. And what I'd actually like to do is just… it's not going to be a very long presentation, but I think it would be helpful if we had our Parks Director, Scott Ferris.

660
01:39:29.620 --> 01:39:49.459
Boardroom: who has been here from the beginning of Measure T1 and helped to both create the programs, work with the public to identify them, do a little bit of a history on what has been funded by T1 as a way to show you what the final $20 million tranche of T1 is slated to be funded for. So, Director Farris, if you are on

661
01:39:49.500 --> 01:39:55.270
Boardroom: and can share your screen and, walk folks through that, it would be appreciated.

662
01:39:56.060 --> 01:39:57.830
Scott Ferris: M, can you guys hear me?

663
01:39:58.410 --> 01:39:59.720
Boardroom: Yes, and to you.

664
01:39:59.720 --> 01:40:13.579
Scott Ferris: Right, thanks so much, Mayor and City Council. I've just got a brief presentation about, what we've accomplished in T1, and what is kind of remaining, and how we're going to spend

665
01:40:13.770 --> 01:40:16.419
Scott Ferris: The remaining $20 million.

666
01:40:17.580 --> 01:40:19.410
Scott Ferris: Okay, I'm gonna try and share my screen.

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667
01:40:35.060 --> 01:40:36.860
Scott Ferris: I'm hoping everybody can see my screen.

668
01:40:36.860 --> 01:40:38.020
Boardroom: Yes, we can.

669
01:40:38.790 --> 01:40:43.700
Scott Ferris: Okay, so just… just as a reminder, T1 was,

670
01:40:43.800 --> 01:40:51.550
Scott Ferris: An infrastructure bond measure of $100 million that passed in 2016, 10 years ago.

671
01:40:52.060 --> 01:41:02.249
Scott Ferris: And with interest, We've… that's given us about $104.5 million to spend to improve the city's aging structure… infrastructure.

672
01:41:02.960 --> 01:41:08.909
Scott Ferris: It was done in two phases, with lots of public process around each phase.

673
01:41:09.140 --> 01:41:13.930
Scott Ferris: The first phase, we, completed 39 projects

674
01:41:14.270 --> 01:41:19.290
Scott Ferris: And in Phase 2, we're on the final stages of completing 37 projects.

675
01:41:20.610 --> 01:41:24.900
Scott Ferris: So, 66 projects in all.

676
01:41:26.330 --> 01:41:35.339
Scott Ferris: And the great news is over, you know, this $104.5 million has produced, an additional

677
01:41:36.420 --> 01:41:45.810
Scott Ferris: $83 million in leverage funds that we were able to, you know, use in addition to that $104.5 million.

678
01:41:47.270 --> 01:41:51.290

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Scott Ferris: So, just a really quick recap of, both phases.

679
01:41:52.310 --> 01:42:02.249
Scott Ferris: Phase 1, actually, we had about 20 community meetings to decide what the projects would be. Phase 2 was about twice that. We had 54 community meetings.

680
01:42:02.800 --> 01:42:10.130
Scott Ferris: Both phases, the process was led by the Parks and Waterfront and the Public Works Commissions.

681
01:42:10.690 --> 01:42:14.920
Scott Ferris: with, the final list adopted by Council.

682
01:42:24.780 --> 01:42:26.000
Boardroom: Oh, Scott.

683
01:42:26.120 --> 01:42:26.620
Scott Ferris: Yes.

684
01:42:26.620 --> 01:42:28.770
Boardroom: Are you talking? Oh, good, okay, sorry, I thought…

685
01:42:29.420 --> 01:42:31.310
Scott Ferris: Sorry about that, there was a little pause there.

686
01:42:31.650 --> 01:42:36.520
Scott Ferris: It's been an interesting 10 years.

687
01:42:36.690 --> 01:42:44.110
Scott Ferris: as we, you know, initially, we were… we had started preparing for the passing of the bond measure a year… a year in advance.

688
01:42:44.310 --> 01:42:46.229
Scott Ferris: And we have,

689
01:42:49.170 --> 01:43:02.459
Scott Ferris: trying to figure out how this bond measure was going to be run, what was going to be the most transparent way that we were going to be able to communicate to the community about what was going on, communicate to Council.

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690
01:43:02.640 --> 01:43:06.779
Scott Ferris: And so where we landed was that, the oversight

691
01:43:06.920 --> 01:43:18.050
Scott Ferris: was gonna be at the City Council level to determine the projects, but they had a lot of input from the Parks, Recreation, and Waterfront, and the Transportation and Infrastructure Commissions, or the Public Works Commission.

692
01:43:19.250 --> 01:43:29.769
Scott Ferris: And that we would do audits every 2 years, and that any change in the project list needed to, go both… to both commissions and to Council.

693
01:43:30.320 --> 01:43:37.229
Scott Ferris: That happened, there were changes in the lists 5 or 6 times, I think 6 times over the last 10 years.

694
01:43:37.560 --> 01:43:43.789
Scott Ferris: the staffing for T1, included, 5 FTEs.

695
01:43:44.070 --> 01:43:52.959
Scott Ferris: An associate management analyst, and then 4 project managers, a combination of assistant, civil engineers and associate civil engineers.

696
01:43:53.700 --> 01:44:00.330
Scott Ferris: And then we had a joint team, which still meets every two weeks, today, even.

697
01:44:00.850 --> 01:44:11.260
Scott Ferris: on Wednesdays, and talks about all the projects, talks about issues related to the T1 projects, and kind of figures out how we're going to move forward.

698
01:44:11.760 --> 01:44:18.210
Scott Ferris: And it's been a really good collaboration between PRW and PW Capital Units.

699
01:44:18.400 --> 01:44:20.179
Scott Ferris: and our administration.

700

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01:44:22.500 --> 01:44:31.749
Scott Ferris: In terms of communication to the public, we do quarterly updates, we do .gov releases, we do, updates to the T1 website.

701
01:44:32.460 --> 01:44:43.119
Scott Ferris: Occasionally we do council items, and we have a master list of about 2,500 people that are on the T1 mailing list that get those quarterly updates.

702
01:44:44.110 --> 01:44:47.159
Scott Ferris: Besides the people that are on the .gov list.

703
01:44:49.600 --> 01:44:54.189
Scott Ferris: We've had a lot of ribbon-cutting and groundbreaking ceremonies, here are just some of them.

704
01:44:56.600 --> 01:44:58.309
Scott Ferris: In the last 10 years?

705
01:45:01.980 --> 01:45:06.280
Scott Ferris: I talked about this earlier, there have been 6 T1 project changes.

706
01:45:06.400 --> 01:45:15.950
Scott Ferris: And that's… all this information is on the T1 website, a detailed list of the… of each change, and what happened, and why.

707
01:45:18.690 --> 01:45:23.060
Scott Ferris: And then, just to review some of the T1,

708
01:45:23.590 --> 01:45:31.259
Scott Ferris: Phase 1 projects, you see photos here of the, the Marina Streets projects, which included University Avenue below

709
01:45:31.300 --> 01:45:44.350
Scott Ferris: The freeway, the North Berkeley Senior Center, Strawberry Creek Park, the Adult Mental Health Center, San Pablo Park. At San Pablo Park, we did the 2 to 5, the 5-12 play structure, and the tennis courts.

710
01:45:45.100 --> 01:45:57.420
Scott Ferris: Here you see, Adeline, John Hinkle Park Improvements, Corporation Yard Improvements, the backup generator at the Corporation Yard, the Rose Garden Pergola.

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711
01:45:57.650 --> 01:46:01.460
Scott Ferris: tom Bates Field Turf Replacements.

712
01:46:04.750 --> 01:46:07.129
Scott Ferris: Aquatic Park Tide Tubes clean out.

713
01:46:07.990 --> 01:46:09.680
Scott Ferris: George Florence Park.

714
01:46:10.030 --> 01:46:13.260
Scott Ferris: A lot of green infrastructure and bioswales.

715
01:46:17.040 --> 01:46:19.920
Scott Ferris: In Phase 2, we've…

716
01:46:20.410 --> 01:46:25.579
Scott Ferris: We've also done playgrounds. You see here, playgrounds at 2 to 5 and 5 to 12 at Grove Park.

717
01:46:26.770 --> 01:46:33.709
Scott Ferris: Ohlone Park upgrades, Grove Park upgrades, but also a fair amount of pathways and sidewalks.

718
01:46:33.930 --> 01:46:35.150
Scott Ferris: In Phase 2.

719
01:46:37.280 --> 01:46:41.829
Scott Ferris: One of the bigger ticket items is the World Clubhouse in Phase 2.

720
01:46:42.990 --> 01:46:48.160
Scott Ferris: a series of new restrooms, Civic Center Up, Civic Center Park.

721
01:46:55.080 --> 01:46:57.730
Scott Ferris: King Pool Tile and plaster replacements.

722
01:46:58.100 --> 01:47:02.049
Scott Ferris: Timber, piling replacement in the waterfront.

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723
01:47:02.300 --> 01:47:06.349
Scott Ferris: A variety of storm day drain replacements throughout the city.

724
01:47:07.040 --> 01:47:10.830
Scott Ferris: And I said, like I said, a lot of, sidewalks and pathways.

725
01:47:14.290 --> 01:47:22.190
Scott Ferris: So, additionally, projects that are nearing completion, that are T1 projects, there's a list of, I think,

726
01:47:22.300 --> 01:47:33.399
Scott Ferris: Nine projects here. Some of them we've cut a ribbon for some of these projects, but these projects are nearing completion. The K-Dock restroom in the waterfront, the D&E dock.

727
01:47:34.040 --> 01:47:40.060
Scott Ferris: replacement, which… We're hoping to cut ribbons for both those projects soon.

728
01:47:40.310 --> 01:47:45.400
Scott Ferris: We have cut ribbons for the projects in the corp… two projects in the corporation yard.

729
01:47:46.280 --> 01:47:57.959
Scott Ferris: The Telegraph Channing garage restrooms are also in closeout. Fire Station 2 and 6 improvements are in construction, along with the Santa Fe right-of-way. Phase 1,

730
01:47:58.060 --> 01:48:03.669
Scott Ferris: And Adeline Landscape Improvements we have cut a ribbon for and completed, but the project's still in closeout.

731
01:48:05.020 --> 01:48:12.299
Scott Ferris: Phase 2 projects that are nearing completion, and here's kind of a look at some of them, some of the photos.

732
01:48:16.270 --> 01:48:19.670
Scott Ferris: Projects that we're gonna do with the remaining $20 million.

733
01:48:20.670 --> 01:48:25.000

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Scott Ferris: MLK Yap Youth Services Center, which is under construction right now.

734
01:48:25.170 --> 01:48:32.379
Scott Ferris: South Berkeley Senior Center, Which is also on the potential bond measure… the bond measure in November.

735
01:48:32.580 --> 01:48:42.320
Scott Ferris: So we're gonna combine the money from T1 with, if that bond measure passes, to do a much larger renovation at South Berkeley Senior Center.

736
01:48:42.600 --> 01:48:48.000
Scott Ferris: The African American Holistic Resource Center, which is the bulk of it, it's over $10 million of T1.

737
01:48:48.150 --> 01:48:51.200
Scott Ferris: Tom Bates, restroom and community space.

738
01:48:51.340 --> 01:48:56.859
Scott Ferris: and 1947 Center Window Replacement. So these are the five projects

739
01:48:57.320 --> 01:49:01.389
Scott Ferris: That… and that's how we'll spend this remaining $20 million?

740
01:49:03.390 --> 01:49:10.259
Scott Ferris: Okay, that's the end of my presentation, and I can take questions, and talk about any of the existing projects

741
01:49:10.480 --> 01:49:12.500
Scott Ferris: If there are any questions?

742
01:49:13.030 --> 01:49:27.559
Boardroom: Scott, the only thing I love more about… more than these projects is the joy on your face when you talk about these projects. Thank you for the presentation, I'm glad you got to pull out all of those incredible photos for us.

743
01:49:27.560 --> 01:49:52.470
Boardroom: Really amazing work. I mean, just between the leveraging and, you know, just the breadth and depth of these projects, it's just so

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impressive, and I really want to thank you and the team. Our city staff are awesome. So, thank you very much for the presentation. Are there any questions? Oh, starting with Councilmember Blackaby. Thanks, Madam Mayor. I just had one brief question. I think this might be for the City Manager.

744
01:49:52.470 --> 01:49:56.379
Boardroom: And I just note in the rationale for recommendation that

745
01:49:56.380 --> 01:50:03.929
Boardroom: The anticipation of staff is that this $20 million in bond proceeds is gonna carry us through fiscal 28-29.

746
01:50:04.100 --> 01:50:06.720
Boardroom: And so, just to kind of…

747
01:50:06.850 --> 01:50:16.570
Boardroom: put this together in the context of the bigger picture. You know, we recently just voted to put another bond measure on the ballot this fall. So it was the anticipation that, sort of.

748
01:50:16.660 --> 01:50:20.840
Boardroom: This will be the end of T1, and that sort of winds down.

749
01:50:20.840 --> 01:50:40.350
Boardroom: And any prospective bond measure, like the one that's on the ballot, would basically be kind of picking up where that one leaves off. It's sort of T1 runs its course, a potential future ballot, sorry, bond measure, if passed, would sort of pick up on T1 and continue. Is that kind of the right way to think about it? Yes, that's exactly the right way to think about it, is that we will… we will have spent…

750
01:50:40.430 --> 01:50:47.049
Boardroom: the $100 million plus the leverage on T1 by, the end of June, you know.

751
01:50:47.330 --> 01:50:57.140
Boardroom: That might not even be actually fully expended, but it'll sort of, blend into, fiscal year 29, when the bond, hopefully, the ballot measure

752
01:50:57.330 --> 01:51:13.090
Boardroom: hopefully passes in November of 28. And then when we complete the, the work of T1 on the projects that the Parks Director just, just

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talked through, then we would sell the next tranche of bonds from the next measure.

753
01:51:13.410 --> 01:51:14.550
Boardroom: Great, thank you.

754
01:51:15.180 --> 01:51:17.419
Boardroom: Thank you so much. Councilmember Humbert?

755
01:51:17.610 --> 01:51:24.589
Boardroom: Yes, thank you, Madam Mayor. I just have comments, no questions, is that okay at this point? And there are very short comments.

756
01:51:28.120 --> 01:51:32.090
Boardroom: Are there other… Questions?

757
01:51:32.310 --> 01:51:33.470
Boardroom: before.

758
01:51:35.000 --> 01:51:44.919
Boardroom: If we could take the comments during the comment period, if you don't mind, yeah, thank you. Okay, seems like we have no questions. Is there any public comment on this item? And then maybe you'll just get to ask your comments.

759
01:51:45.130 --> 01:51:45.870
Boardroom: Herb.

760
01:51:47.220 --> 01:51:48.700
Boardroom: Anyone online?

761
01:51:53.460 --> 01:51:56.870
Boardroom: Someone is running to make public comment.

762
01:51:59.500 --> 01:52:07.970
Boardroom: Thank you. Public comment for item number 44. I just wanted to say, that bathroom up on Telegraph is amazing, and the choice…

763
01:52:08.660 --> 01:52:12.479
Boardroom: I thought it was very well designed, for public health, for people…

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764
01:52:12.990 --> 01:52:25.669
Boardroom: from all walks of life can use that. I thought it's been well maintained. I also love that it corresponds to the mural on the wall across from it. We should have more public bathrooms like that. I know we've been…

765
01:52:25.810 --> 01:52:39.669
Boardroom: Contracting with Throne here on Strawberry Creek Park. I'm curious where we're going with that, because I actually think the telegraph design is the strongest design of, a public bathroom available to… in Berkeley. Sorry, I'm nervous. Thank you.

766
01:52:39.840 --> 01:52:44.469
Boardroom: Thank you so much for your comments, appreciate it.

767
01:52:45.520 --> 01:53:02.900
Boardroom: I'm sorry, I wasn't intending to comment, but now that I've heard the comment about the bathroom on Telegraph, it is really good, and it is unfortunate that we did not follow through with the hard work staff put in with the T1 monies.

768
01:53:03.060 --> 01:53:07.050
Boardroom: to put the bathrooms at the University in San Pablo.

769
01:53:07.400 --> 01:53:12.039
Boardroom: and Ed Alcatraz and Ed Lang. It's really unfortunate, because

770
01:53:12.050 --> 01:53:25.569
Boardroom: I looked at the 99-cent store parking lot there on the University of San Pablo. There's about 30 people staying there, homeless people in their vehicles without any bathroom, but this bathroom was meant for the entire community.

771
01:53:25.570 --> 01:53:35.059
Boardroom: If people could have only seen this excellent bathroom, and seen the model, and how it's working over there on telegraph, maybe they…

772
01:53:35.230 --> 01:53:49.920
Boardroom: their… eventually, their fears would have gone away, because this is a need in the community, and it was there for everyone, and the consultant study was so well done, and took so much stakeholder input. Thanks, Carol.

773

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01:53:50.650 --> 01:53:53.190
Boardroom: Okay, thanks everyone.

774
01:53:53.320 --> 01:54:01.910
Boardroom: All right, moving on to… back to Councilmember Humbert, thanks for your patience. Oh, yeah, thank you, Madam Mayor.

775
01:54:02.250 --> 01:54:11.859
Boardroom: I really want to thank Scott for that great presentation and reminding us of all the wonderful projects that T1 built and is building.

776
01:54:11.880 --> 01:54:25.269
Boardroom: It's a great success story, and in large part, that's due to Scott Ferris, and I want to really thank him. And I'm particularly fond of the Willard Clubhouse, which I think is a…

777
01:54:25.270 --> 01:54:33.809
Boardroom: is spectacular. But having heard these comments about the beautiful bathroom on Telegraph, I have to add my,

778
01:54:34.250 --> 01:54:48.029
Boardroom: I have to add my comments. I agree with the… with the public comment, the public comments so far. It is… it's a gorgeous combination of form, function, and art. I mean, it really is just…

779
01:54:48.130 --> 01:54:56.040
Boardroom: It's just wonderful. It's not quite as good as the Willard Clubhouse, but it's pretty wonderful. So, thank you. Thank you.

780
01:54:56.370 --> 01:55:00.940
Boardroom: I love what infrastructure nerds we are here. Go ahead, Vice Mayor.

781
01:55:02.330 --> 01:55:06.980
Boardroom: Yeah, well, I just wanted to jump on the bandwagon,

782
01:55:07.180 --> 01:55:21.370
Boardroom: At the risk of everyone jumping on the bandwagon. But I really wanted to, echo, the Mayor's and Councilmember Humbert's comments, just commending, you, Director.

783
01:55:21.420 --> 01:55:34.589

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Boardroom: Ferris and, all of the hardworking staff that have made this possible every day, as well as the voters of Berkeley that passed, T1, and…

784
01:55:34.910 --> 01:55:48.539
Boardroom: I am… my heart is filled with gratitude about its passage and its implementation. Every time I come to work and I walk through,

785
01:55:48.540 --> 01:56:00.799
Boardroom: the beautiful Civic Center Park, which has been, redone over the past year with the help of T1. And I'm looking forward to

786
01:56:00.800 --> 01:56:11.880
Boardroom: more exciting projects, and hopefully in combination with the infrastructure bond, should that pass in November, on the ballot.

787
01:56:11.880 --> 01:56:31.840
Boardroom: Including, clearing the 50-50 sidewalk, sharing backlog, and many other important, projects. Trying to put a dent in our $2.1 billion of unfunded, infrastructure needs. With that, I would like to move this item.

788
01:56:32.040 --> 01:56:33.180
Boardroom: Second.

789
01:56:33.490 --> 01:56:35.539
Boardroom: Very good. Can we take the roll on that, please?

790
01:56:36.840 --> 01:56:45.749
Boardroom: Okay, to adopt… Item 44, the issuance of general obligation bonds. Councilmember Kesarwani? Yes. Taplin?

791
01:56:45.750 --> 01:56:46.370
Terry Taplin: Yes.

792
01:56:46.700 --> 01:57:02.879
Boardroom: Cartlett is absent. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humber? Yes. And Mayor Ishii? Yes. Okay, motion carries. Thank you very much. Thanks, Scott, for the presentation. We are going to take a 10-minute break.

793
01:57:03.060 --> 01:57:07.539
Boardroom: It is 7.59 right now, so 8.10. Thank you.

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794
01:57:31.920 --> 01:57:34.109
Boardroom: Hello! Oh, there we go. Alright.

795
01:57:34.670 --> 01:57:58.959
Boardroom: Okay, thank you very much. So we are moving on to item number 45, placing an initiative ordinance amending the rent stabilization ordinance on the November 3rd, 2026 ballot. I'm gonna pass it over to Councilmember Lenopara. Thank you. Many apologies, but because this is a ballot measure item, and we need to triple check that all of our ducks are in order, I, am gonna ask

796
01:57:59.840 --> 01:58:07.210
Boardroom: Respectfully, that we move this to next week's agenda? Second. So yeah, that's my motion.

797
01:58:07.540 --> 01:58:15.910
Boardroom: Okay, can we take the role? Sorry, no we can't. Can we, any… Objections. Objections? Yes. No?

798
01:58:16.260 --> 01:58:18.050
Boardroom: Okay.

799
01:58:18.640 --> 01:58:20.420
Boardroom: I can still take public comment.

800
01:58:22.640 --> 01:58:37.350
Boardroom: Should we take it now? Yes. Yes, if there is anybody who wants to… Okay, so we are moving this item to next week, but if you have public comment on it, since it was already agendized, please feel free to come forward.

801
01:58:38.030 --> 01:58:39.989
Boardroom: Thank you. Good evening.

802
01:58:41.450 --> 01:58:54.019
Boardroom: I'm Debbie Woods, and a Berkeley resident and small housing provider. I urge you to reject yet another attempt to chip away at Berkeley's Golden Duplex exemption.

803
01:58:54.110 --> 01:59:04.659

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Boardroom: It is frustrating that a small group of housing providers is expected to return every two years, wondering what new restrictions will be imposed upon them.

804
01:59:04.790 --> 01:59:12.630
Boardroom: I hope that when 2028 arrives, we are not once again debating new limitations on golden duplex owners.

805
01:59:12.730 --> 01:59:34.589
Boardroom: As a reminder, Golden Duplex owners are homeowners who live next door to our tenants. We maintain our properties, respond personally when something goes wrong, and have every incentive to build respectful, long-term relationships with the people who rent from us.

806
01:59:34.740 --> 01:59:43.170
Boardroom: We are the city's partners in providing and preserving Berkeley's housing. Thank you.

807
01:59:47.500 --> 01:59:49.870
Boardroom: So it's only one minute? Not 2?

808
01:59:50.580 --> 02:00:08.340
Boardroom: Okay. My name is Celia Carey, and I'm a small housing provider. I live in Berkeley. I pay Berkeley property taxes. I'm opposed to putting another ordinance on the November ballot amending the Rent Board Ordinance. It's so frustrating.

809
02:00:08.340 --> 02:00:22.609
Boardroom: That just two years after Measure BB was passed, Council wants to add more regulations and requirements to owners who are already burdened by regulations. Regulations have become so onerous

810
02:00:22.660 --> 02:00:38.079
Boardroom: My job as a housing provider used to be about attending to tenants and maintaining buildings. Now it's increasingly about managing processes, making sure I'm in compliance with all the codes and ordinance, protecting myself

811
02:00:38.230 --> 02:00:39.779
Boardroom: From a mistake.

812
02:00:40.450 --> 02:00:58.500
Boardroom: Our leases have grown to over 70 pages. The basic lease takes just 24 pages. The other 46 pages are required disclosures and

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information. I'm just embarrassed to give a prospective tenant the lease. Thank you very much.

813
02:01:06.200 --> 02:01:17.600
Boardroom: Hello, I'm Roger Halston. I own exactly one rental, the duplex that I live in. I rent out the downstairs, and I… the only reason I'm a…

814
02:01:18.000 --> 02:01:28.360
Boardroom: a renter, you know, venting out, is because that was the only way I could afford to buy a home to raise my children in. And,

815
02:01:28.860 --> 02:01:39.270
Boardroom: It's very difficult to keep up with the constant changes. It's frightening that I, can't trust my government to look after my interests.

816
02:01:39.650 --> 02:01:43.590
Boardroom: It's insulting to be treated as if I'm the enemy.

817
02:01:43.790 --> 02:01:52.569
Boardroom: I know that the… I've always tried to play by the rules, that's… I work in public schools locally, and

818
02:01:53.350 --> 02:02:02.569
Boardroom: But it's obvious to me that the rules are biased against me. For example, if I was one day late paying my registration fee, the fees double.

819
02:02:02.780 --> 02:02:11.470
Boardroom: And even the big banks aren't that unreasonable. So I respectfully urge that you not… Thank you. …keep modifying the ordinance. Thank you so much.

820
02:02:15.550 --> 02:02:31.229
Boardroom: Hi, I'm Terry Garretts, and I'm a Golden Duplex owner, and a lot of what I would say has been said. But to me, it is a very sneaky way of getting into going away with Golden Duplex.

821
02:02:31.230 --> 02:02:46.170
Boardroom: pushing the limits to see what you can get away with when we have a real problem with housing. And it's part of that philosophy, I think, of seeing us housing providers as enemies, rather than working together to solve a problem.

822

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02:02:46.170 --> 02:02:52.259
Boardroom: There's so much that I can do for my tenants, being a golden duplex. I could reduce rent.

823
02:02:52.260 --> 02:03:07.359
Boardroom: When somebody lost a job, when a tenant moved out and college kids were sharing, she's finishing her PhD, I could again do a rent reduction temporarily. If I was under your rent control laws, I couldn't do that.

824
02:03:07.360 --> 02:03:18.820
Boardroom: So I hope you will realize this is… anytime you put anything on the ballot, it costs money, it causes dissension, and let's work on the real housing issues we have. Thank you.

825
02:03:27.240 --> 02:03:46.689
Boardroom: Good evening, City Council. I'm Courtney Powell, I'm the Policy Manager with Resources for Community Development, and we're here in strong support of the proposal to place cleanup amendments to the stabilization ordinance on the November 2026 ballot, and particularly the amendment that would allow the Rent Board to establish a fee waiver program for non-profit affordable housing providers.

826
02:03:46.980 --> 02:04:04.780
Boardroom: The increased rent board registration fees under Measure BB created a really substantial financial burden for many nonprofits in the community. Nonprofit providers operate under strict affordability covenants, and as a result, we can't raise rents upon vacancy to offset these types of rising costs.

827
02:04:05.080 --> 02:04:14.679
Boardroom: The proposed amendment offers a thoughtful and balanced solution. It allows the city to move forward promptly, while also reducing legal and administrative risk.

828
02:04:14.740 --> 02:04:25.410
Boardroom: We're just really grateful for the partnership with the Rent Board, with the 4x4 Committee, and bringing this language forward, and we will see you back here next week, for the continued conversation. Thank you. Thank you.

829
02:04:29.260 --> 02:04:39.519
Boardroom: Hello, my name is Angela Cavanaugh, and I'm with Satellite Affordable Housing Associates. I've been with them for 31 years, serving low-income residents of Berkeley.

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830
02:04:39.670 --> 02:04:58.950
Boardroom: And I'm also here to let you guys know I'm in support of the amendment and appreciate the consideration. We, serve seniors and other special needs populations, and, just echoing what Courtney said.

831
02:04:59.680 --> 02:05:05.320
Boardroom: It is very helpful for us to,

832
02:05:06.770 --> 02:05:11.310
Boardroom: To have a fee waiver on the stabilization fees.

833
02:05:11.800 --> 02:05:15.899
Boardroom: So that we can provide needed services for our residents.

834
02:05:16.720 --> 02:05:17.660
Boardroom: Thank you.

835
02:05:17.770 --> 02:05:19.450
Boardroom: Thank you so much.

836
02:05:22.570 --> 02:05:34.439
Boardroom: I was actually happy to see the, attacks on the Golden Duplex exemption stopping, because I don't believe that that's where the focus should be, to protect tenants.

837
02:05:34.440 --> 02:05:57.949
Boardroom: I thought that the notice provision seems fairly innocuous by comparison to the previous attacks. I, I do want to say, while I can appreciate the wanting to expand rent control by providing facial, financial or other incentives, such as double density bonus, that's for new people coming in the community.

838
02:05:57.950 --> 02:06:14.319
Boardroom: And we need to look at how we're gonna prevent displacement of current people in the community and people that are the most vulnerable. Currently, the affordable housing preference policy is being discussed, has changing, and I'm really concerned that we're not focusing on our own

839
02:06:14.700 --> 02:06:25.790
Boardroom: most vulnerable persons in the community here, and preserving them in affordable housing, which is really, really scarce. Thank you. Thanks, Carol.

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840
02:06:26.490 --> 02:06:28.199
Boardroom: I think there are a couple folks online.

841
02:06:28.530 --> 02:06:39.550
Boardroom: Yes, so this public comment on the rent stabilization ordinance amendments. However, this item is not gonna be decided upon tonight. It's gonna be moved to the July 7th meeting.

842
02:06:39.750 --> 02:06:44.229
Boardroom: But now's the time to raise your hand if you do want to talk tonight.

843
02:06:44.380 --> 02:06:47.589
Boardroom: First speaker is Karen Chenoy.

844
02:06:51.020 --> 02:07:00.440
Kiran Shenoy: Good evening, Mayor and City Council. Karen Schuler with the Bridge Association of Realtors. This item needed to have gone to the Land Use Committee before being brought here to be placed on the ballot.

845
02:07:00.570 --> 02:07:15.630
Kiran Shenoy: The revisions to the Golden Duplex exemption and the addition of paragraph D are substantive policy changes, and it is obvious from the fact that this item is now being pulled that there is much work to be done on this item, and that is exactly what standing policy committees are for.

846
02:07:15.750 --> 02:07:29.429
Kiran Shenoy: The 4x4 Joint Task Force is not a standing policy committee. It exists to coordinate between the Council and the Rent Stabilization Board, not to replace the Council's committee process or serve as the primary venue for vetting controversial housing policy.

847
02:07:29.440 --> 02:07:36.379
Kiran Shenoy: Whether you support these changes or not, they deserve the transparency and public deliberation that only the Land Use Committee could have provided.

848
02:07:36.540 --> 02:07:44.050
Kiran Shenoy: We respectfully ask that you either refer this item to committee, rather than bring it back to the next council meeting. Thank you.

849

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02:07:44.690 --> 02:07:45.490
Boardroom: Thank you.

850
02:07:46.660 --> 02:07:52.509
Boardroom: Okay, next… is Sophia DeWitt.

851
02:07:55.400 --> 02:08:12.880
Sophia DeWitt: Good evening, Mayor and Council Members. Sophia DeWitt with East Bay Housing Organizations. I strongly support the proposal to place the cleanup amendments to the Rent Stabilization ordinance on the November 2026 ballot.

852
02:08:13.000 --> 02:08:24.799
Sophia DeWitt: That… and particularly the amendments that would allow the Rent Board to establish a fee waiver program for nonprofit affordable housing providers. As you've heard.

853
02:08:24.800 --> 02:08:37.339
Sophia DeWitt: The increased, fees adopted under Measure BB, created a serious financial situation for many affordable housing providers in Berkeley.

854
02:08:37.460 --> 02:08:42.560
Sophia DeWitt: And, that financial situation directly,

855
02:08:43.160 --> 02:08:58.539
Sophia DeWitt: dug into the ability of those providers to provide resident services, since they couldn't, raise, rents to cover the increased fees. This proposal provides a balanced approach.

856
02:08:58.540 --> 02:09:00.670
Boardroom: Thank you, Sophia. Thank you.

857
02:09:01.470 --> 02:09:06.530
Boardroom: Okay, next speaker… is Sasha.

858
02:09:10.050 --> 02:09:14.959
Sasha: Yes, Sasha Futrin, and to be very clear, I live in District 1.

859
02:09:16.820 --> 02:09:31.980
Sasha: I do not own a duplex, but I do own a triplex that I have owned and lived in for 42 years. And I have to say that what I call the packet that has to be added with every lease goes on and on and on.

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860
02:09:32.330 --> 02:09:37.150
Sasha: And it has some things that really are incomprehensible, like…

861
02:09:37.260 --> 02:09:41.920
Sasha: Bedbug information for an unfurnished apartment.

862
02:09:43.800 --> 02:09:49.110
Sasha: We have to spend a lot of our time, as has been mentioned before, on a lot of onerous

863
02:09:51.870 --> 02:10:04.750
Sasha: administrative bookkeeping kinds of things. Not really bookkeeping, but administrative tasks. And what the Rent Board has done is really set up a hostile environment between the tenants.

864
02:10:04.950 --> 02:10:13.019
Sasha: and the owner of the property who lives there. And I can assure you, as somebody who lives there, I want a pleasant place to live.

865
02:10:13.020 --> 02:10:15.119
Boardroom: Thank you. Thanks, Sasha.

866
02:10:16.540 --> 02:10:17.600
Boardroom: Okay.

867
02:10:18.780 --> 02:10:22.880
Boardroom: That's all the online speech. Oh, I'm sorry, there's actually one more comment here in person.

868
02:10:24.760 --> 02:10:48.629
Boardroom: Good evening, Mayor and members of the City Council. I'll keep it short, since we'll be coming back next week. Thank you for considering these revisions. There are many things in the ordinance packet, other than the just two you've heard quite a bit about this evening. I'd be happy to answer any questions. Rent Board staff will also be here next week to answer questions. Also, just to correct one bit of misinformation from public comment, the 4x4 is a standing policy committee. It has, in fact, existed long before

869
02:10:48.630 --> 02:10:52.650
Boardroom: the committee system existed. But that is neither here nor there. So thank you very much.

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870
02:10:52.820 --> 02:10:57.490
Boardroom: Thank you very much. Okay.

871
02:10:57.640 --> 02:11:00.229
Boardroom: Very good. So we've done our public comment.

872
02:11:01.050 --> 02:11:04.850
Boardroom: Okay, so the motion is to continue item 45.

873
02:11:04.980 --> 02:11:13.330
Boardroom: Regarding the rent stabilization ordinance to the July 7th meeting, Councilmember Kastarwani, Yes.

874
02:11:14.060 --> 02:11:15.150
Boardroom: Kaplin.

875
02:11:16.100 --> 02:11:24.240
Terry Taplin: Just point of… point of privilege, I… I'm prepared to vote, but I was wondering whether there would be opportunity to, like.

876
02:11:24.680 --> 02:11:27.749
Terry Taplin: comment down… For us, or…

877
02:11:27.750 --> 02:11:33.899
Boardroom: No, I think we're moving it to the next week, so we won't have comments right now for council members.

878
02:11:34.500 --> 02:11:36.190
Terry Taplin: Okay, well, on the motion, yes.

879
02:11:36.760 --> 02:11:40.759
Boardroom: Okay. Councilmember Bartlett is absent. Trey Gum? Aye.

880
02:11:40.860 --> 02:11:52.050
Boardroom: O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mary Ushine? Yes. Okay, motion carries. Thank you. Thank you all for your comments.

881
02:11:52.110 --> 02:12:03.469

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Boardroom: Okay, so we are moving on to item number 46, which is Surveillance technology ordinance Submissions for Community Video Streams and Investigative Software Pursuant to Council Direction of May 7th, 2026.

882
02:12:04.340 --> 02:12:16.339
Boardroom: And I really want to thank, Mr. Momberg for being here this evening. We received a letter in May from Brian Hofer of Secure Justice with concerns around the investigative software's compliance.

883
02:12:16.340 --> 02:12:41.329
Boardroom: with our surveillance technology ordinance process, so this item addresses that concern by developing a use policy and Acquisitions report, and I want to thank you so much, BPD, for addressing the Public Safety Committee's concerns and making changes within these policies. Just briefly, I just wanted to highlight for folks, in case, they didn't see there, these changes included improvements to data security and privacy, clarification around policy language, strengthening audit

884
02:12:41.330 --> 02:12:53.150
Boardroom: provisions and inclusion of notification within 72 hours to the city manager, city attorney, and city council in the event that a federal agency has given BPD-owned data from community video streams.

885
02:12:53.160 --> 02:13:12.460
Boardroom: And this evening, again, just so folks understand where we're sort of at in the process, we're voting on the use policy and Acquisitions report today, but this does not approve a contract for these tools, so, the language of these documents will come before this Council again before… excuse me, again.

886
02:13:12.460 --> 02:13:24.079
Boardroom: after the RFP process is completed, and I'm sure you can address that as well, but I just wanted to set expectations for folks, because I understand that this stuff is very complex. So, I will pass it over to you.

887
02:13:27.260 --> 02:13:43.189
Boardroom: Thank you, Ms. Mayor. Good evening, Mayor and Council. The item before you this evening addresses community video streams and investigative software. Both were part of the broader technology package, referenced earlier that went to full council on May 7th.

888
02:13:43.290 --> 02:14:02.290
Boardroom: At that meeting, Council directed the Department to return to the Public Safety Policy Committee to present additional information on

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community video streams and respond to several items raised in the Mayor's Supplemental referral. On June 2nd, the Department presented that material to the PSPC, along with supporting documentation

889
02:14:02.290 --> 02:14:10.749
Boardroom: related to the investigative software technology. Following that meeting, the department incorporated feedback from the committee into the council item now before you.

890
02:14:11.000 --> 02:14:20.719
Boardroom: We are returning tonight to give council members and the community an opportunity to hear more about these technologies, ask questions, and provide guidance before the department begins the RFP process.

891
02:14:20.950 --> 02:14:30.850
Boardroom: This is an important step in ensuring that any future RFP… any future RFPs align with Council expectations before considering any contract recommendations.

892
02:14:31.010 --> 02:14:50.919
Boardroom: It will also allow the department to thoroughly and thoughtfully evaluate available options and return with recommendations through the appropriate process. Before we discuss the outcomes of the June 2nd PSPC meeting and the changes incorporated in the proposal, Arla Mullenberg will provide a brief overview into each of the two technologies. Arla?

893
02:14:51.810 --> 02:15:08.370
Boardroom: Thank you, Captain Okies. Okay, so the first of the two technologies I'll talk about is investigative software. And the most important thing, to understand about investigative software is that it's not, a new camera or a new sensor, it doesn't collect anything new.

894
02:15:08.370 --> 02:15:15.789
Boardroom: It's essentially just a search tool that sits on top of records that the department already maintains or has access to.

895
02:15:15.790 --> 02:15:25.109
Boardroom: Or… and just let the investigator, search and connect those records in one place instead of logging into each system separately.

896
02:15:25.160 --> 02:15:42.340
Boardroom: So the connected sources, would be things like dispatch records and report data, digital evidence, license plate reader data,

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fixed camera, and drone data, ballistics data, opt-in case information voluntarily shared by other agencies.

897
02:15:42.340 --> 02:15:48.980
Boardroom: And publicly available information, and, any future technology that the Council would approve.

898
02:15:49.330 --> 02:16:07.649
Boardroom: So every one of those sources keeps its own existing rules, its own use policy that it currently has, and so this software would loosen nothing. Wherever there's a stricter provision in the individual use policy, that's what would control.

899
02:16:09.080 --> 02:16:16.070
Boardroom: But there are safeguards in this use policy on top of all of those, and they're independent of any vendor, so…

900
02:16:16.070 --> 02:16:33.840
Boardroom: Facial recognition, is prohibited. Every search must be tied to a specific case or incident, can be used for immigration enforcement or for out-of-state cases targeting reproductive or gender-affirming care. And no data can be sourced from, data breaches or the dark web.

901
02:16:33.840 --> 02:16:43.679
Boardroom: And anything the tool surfaces is treated as a lead only. It needs to be independently corroborated by a detective or an officer before it's acted upon.

902
02:16:43.820 --> 02:17:00.279
Boardroom: So, again, as we laid out, this is just the beginning of a council directed process due to an RFP, and so we're just talking about the technology and the proposed rules around it, and not a chosen vendor or a specific product.

903
02:17:01.549 --> 02:17:15.959
Boardroom: Okay, the second technology is community video Streams. And so for this program, the city is not buying or installing any cameras, it's just a software capability that lets a private camera owner, like a business.

904
02:17:15.959 --> 02:17:34.210
Boardroom: For example, to voluntarily register and share their existing camera stream with the police department. So the owner stays in control, they keep ownership of the camera and the footage, and they can revoke

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access at any time. So the department doesn't own or install or maintain any of these cameras.

905
02:17:34.209 --> 02:17:47.079
Boardroom: The only footage BPD keeps is a specific clip, that has evidentiary value in a specific case, and then that would just be retained according to our, current evidence retention, policy.

906
02:17:47.670 --> 02:18:00.809
Boardroom: So, the point here is to let officers virtually canvas an area for evidence, or get real-time awareness during an in-progress incident without the cost of standing up additional city-owned cameras.

907
02:18:00.830 --> 02:18:14.359
Boardroom: Access would be limited to active criminal investigations, serious traffic investigations, police misconduct investigations, and critical incidents or disasters. And it wouldn't be used for a continuous

908
02:18:14.360 --> 02:18:20.939
Boardroom: Monitoring, it would just be, in response to a specific identified, case or call for service.

909
02:18:21.340 --> 02:18:37.650
Boardroom: So again, the use policy builds in safeguards, a pre-integration review, where a staff member physically confirms that a camera isn't pointed anywhere private before it's, even connected. A prohibition on facial recognition.

910
02:18:37.650 --> 02:18:47.719
Boardroom: A log of every access, so who's accessing, when, which camera, and for what reason. There will be signage near the camera itself.

911
02:18:47.850 --> 02:18:58.009
Boardroom: And a public map on our website of every camera that's been connected to the department. And of course, no sharing for federal immigration enforcement.

912
02:18:58.480 --> 02:19:06.430
Boardroom: Okay, so, Captain Okies will now talk about some of the updates we made since the June 2 PSVC meeting.

913
02:19:07.430 --> 02:19:08.459
Boardroom: Thank you, Arlo.

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914
02:19:08.940 --> 02:19:14.459
Boardroom: So, at the June 2nd meeting, the,

915
02:19:14.549 --> 02:19:34.369
Boardroom: there was a discussion, and in the course of that discussion, the PSPC identified 11, additional areas for revision and consideration and clarification. Those revisions included topics such as address verification, notification processes, access authorization.

916
02:19:34.370 --> 02:19:38.520
Boardroom: And clarifying language related to retention periods.

917
02:19:38.520 --> 02:19:51.020
Boardroom: The details of those changes are included in the agenda item, and the memorandum, as well as reflected in red line edits to the attachments, in the Acquisition surveillance use reports.

918
02:19:51.030 --> 02:19:58.000
Boardroom: That work brings us to today's resolution, where we are asking the Council to accept the surveillance Acquisition report.

919
02:19:58.000 --> 02:20:13.999
Boardroom: and approve the surveillance use policy for community video streams and investigative software. This will allow us to begin the RFP process. Once completed, the department will return to Council with our recommendations. With that, I'll hand it off for questions.

920
02:20:15.150 --> 02:20:16.510
Boardroom: Thank you so much.

921
02:20:16.830 --> 02:20:28.359
Boardroom: All right, do we have any questions from the council members? Starting with Councilmember Blackaby. Thanks, Madam Mayor. I just want to thank Mr. Malenberg and Capnocchis for being here, tonight, and also throughout this process.

922
02:20:28.430 --> 02:20:40.919
Boardroom: As Captain Okies mentioned, we did have a robust, discussion at the Public Safety Policy Committee. A lot of public feedback and engagement, as well as committee questions.

923
02:20:40.920 --> 02:20:48.720

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Boardroom: You know, the 11 items that we kind of identified, appreciate the fact that you've sort of made those

924
02:20:48.800 --> 02:21:02.870
Boardroom: updates, made those changes, incorporated that feedback, and I see that, through the document, so I just wanted to appreciate, the work there. I had a couple of, just further clarifying questions, kind of upon further review of this.

925
02:21:03.000 --> 02:21:12.960
Boardroom: In particular, and I think it's in the document, but just… it didn't come up yet, so just to give us a chance to discuss it, in terms of the community video streams.

926
02:21:13.080 --> 02:21:15.039
Boardroom: Kind of focus areas.

927
02:21:15.250 --> 02:21:21.780
Boardroom: It's clear in the use policy where this is intended for commercial districts. Can you talk a little bit about, you know.

928
02:21:21.970 --> 02:21:36.589
Boardroom: residential, non-residential, and just kind of where that technology would be used if we move forward here. Yeah, absolutely. It would be used in business districts, commercial areas. The idea is not to use them in a residential neighborhood.

929
02:21:36.750 --> 02:21:43.070
Boardroom: Yeah, that's absolutely the intent. There's room in the policy to connect to…

930
02:21:43.080 --> 02:22:00.039
Boardroom: A campus or an area where there's a risk of an active shooter incident, where having live access to those cameras would, be life-saving. But otherwise, the policy and the intent of the program is to connect to, cameras owned by a business in a commercial district.

931
02:22:00.040 --> 02:22:22.620
Boardroom: And then the locations of all those cameras would be publicly viewable on the website, you'd know where all those cameras are, and… Exactly. You would… you could check the website to know where those locations were, and while you were physically there, you would be aware that a camera is connected, because there would be a sign up somewhere. Okay. And then, how does this differ from the fact that, you know, in some cases with a crime in a residential area.

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932
02:22:22.620 --> 02:22:26.160
Boardroom: you might ask for access to a Ring camera or other footage.

933
02:22:26.160 --> 02:22:45.459
Boardroom: How is that… how is what we're talking about here different from that? Would you still be doing that? Kind of compare and contrast how those two things work, maybe similarly or differently? Yeah, so in areas where we have cameras connected, investigators would be able to collect that footage, in a much more systematic and,

934
02:22:45.500 --> 02:23:03.739
Boardroom: quick way, and speed, and I'll let Captain Oki speak to kind of the process of an investigation after a case occurs, but to be able to do a quick and thorough investigation often greatly affects the outcome and, how we're able to identify a subject and,

935
02:23:03.740 --> 02:23:08.909
Boardroom: and follow up. It also would add the capability to, bring

936
02:23:09.050 --> 02:23:28.919
Boardroom: Realtime awareness to an ongoing incident. So if there is, you know, use the example of an active shooter or, or a robbery, and we get that call of an in-progress, incident, then, our investigators and, analysts would be able to.

937
02:23:28.920 --> 02:23:34.640
Boardroom: Watch that incident unfold and provide the information to responding officers on scene.

938
02:23:36.640 --> 02:23:59.320
Boardroom: Do you mind if I dig into that just a little bit further? So, can you just walk us through, so someone gets… calls dispatch, just walk us through what the workflow looks like there? Yeah, so somebody calls dispatch, they say, I'm witnessing an armed robbery in this store that I'm in, or just walked by, and we happen to have a camera, there at the entrance, what have you, and so our…

939
02:23:59.470 --> 02:24:16.890
Boardroom: officers in… that are working in patrol would be on their way, right? They'd be, responding to the scene, and what happens now is they… all they have is the information that the caller has provided, and that could be very incomplete information, it could be stale information, and the officers

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940
02:24:17.180 --> 02:24:31.819
Boardroom: are going in somewhat blind, right? And so, having, somebody relaying live information about what's happening on that scene, as officers are arriving, can… can play a big role in

941
02:24:31.820 --> 02:24:39.260
Boardroom: The type of response that the officers bring to the incident, or locating a subject that's left the scene.

942
02:24:41.510 --> 02:24:57.599
Boardroom: I think Garlo covered the material pretty well. I'll just say that the, automated process, the ability to access, the camera through this system, obviously it's registered, in response to a crime, would allow for much faster turnaround time. So in the example.

943
02:24:57.600 --> 02:25:18.889
Boardroom: we recently had a call of a suspected kidnapping case involving a car, and a vehicle description, and officers had to respond to… obviously respond to the scene, and through canvassing the area, were able to get information from local cameras, and then, through that, slowly piece together some information about the suspect vehicle.

944
02:25:18.890 --> 02:25:27.840
Boardroom: Having a camera in place, and this, system up and running would allow someone to do that from the department as officers are responding.

945
02:25:27.840 --> 02:25:48.709
Boardroom: tightening our turnaround time, and the ability to correctly identify, a suspect vehicle and, you know, better respond to the crime quickly and bring the situation safely to resolution. And then to piggyback, back on the piggybacker, the, the, so, I'm also interested, too, in, like,

946
02:25:49.170 --> 02:25:54.890
Boardroom: how does the approval process work to say, okay, turn on the live feed at 123 Shattuck?

947
02:25:55.010 --> 02:26:00.129
Boardroom: You know, like, who makes that decision? Because, again, you're not monitoring everything

948
02:26:00.340 --> 02:26:08.649

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Boardroom: explicitly, by design, you are not monitoring things, you know, in real time across the board. You're saying, here's something that needs to be looked at.

949
02:26:09.040 --> 02:26:11.610
Boardroom: Who kind of approves that request?

950
02:26:11.670 --> 02:26:31.669
Boardroom: to basically turn on a live feed at that location. Yeah, so there would be a limited number of people who are trained and authorized to use the system at all, and part of that training and authorization is identifying cameras and their angles and, which would be relevant to a certain call. Obviously.

951
02:26:31.880 --> 02:26:35.890
Boardroom: When we're talking about a real-time response, having…

952
02:26:36.190 --> 02:26:55.169
Boardroom: making a quick judgment call is what makes it useful or not. And so, we kind of pre-identify the people who will be able to access and, and train them appropriately on, on how to identify a relevant camera. And then, of course.

953
02:26:55.320 --> 02:27:10.749
Boardroom: each of those accesses would be logged and audited and reviewed for, it being an appropriate use of… Yeah, because I think our main thing is making sure it's like, we're not just sort of turning cameras on for small… but, like, because I think the threshold for when you should activate a live feed should be of some…

954
02:27:10.750 --> 02:27:18.450
Boardroom: significance. I think, I think that's, I think, what folks would assume. And so I think, as long as we can capture that in the audit, that, like, what's the rationale?

955
02:27:18.450 --> 02:27:24.609
Boardroom: at this moment for turning on that camera would be important to be able to just keep an eye on, especially, I think, at the beginning. Go ahead.

956
02:27:25.170 --> 02:27:39.360
Boardroom: Sorry, I was gonna say, well, and they will require there to be a case number, so that would be included information as well, if you want to speak to that. Exactly, and one of the updates that we've made since June 2nd was to

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957
02:27:39.400 --> 02:27:47.259
Boardroom: Specify that part of the audit will be to identify that that case number matches

958
02:27:47.450 --> 02:28:05.980
Boardroom: you know, the circumstances of that access and that use, and that everything aligns properly as it should. Okay. Couple more things. Just to close out on the Ring Camera part. So, the difference is, in large part, the Ring camera is sort of after action to capture video that's recorded of an event.

959
02:28:06.160 --> 02:28:24.849
Boardroom: that happened previously. Part of what is the CVS piece is, yes, you get the historical data, but you also get live data that you can turn on in response to an incident in a commercial district. So what's different is, in a commercial district, you get a live feed at a particular location. In a residential district, on a Ring camera, you're not…

960
02:28:25.220 --> 02:28:28.229
Boardroom: getting live data. You're getting historical data. Is that fair?

961
02:28:30.130 --> 02:28:41.549
Boardroom: That's fair, and accurate. The other piece of that is that, with the video stream process in the investigative stage, officers would be able to access that.

962
02:28:41.720 --> 02:28:53.429
Boardroom: More quickly, in investigating the case after the fact, as opposed to now, where we send physically, physically send officers to the scene, they go and knock on doors, they contact community members, and, ask.

963
02:28:53.430 --> 02:29:02.150
Boardroom: if they have video that they'd be willing to share. Okay, two last things, I appreciate it. One is, there was a good amount of discussion, and you did address it in here, that,

964
02:29:02.270 --> 02:29:15.159
Boardroom: One question was, to people who… to a business that does own a camera, some notification that, hey, we accessed your feed at some point in time, just so there's some sort of feedback loop to the camera owner.

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965
02:29:15.160 --> 02:29:32.290
Boardroom: you sort of indicated here that it's kind of… you're going to add it to kind of the vendor evaluation, not as a required element, but as something you'd be looking for. Just want to know if you could speak to that, because I think, regardless, even if a vendor couldn't do it, I think there's some interest in figuring out how, as a department, we would notify someone after the fact.

966
02:29:32.290 --> 02:29:40.769
Boardroom: Yeah, I mean, without getting into the details of the not-yet-released RFP, we will uncover that information through that process.

967
02:29:40.770 --> 02:30:02.250
Boardroom: And identify how we can then relay that information, to the camera owner. Okay. And then one last… just the bigger kind of process point. So, if we move forward and approve these, these aren't in, concrete, never to be looked at again. Part of this is to start your process for the RFP, so you have a basis for the RFP.

968
02:30:02.250 --> 02:30:10.760
Boardroom: It's possible that, again, if we decide to move forward, and if there's a vendor selection, and they may have an approach that changes

969
02:30:10.760 --> 02:30:12.999
Boardroom: The way we might use the technology.

970
02:30:13.320 --> 02:30:22.890
Boardroom: we would update the acquisition report and potentially the use policy at a later point, and re-ratify it at a later point. Like, these are not… this… we need this to start

971
02:30:22.890 --> 02:30:41.219
Boardroom: But this may not be the last time we look at it. Is that fair to say? That's exactly correct. We think that these are policies that stand on their own with the technology that we're aware of, but understand that the RFP might uncover additional functionality that we need to account for in the policy, and at that point, we would update these documents

972
02:30:41.220 --> 02:30:52.770
Boardroom: resubmit them to PAB, and resubmit them to Council as well. Okay, again, I just want to thank you for being thorough and responding to our thorough questions and, bringing this forward, so thank you.

973

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02:30:54.160 --> 02:31:12.780
Boardroom: Thank you very much for your questions, and for letting me piggyback off them. Can we go to Councilmember Humber, please? Thank you, Madam Mayor. I have one sort of broad, follow-up question, and that's whether or not this system could contribute to the safety of the arriving officers.

974
02:31:14.250 --> 02:31:37.170
Boardroom: Absolutely. Having live information, for officers that somebody from the department can broadcast to officers as they're arriving on scene gives them better situational awareness, and not only, leads to greater safety on the part of the officer, but also gives them a better picture of what's happening, which allows them to make better decisions, which create better outcomes for everybody.

975
02:31:37.170 --> 02:31:47.490
Boardroom: Yeah, thank you very much. And thank you for explaining the difference between, sort of, the… how the Ring cameras are used, and how this system would be used, because just on my block just yesterday.

976
02:31:47.490 --> 02:31:50.030
Boardroom: One of my neighbors,

977
02:31:50.100 --> 02:32:04.130
Boardroom: an elder, probably in his late 80s, left with his golf clubs at 7.30 in the morning, and immediately thereafter, somebody broke into his front door and encountered his wife coming down the stairs. Thank God she fled.

978
02:32:04.130 --> 02:32:10.529
Boardroom: But then, officers were canvassing our street, looking at red ring cameras. They looked at ours.

979
02:32:10.530 --> 02:32:18.350
Boardroom: Nothing very useful. But it was kind of after the fact, and not quite as… not quite as useful. So, thank you.

980
02:32:19.940 --> 02:32:23.330
Boardroom: Thank you very much. Other questions from Councilmembers?

981
02:32:23.870 --> 02:32:26.300
Boardroom: I have a couple follow-up questions.

982
02:32:26.910 --> 02:32:42.140

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Boardroom: I think that we've had some conversations about this, around which personnel will be authorized to access the investigative software, and it seems like you're… there's maybe some… still some figuring out there. Could you just speak to that, please?

983
02:32:43.080 --> 02:32:58.030
Boardroom: Yeah, so there's a couple layers to it, because the investigative software will sit on top of, will integrate with other pieces of technology that we have that have their own use policies, right, and other… and their own training requirements. And so…

984
02:32:58.110 --> 02:33:08.459
Boardroom: those will all still hold, right? Nobody will be able to, access a piece of technology through this software that they don't already have access to,

985
02:33:09.410 --> 02:33:18.550
Boardroom: via that, that separate policy. So this policy, is, is, doesn't…

986
02:33:18.570 --> 02:33:40.360
Boardroom: doesn't grant that additional access to somebody else, and requires that, personnel who have been trained and, previously authorized, are the only ones that can, that can access. In practice, that looks like, our investigators, our detectives, our crime analysts who are, working up these cases to pass on to our detectives.

987
02:33:40.360 --> 02:33:43.699
Boardroom: And so that's a relatively small group.

988
02:33:44.160 --> 02:33:53.880
Boardroom: Yeah, I think that was the piece that wasn't included from the questions, from the follow-up from that, by the way, that acronym you use,

989
02:33:54.150 --> 02:34:14.060
Boardroom: PSP… I forgot what it is. Yeah, but it's the Public Safety Policy Committee, just so for folks who didn't know what that acronym was. And I think that was the only piece that wasn't quite addressed, that piece you said, in practice, it's these folks, and so I just wanted to make sure that that was clear, because I think that,

990
02:34:14.510 --> 02:34:32.829
Boardroom: that piece of it is… is important. Like, of course you want to have enough folks who have access to it so it's useful, and also you

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don't want to have too many people have access to it, because that, of course, creates risks. And then… similarly, so those people, would they have…

991
02:34:33.250 --> 02:34:40.390
Boardroom: the ability to determine when to utilize the CVS systems.

992
02:34:41.020 --> 02:34:50.989
Boardroom: Or, like, would there need to be, like, a supervisor or something that would say, okay, you can use these tools to access the footage? Just so I understand the sort of chain of command piece.

993
02:34:51.900 --> 02:34:54.889
Boardroom: Yeah, the… the… the…

994
02:34:55.080 --> 02:35:06.739
Boardroom: training and authorization piece would enable that, detective or analyst to use the system. And we would follow up on those uses via the audits.

995
02:35:06.820 --> 02:35:14.179
Boardroom: Okay, so… so when that… that call comes in, and someone is searching, whoever it is that…

996
02:35:14.180 --> 02:35:19.310
Boardroom: Is able to use the investigative system, would ha- would be able to just

997
02:35:19.310 --> 02:35:43.110
Boardroom: they would have authorization to use that system. Correct, because part of the value of this is providing that clear, real-time information. Got it, okay. I just want to make sure I understand that, thank you. And then, if… I know that we've said that this is focused on commercial areas, commercial cameras. If there were ever a desire to expand the CVS to residential, what would the process be for that?

998
02:35:44.670 --> 02:35:53.250
Boardroom: Well, I mean, A, I can't imagine a scenario where we'd be looking to do that, but… but B…

999
02:35:53.640 --> 02:35:59.830
Boardroom: It would be, you know, we'd have the same pre-integration, process.

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1000
02:36:00.020 --> 02:36:08.060
Boardroom: And review process that would include public notification, and so there'd be no way to do it without Council knowing and the public knowing.

1001
02:36:08.280 --> 02:36:22.729
Boardroom: Thank you. And then, when defining residential areas, how would an area with dense multifamily housing on a commercial corridor be classified? I think there's some overlap in commercial and residential areas there.

1002
02:36:22.890 --> 02:36:39.609
Boardroom: Yeah, I mean, that is part of the difficulty of saying strictly, you know, incorporated business improvement districts would be the only ones, because that doesn't cover necessarily every commercial corridor that might be interested, right? And then similarly, there's… there's not always a bright line between those two,

1003
02:36:39.950 --> 02:36:41.759
Boardroom: areas.

1004
02:36:41.890 --> 02:36:52.709
Boardroom: So, the part of the way we resolve that is by the… is by public notification and giving, the public and council an opportunity to see exactly,

1005
02:36:52.790 --> 02:37:11.980
Boardroom: how this process is unfolding, and by the way, like, the pre-integration review process will be slow. It'll necessarily slow us down. And so it's not going to be that there will be, 10, 50 cameras popping up overnight. It's gonna be one by one. It's gonna roll out slowly.

1006
02:37:12.690 --> 02:37:27.689
Boardroom: Thank you, I appreciate your answers to my questions. Councilmember Lunopara, did you have questions? Yeah, thank you. I have two questions. On the investigative technology, if open source data queries are allowed.

1007
02:37:27.950 --> 02:37:39.809
Boardroom: Can you talk a little bit more about how this could apply, during protests or political activity, given the First Amendment carve-out only restricts intentional monitoring?

1008
02:37:41.010 --> 02:37:48.600

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Boardroom: Well… So, excuse me, are you, are you asking, like, if there's…

1009
02:37:48.720 --> 02:37:57.349
Boardroom: First Amendment activity or speech happening online, and we happen to collect that and use that somehow, or…

1010
02:37:58.080 --> 02:38:01.500
Boardroom: Yeah, so that can still be used in those situations.

1011
02:38:02.040 --> 02:38:07.180
Boardroom: the system will be… oh, in the situation of a First Amendment assembly.

1012
02:38:07.370 --> 02:38:17.950
Boardroom: Yeah, that use would be prohibited, because we wouldn't be, using the software to… to monitor those protests or anything. Like, that is expressly prohibited. Yeah.

1013
02:38:18.450 --> 02:38:21.850
Boardroom: Thank you. And on the CVS,

1014
02:38:22.000 --> 02:38:31.970
Boardroom: Is the integration vendor proprietary, or if the city were to switch vendors, could BPD swatch camera providers, without reintegrating every participating camera?

1015
02:38:32.590 --> 02:38:50.409
Boardroom: That… I would imagine that it would… if we switched vendors for that software integration process, we would go back and reintegrate those cameras. It will likely depend on the specific capabilities of the vendor that we're switching from and to.

1016
02:38:50.450 --> 02:38:55.219
Boardroom: And so, as we haven't identified that yet, I can't say for sure, but just…

1017
02:38:55.420 --> 02:39:03.800
Boardroom: In my, you know, understanding of how these technologies tend to work, yeah, we would likely, need to re-enroll the cameras that are interested in participating.

1018
02:39:04.730 --> 02:39:06.079

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Boardroom: Thank you.

1019
02:39:06.760 --> 02:39:09.179
Boardroom: Thank you very much. Vice Mayor Trey Gob.

1020
02:39:10.010 --> 02:39:13.089
Boardroom: Thank you so much.

1021
02:39:13.710 --> 02:39:23.090
Boardroom: Does BPD use investigation software and platforms now? And if, well…

1022
02:39:23.380 --> 02:39:25.779
Boardroom: yes or no, and then I have a follow-up.

1023
02:39:25.780 --> 02:39:44.759
Boardroom: No, no, we access these different types of records that we already have access to, separately in their own systems, and then do our best to line things up as we can, as we're investigating cases. Okay. I just wanted to confirm, since there are… there is a… I'm aware of

1024
02:39:45.060 --> 02:39:50.179
Boardroom: I think this came up, in committee discussion, that there is…

1025
02:39:50.280 --> 02:40:14.380
Boardroom: at least one, residential neighborhood that has a private contract with Flock, and I just wanted to confirm, like, there would be no relationship with, like, it would be completely carved out. We're only looking at commercial applications for this. For the community video streams. So, for the community video streams, yeah, those would be privately owned surveillance cameras.

1026
02:40:14.520 --> 02:40:22.589
Boardroom: That businesses own, and that we would connect to. Okay.

1027
02:40:23.400 --> 02:40:27.789
Boardroom: how could we ensure, I mean, I…

1028
02:40:28.220 --> 02:40:39.070
Boardroom: So there's strong language around disabling facial recognition and other such technologies. But they are…

1029

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02:40:39.490 --> 02:40:50.340
Boardroom: or they may be available depending on whatever vendor, the city may choose to go with.

1030
02:40:50.750 --> 02:40:52.590
Boardroom: What,

1031
02:40:52.980 --> 02:41:01.829
Boardroom: Is the department, doing to ensure that, to the extent that those capabilities exist, they continue to be switched off?

1032
02:41:03.260 --> 02:41:19.579
Boardroom: Yeah, so again, without getting into the details of the RFP, our policies clearly state, that we should not be able to access those facial recognition tools, or we should be able to turn them off or disable them.

1033
02:41:19.600 --> 02:41:24.660
Boardroom: And any vendor that we would contract with would need to be able to accommodate that policy.

1034
02:41:24.760 --> 02:41:43.910
Boardroom: Okay, thank you. And then, last question, AI is developing so fast, and you know, these technologies are, often reliant on, AI, and it is hard to keep up with all the, technical capabilities.

1035
02:41:43.950 --> 02:41:58.079
Boardroom: How do you plan to, foresee these kinds of technological changes, and can you speak to the application of a precautionary principle, around that?

1036
02:41:58.450 --> 02:42:11.950
Boardroom: Yeah, well, thank you for that, because it's an important question, and it came up at our June 2nd Public Safety Policy Committee, and, one of the takeaways, that we've implemented into our,

1037
02:42:12.180 --> 02:42:29.389
Boardroom: our policies and our approach to procuring these technologies is making sure that there's able to be a human in the loop at every step in the investigative process. So there will be no investigation that, continues

1038
02:42:31.340 --> 02:42:48.529

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Boardroom: aided by AI without an investigator corroborating each step and, and moving the investigation forward. So I, I think that's a clear principle that, we're able to articulate, and, and follow through on,

1039
02:42:48.530 --> 02:42:52.589
Boardroom: That we will be… it'll be officers,

1040
02:42:52.740 --> 02:43:00.249
Boardroom: confirming and following up on, each piece of information, as the investigation unfolds. Thank you.

1041
02:43:01.180 --> 02:43:20.490
Boardroom: Okay, thank you very much. Can we take public comment on this item, please? We are working on item number 46, Surveillance Technology Ordinance Submissions for Community Video Streams and Investigative Software Pursuant to Council Direction of May 7th, 2026. So if you have public comment on this item, please come on up.

1042
02:43:25.480 --> 02:43:30.959
Boardroom: Hey, so I find it really funny, in 2026, people will trust tech companies at all.

1043
02:43:31.250 --> 02:43:47.059
Boardroom: These tech companies have shown time and time again they will flip rules, have separate access they forget to mention. Any rule you put on these can be circumvented and abused. Once the data is recorded, it's ripe for all kinds of abuse. I can take your video and apply facial recognition after.

1044
02:43:47.610 --> 02:43:53.390
Boardroom: I have to say I've noticed a trend. Whenever some mass breach or improper access happens to the one…

1045
02:43:53.650 --> 02:43:55.190
Boardroom: Happens,

1046
02:43:55.290 --> 02:44:08.379
Boardroom: And, at least the ones that we know about, like the recent SFPD breach, it's always, whoops, we violated your constitutional rights, some officer gets a memo, your Fourth Amendment rights are gone, dead, just forget about it.

1047
02:44:08.840 --> 02:44:09.929
Boardroom: You know.

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1048
02:44:10.210 --> 02:44:24.239
Boardroom: I really gotta say, this type of government stalking would make the Stasi blush, and it really just makes me very angry, if you can't tell. So, and it reminds me of one of my favorite, really American phrases, please just mind your own damn business. Thanks.

1049
02:44:25.230 --> 02:44:26.399
Boardroom: Thank you!

1050
02:44:31.330 --> 02:44:34.109
Boardroom: Hi there, I think I have one more minute from the audience.

1051
02:44:36.600 --> 02:44:50.840
Boardroom: Thank you. I have a couple of comments about the policy. One phrase that I've heard a lot is that businesses can opt in to sharing their data, which is true, but the rest of us do not get a choice to opt out.

1052
02:44:50.840 --> 02:44:59.409
Boardroom: Whatever camera we walk by, that a business has opted in, we have no choice in the fact that our information is going to be collected from that feed.

1053
02:45:00.070 --> 02:45:10.489
Boardroom: Another comment is about continuous monitoring. I've heard various people say, like, this is not, you know, Orwellian, because, like, no cop is just, like, sitting there watching every feed.

1054
02:45:10.490 --> 02:45:22.650
Boardroom: And while it's true, the fact that all of this data is recorded and kept means that somebody could go and watch that feed at any point. Every second of every stream is available to them.

1055
02:45:22.650 --> 02:45:31.980
Boardroom: and searchable, so the distinction that they're not actively watching it, I think, makes very little difference in this case, and the privacy harms are real either way.

1056
02:45:32.910 --> 02:45:44.060
Boardroom: I've heard a lot about facial recognition, and it's gonna be turned off, and AI, and I think it's good that we turn off facial recognition, but we've also seen that these systems

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1057
02:45:44.060 --> 02:46:02.179
Boardroom: can use other things to search for individuals, so you don't actually need facial recognition to find people in this pile of video footage that's available. And there is the very real threat that other organizations outside of our police department can use facial recognition on the exact same data by getting access to it.

1058
02:46:03.380 --> 02:46:15.130
Boardroom: And that goes along with the federal sharing concern. Yes, we will not actively share this with the federal agencies, but we know that they can still get access to that data through other means.

1059
02:46:15.640 --> 02:46:30.039
Boardroom: And lastly, I just want to say, like, the fact that, in the case of somebody's individual camera system, the fact that somebody has to go out and ask for access is an important safeguard. It limits the harm that can be done by video collection.

1060
02:46:30.040 --> 02:46:40.440
Boardroom: And this really undoes that in every way by making it incredibly easy to collect massive amounts of data, which is really just too unsafe to collect in any way. Thank you. Thank you.

1061
02:46:44.600 --> 02:47:00.789
Boardroom: Hi, I really can't wait until all those cameras are installed, and there's signs up everywhere. You're being watched here. You're being watched there. We're being watched everywhere, folks. And it's only gonna get worse and worse and worse.

1062
02:47:00.940 --> 02:47:03.509
Boardroom: If they can turn…

1063
02:47:03.900 --> 02:47:17.739
Boardroom: things off, that means they can also turn them on again. It's like the long-range acoustic device, LRAD. They said, well, you know, it can be weaponized, but we're not gonna use it. We'll turn that off. Well…

1064
02:47:18.060 --> 02:47:24.320
Boardroom: If you can turn it off, you can turn it on again. And I find that… disconcerting, I think.

1065
02:47:24.700 --> 02:47:33.920
Boardroom: When it comes down to it, thinking beyond, because you're obviously going to fall for this, and get some kind of cameras around,

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1066
02:47:34.960 --> 02:47:41.260
Boardroom: The cameras won't work if they're broken, if they're painted over, if they're taken down.

1067
02:47:41.390 --> 02:47:49.930
Boardroom: If something happens to them along the way, that's gonna be what's necessary, thank you.

1068
02:47:59.720 --> 02:48:07.559
Boardroom: Well, first of all, my understanding of the current state of the technology is that,

1069
02:48:08.290 --> 02:48:11.009
Boardroom: a, a PTZ camera can.

1070
02:48:11.190 --> 02:48:16.029
Boardroom: Search for… A target based on a general description.

1071
02:48:17.490 --> 02:48:32.200
Boardroom: Then, follow that target, And, link up with a, A plate reader, and… Actually identify the person.

1072
02:48:33.450 --> 02:48:40.479
Boardroom: And, you don't need facial recognition, because it's an ornament.

1073
02:48:41.190 --> 02:48:43.760
Boardroom: That's already obsolete.

1074
02:48:44.660 --> 02:48:51.150
Boardroom: Second is, we're going down the wrong road, really.

1075
02:48:53.760 --> 02:48:54.940
Boardroom: Thank you.

1076
02:49:02.630 --> 02:49:17.099
Boardroom: Hi, I'm Julie Dickey. I've lived in Berkeley for 26 years. Welcome to Berkeley. I thought May 7th, or whenever that May meeting was, we had

1077

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02:49:17.390 --> 02:49:26.169
Boardroom: scored a victory that I was so proud, and so many citizens of Berkeley shared their pride in Berkeley.

1078
02:49:26.420 --> 02:49:37.759
Boardroom: doing away with discussions of flock and surveillance, I thought, hip, hip, hooray! So I'm back here today to say.

1079
02:49:38.950 --> 02:49:43.990
Boardroom: That was a very… Very… slimly.

1080
02:49:44.300 --> 02:49:46.649
Boardroom: Short-toned victory.

1081
02:49:47.610 --> 02:49:52.990
Boardroom: I just have… Three issues. Four. One is…

1082
02:49:53.840 --> 02:50:03.070
Boardroom: The stress that this whole country is going through right now about this regime.

1083
02:50:05.220 --> 02:50:06.970
Boardroom: Thank you. Can I get a minute.

1084
02:50:07.250 --> 02:50:12.359
Boardroom: Oh, a minute from this person over here. Go ahead. This is a regime.

1085
02:50:12.540 --> 02:50:19.359
Boardroom: Of fascism that we're under. It's just no time, it seems to me.

1086
02:50:19.480 --> 02:50:29.809
Boardroom: to add these cameras for their benefit. And secondly, there was a letter out that was,

1087
02:50:30.660 --> 02:50:37.719
Boardroom: reportedly a warning about lawsuits that Berkeley could face if it continued on this path.

1088
02:50:38.190 --> 02:50:41.000
Boardroom: And thirdly…

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1089
02:50:42.230 --> 02:50:52.049
Boardroom: Our deficit, our budget. We talk about we can hardly save programs that are working. We may have to lay off firefighters.

1090
02:50:52.850 --> 02:51:06.579
Boardroom: And the fourth and final, the community has said over and over and over, we do not want to be surveilled. And I don't care if it's called by flock or any other name, it's all the same. Thank you.

1091
02:51:14.970 --> 02:51:18.140
Boardroom: I'm Kelly Hammergren.

1092
02:51:18.430 --> 02:51:23.380
Boardroom: Do the presentations sound so reassuring?

1093
02:51:23.760 --> 02:51:25.870
Boardroom: I thought it'd sound reassuring.

1094
02:51:27.050 --> 02:51:32.310
Boardroom: didn't I feel reassured by all these rules, and…

1095
02:51:32.500 --> 02:51:37.600
Boardroom: How, everybody's gonna follow the rules.

1096
02:51:37.900 --> 02:51:39.750
Boardroom: And the contracts?

1097
02:51:40.520 --> 02:51:43.530
Boardroom: Aren't we all reassured?

1098
02:51:43.670 --> 02:51:51.169
Boardroom: And… We're gonna notify someone when we find out within 10 days.

1099
02:51:51.360 --> 02:52:02.070
Boardroom: And we're gonna only audit, what, twice a year we're gonna get an audit, and then we'll find out what actually happened to the information and who accessed it.

1100
02:52:02.800 --> 02:52:18.429

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Boardroom: I have to say, I'm not terribly reassured, and I thought that at that June 2nd meeting, we talked a lot more about how AI was going to be used, to do the screening.

1101
02:52:18.620 --> 02:52:22.190
Boardroom: So, I guess my time is up. Thank you.

1102
02:52:31.360 --> 02:52:38.090
Boardroom: Yeah, I, I think it does come down to a question of trust.

1103
02:52:38.380 --> 02:52:48.110
Boardroom: And as other people have said, The trust that written policies or even… local laws.

1104
02:52:48.230 --> 02:52:50.270
Boardroom: Are going to stand up to the…

1105
02:52:50.690 --> 02:52:54.319
Boardroom: designs of the feds on our data.

1106
02:52:54.880 --> 02:52:58.589
Boardroom: I don't know how we can still be in a position of trusting that.

1107
02:52:59.250 --> 02:53:02.199
Boardroom: Other people have spoken to this, but…

1108
02:53:02.710 --> 02:53:08.469
Boardroom: I mean, do we understand the owner of Flock, for example, is Mark Andreessen?

1109
02:53:10.790 --> 02:53:13.860
Boardroom: attacks DEI and immigrants.

1110
02:53:14.130 --> 02:53:25.359
Boardroom: immigration policies describing them together as politically lethal forms of discrimination. That's who we're getting in bed with. Or the other companies who are even worse, as I said before.

1111
02:53:26.140 --> 02:53:34.490

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Boardroom: I wish you would try a little harder to listen. There's a wealth of information coming to you that you're not using, just discounting. Thanks, George.

1112
02:53:38.780 --> 02:53:40.159
Boardroom: May I have funding?

1113
02:53:40.840 --> 02:53:43.290
Boardroom: Gary, one minute? Actually, any other minutes?

1114
02:53:43.840 --> 02:53:44.600
Boardroom: That's okay.

1115
02:53:48.790 --> 02:54:06.000
Boardroom: Greetings, Mayor, City Council, staff, community members. My name is Aiden Hill. I'm speaking as a resident of Southside, a member of CERT, a medical aid-first clinician, and a candidate for City Council District 7, who values good governance.

1116
02:54:06.120 --> 02:54:23.489
Boardroom: To put this item simply, this would authorize software that can search across police data, license plate reader data, drone data, fixed cameras, open source information, and future surveillance capabilities, as well as procedures enabling police access to share private camera feeds.

1117
02:54:23.680 --> 02:54:37.899
Boardroom: I can see why this seems helpful. Quick information is critical in an emergency. However, the first question is about the budget. How do we find 1,400,140 thousand…

1118
02:54:38.080 --> 02:54:52.199
Boardroom: of a year for surveillance when underfunded homeless programs, mental health response, maintenance, lighting, restrooms, and secure public spaces are not funded. This could aid in post-harm activity and investigations.

1119
02:54:52.200 --> 02:55:03.430
Boardroom: But neighborhood stability is not achieved by this measure. Second, there's a data issue. Neither the software nor the independent public hardware are being developed by Berkeley.

1120
02:55:03.430 --> 02:55:13.280

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Boardroom: Bad data can turn into leads that appear official if vendor systems, private cameras, or metadata is exploited, like many of the community members have said already.

1121
02:55:14.070 --> 02:55:25.259
Boardroom: Lastly, there is a governance issue. This idea generates a key, essentially, for the city. This key may not be used in the same way by future councils.

1122
02:55:25.300 --> 02:55:33.809
Boardroom: The Supreme Court reminded us this week, in Trump v. Slaughter that institutional protections are important because power shifts hands.

1123
02:55:33.830 --> 02:55:52.029
Boardroom: The city bears the burden of evidence. Because City Hall promises to exercise caution, residents shouldn't have to put up with increased surveillance. Council should not approve this without further proof. It makes people safer than the prevention-first investments listed above. Thank you. Thank you.

1124
02:55:59.090 --> 02:56:03.189
Boardroom: Hi, Mayor and Council Members. I'm a Berkeley resident.

1125
02:56:03.700 --> 02:56:11.789
Boardroom: I just want to say that I understand, sort of, we live in Silicon Valley, everything is about AI right now.

1126
02:56:11.790 --> 02:56:27.179
Boardroom: I work in the healthcare system, and everything is about how do we apply AI? And our risk and Compliance Department are like, no, you are not using this. And we're sitting there going like, but why not? It can really accelerate the way we do work, it can make it more effective, faster.

1127
02:56:27.360 --> 02:56:37.909
Boardroom: But I also understand that, like, if you think about the way we as a society jumped into the last digital revolution called social media, how has that turned out for us?

1128
02:56:38.230 --> 02:56:46.250
Boardroom: Right? Like, the decision that we make today has impacted generations behind us, and I would say social media really effed

1129
02:56:46.250 --> 02:57:03.339

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Boardroom: some of the younger generations. And how this is all gonna play out isn't really known to us right now. So I just impress upon you that the decision you're making today has implications for future generations, and also every other city in this country, because they're going to point to Berkeley and say, they did it, why not us? Thank you.

1130
02:57:07.380 --> 02:57:18.640
Boardroom: AI scares me. It scares me because it can… it's so oftenly… frequently inaccurate, and it's so far-reaching.

1131
02:57:21.630 --> 02:57:43.899
Boardroom: do we really want to do this? I am someone in the past who has supported cameras for public safety reasons. I am someone who has supported our police department, who I think is an excellent police department, but this is far beyond this. This is about letting control and relinquishing

1132
02:57:43.970 --> 02:57:54.470
Boardroom: our control to what's going on right now in our country that's being so engineered. All these jurisdictions around the country can't be wrong.

1133
02:57:54.720 --> 02:58:08.120
Boardroom: that have decided, this is not the tack we want to take right now, at this particular point in time. Maybe we can evaluate in the future, re-evaluate, but not right now.

1134
02:58:08.120 --> 02:58:14.910
Boardroom: I also think it would be good for Brian Hoffer of Secure Justice to appear before counsel and answer questions.

1135
02:58:16.050 --> 02:58:22.869
Boardroom: Okay, I think we have a couple of comments online. Yes. Okay, first speaker is…

1136
02:58:23.440 --> 02:58:27.130
Boardroom: Listed as virtual meetings. You should be able to unmute.

1137
02:58:40.740 --> 02:58:45.250
Boardroom: Should be able to unmute.

1138
02:58:51.820 --> 02:58:54.240
Virtual Meetings: Hello, my name is Wendy Olsen.

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1139
02:58:55.060 --> 02:59:00.760
Virtual Meetings: with Berkeley Friends Meeting, speaking again in… -

1140
02:59:00.840 --> 02:59:20.100
Virtual Meetings: opposition to adoption of the policies tonight. Some changes, we're told, are made, but in reviewing the policy that's in the Council agenda packet compared with what was presented to the Police Accountability Board.

1141
02:59:20.430 --> 02:59:36.219
Virtual Meetings: I don't see any changes from what the Public Safety Policy Committee has recommended that have any specificity. We're talking about, from your referral, require the department

1142
02:59:36.220 --> 02:59:43.250
Virtual Meetings: To tighten a whole bunch of different things, and make them specific, and enforceable.

1143
02:59:43.640 --> 02:59:47.750
Virtual Meetings: And this language, it just doesn't do it.

1144
02:59:48.360 --> 02:59:57.670
Virtual Meetings: No… Every li- I really request that the current…

1145
02:59:58.140 --> 02:59:59.309
Boardroom: Thanks, Wendy.

1146
03:00:01.030 --> 03:00:03.419
Boardroom: Okay, next is Dew Shine.

1147
03:00:08.750 --> 03:00:13.110
Dewshine: Thank you, yes, this is Daria Rubel, again, resident of

1148
03:00:13.110 --> 03:00:35.830
Dewshine: District 1 and, Council Candidate in District 1. I want to thank Mayor Ishii for her previous question about, commercial districts that are combined with residential districts, like much of downtown. I'm concerned about, the impact that,

1149
03:00:36.650 --> 03:00:48.800

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Dewshine: this, technology, this surveillance, could have on people going about living their lives without an expectation of privacy, that is guaranteed by the Constitution.

1150
03:00:49.360 --> 03:01:06.130
Dewshine: I also, you know, that expectation of privacy, that right to live our lives without constant surveillance, I think is an important, right, and as a previous speaker spoke about.

1151
03:01:06.130 --> 03:01:11.330
Dewshine: the impacts of social media on younger generations. I am a child and young adult therapist.

1152
03:01:11.330 --> 03:01:12.560
Boardroom: shield.

1153
03:01:12.560 --> 03:01:13.520
Dewshine: impacts.

1154
03:01:14.260 --> 03:01:15.619
Boardroom: Next speaker, please.

1155
03:01:16.330 --> 03:01:19.470
Boardroom: Next speaker is Jordan.

1156
03:01:22.900 --> 03:01:46.739
Jordan & Avi: Hi, my name is Jordan, and I'm very concerned about the idea of any kind of collation of individual security camera streams. I think that it is so direly Orwellian that if it weren't terrifying, it would be hilarious, because it actually is an absurd level of surveillance, and such an intense web of surveillance. And I think that we're forgetting the

1157
03:01:46.740 --> 03:01:51.699
Jordan & Avi: The fact that there is inherent value in being able to exist in public spaces without

1158
03:01:51.780 --> 03:02:01.929
Jordan & Avi: being constantly watched. I really feel that we're… we're losing track of a really fundamental right that's… it's a constitutional right, but it's also just a right that

1159
03:02:01.930 --> 03:02:17.649

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Jordan & Avi: that, bolsters our own humanity. Like, if we're really gonna make it so that there's no more privacy, there's no more way to exist in public without being on camera, and those cameras being integrated into a giant web, like… come on, y'all. That's crazy. Thank you.

1160
03:02:19.080 --> 03:02:19.950
Boardroom: Thank you.

1161
03:02:20.150 --> 03:02:21.879
Boardroom: Next is Maria.

1162
03:02:22.270 --> 03:02:23.270
Boardroom: Soul?

1163
03:02:25.610 --> 03:02:27.620
maria sol: Yeah, thank you so much.

1164
03:02:29.310 --> 03:02:39.609
maria sol: This whole conversation presumes distrust in our inherent goodness and capacity to keep ourselves safe.

1165
03:02:39.750 --> 03:02:50.689
maria sol: by preventing the causes of what we deem as criminal or potentially criminal activity. Just heard Trump today say.

1166
03:02:51.360 --> 03:02:58.080
maria sol: Any… any of us community activists are a greater threat than all the world war…

1167
03:02:58.310 --> 03:03:03.400
maria sol: So, you know, I would rather cultivate and spend our time and attention

1168
03:03:03.810 --> 03:03:17.520
maria sol: on taking care of us and helping each other than wasting this in this ocean of fear and threat. It's just inhumane. Please know.

1169
03:03:17.690 --> 03:03:21.959
maria sol: No, no, let's believe in us again, and come together and help.

1170
03:03:22.100 --> 03:03:24.809

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maria sol: ourselves and each other. Thank you.

1171
03:03:25.130 --> 03:03:26.610
Boardroom: Thanks, Maria.

1172
03:03:26.720 --> 03:03:28.870
Boardroom: Next is JL.

1173
03:03:32.830 --> 03:03:33.749
JL: Hi, can you hear me?

1174
03:03:34.370 --> 03:03:35.230
Boardroom: Yes.

1175
03:03:35.620 --> 03:03:46.999
JL: Thank you. I also oppose adopting the policies described. I'm very concerned with the fact that facial recognition technology can be applied after the fact to the data that's being collected.

1176
03:03:47.540 --> 03:03:59.450
JL: I echo the concerns of others that state that we don't have a choice to opt out of this as members of the public, even if individual, you know, owners of their data do. We don't, as a member of the public, we don't have choice just walking around.

1177
03:03:59.860 --> 03:04:05.780
JL: And the fact that this data is recorded and kept means it can be searched later on.

1178
03:04:06.130 --> 03:04:09.879
JL: The community has said over and over, we don't want to be surveilled.

1179
03:04:09.950 --> 03:04:27.829
JL: And I'm not reassured by the so-called safeguards that have been described, and I implore you to think about what one of the other commenters said about the implications of this for future generations, and our current generation, and our current state of being in this country. Thank you.

1180
03:04:28.390 --> 03:04:29.480
Boardroom: Thank you.

1181

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03:04:30.970 --> 03:04:36.250
Boardroom: And, last speaker is a caller with a phone number ending in 211.

1182
03:04:43.140 --> 03:04:45.740
1510****211: I definitely agree with many of the callers.

1183
03:04:46.140 --> 03:04:51.139
1510****211: We're in a very sliding slope with this monstrosity in the White House.

1184
03:04:51.340 --> 03:04:52.550
1510****211: What is your aim?

1185
03:04:52.810 --> 03:04:57.520
1510****211: You know, they tell you A, but they're actually going… they're going after everybody.

1186
03:04:57.710 --> 03:05:06.550
1510****211: I just ask about everybody. About 1.5 million Americans died from COVID-19… excuse me, COVID-19 in his first administration, but he denied it.

1187
03:05:06.920 --> 03:05:14.530
1510****211: You know, and most other countries, there's only about 10,000. We're dealing with monstrosity. Do not trust anybody.

1188
03:05:14.590 --> 03:05:27.320
1510****211: Do not, we are in really dark time, and the whole idea, look at the global warming, it's getting so hot in Europe now, hundreds of people are dying every day. We are in a very, very dark time. What can we do?

1189
03:05:27.860 --> 03:05:29.020
1510****211: Intelligence.

1190
03:05:29.960 --> 03:05:31.049
1510****211: I'll call you again.

1191
03:05:33.170 --> 03:05:40.710
Boardroom: Thank you. Thanks, thanks for the public comment. Is that… That's the last speaker. Okay. Thank you very much.

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1192
03:05:40.900 --> 03:05:46.720
Boardroom: All right, are there any comments from Councilmembers, starting with Councilmember Humbert, please?

1193
03:05:49.000 --> 03:05:52.119
Boardroom: Thank you, Madam Mayor. Wow, I didn't expect to be first.

1194
03:05:52.300 --> 03:06:01.300
Boardroom: I want to thank Chief Lewis Arlo and Captain Okies in the Public Safety Subcommittee for all their really good work on this.

1195
03:06:01.510 --> 03:06:18.559
Boardroom: I think the recommendations of the subcommittee were right on point, and BPD has substantively addressed those recommendations, that's clear to me. I feel that streamlining the process by which BPD can access private video streams on a voluntary and regulated basis

1196
03:06:18.560 --> 03:06:27.199
Boardroom: Makes all the sense in the world. This is a… this is fundamentally what is already happening with investigations taking place, just in a less efficient way.

1197
03:06:27.750 --> 03:06:41.309
Boardroom: And in my view, this simplifies the process while also ensuring transparency and tightening the audit process, so we will be able to see how this works, and we can correct any issues over time. Thank you.

1198
03:06:41.730 --> 03:06:44.719
Boardroom: Thank you very much. Any other comments from Councilmembers?

1199
03:06:47.050 --> 03:06:52.120
Boardroom: Yes, oh, okay. Council, sorry, oop.

1200
03:06:52.450 --> 03:07:09.269
Boardroom: Starting with Councilmember Blackaby. Somebody else is gonna go first, and then dropped out, but that's fine. I was ready. Again, thanks to the colleagues. I also want to thank the public commenters. You know, I've been listening to everyone who's here tonight, everyone at the…

1201
03:07:09.270 --> 03:07:14.049

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Boardroom: previous meeting, because I think, you know, we're all trying to figure out how to balance

1202
03:07:14.080 --> 03:07:22.930
Boardroom: If we can, the feedback that we're hearing. We understand that there are real privacy concerns here, I get it. I've spent some time working in digital privacy myself.

1203
03:07:23.180 --> 03:07:33.570
Boardroom: But balancing that against some of the real interests and some of the benefits that do come from technology that helps scale a police department where we can't hire enough officers to do the public safety that we want.

1204
03:07:33.650 --> 03:07:49.309
Boardroom: Anyway, so we're trying to navigate that balance, so I just want to be realistic about that. But I appreciate the feedback, and I know there are drawbacks, and there are things that we need to consider, and it's always very helpful to be reminded of that, and to center that in these discussions. So I just, again, you know, I want folks to know

1205
03:07:49.310 --> 03:08:03.670
Boardroom: we are listening and trying to process this alongside of the other responsibilities that I think we all feel here, to the community. I do want to thank, Arlo, I want to thank Captain Okies for being here tonight, thank the staff.

1206
03:08:03.790 --> 03:08:15.070
Boardroom: And again, thank my colleagues on the Public Safety Policy Committee, and, and the team for being very responsive, to all of the concerns that we've raised and the questions that we've raised.

1207
03:08:15.090 --> 03:08:26.460
Boardroom: I'm comfortable that, you know, we're in a good enough position to move the process forward. We know this is not the last step, but it's an important next step in the process, both for the RFP as well as for future consideration.

1208
03:08:26.480 --> 03:08:32.550
Boardroom: And so with that, I'd like to move that we adopt, the resolution in the staff report. Second.

1209
03:08:34.050 --> 03:08:38.139
Boardroom: Thank you very much. Okay, moving on to… oh.

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1210
03:08:38.550 --> 03:08:43.640
Boardroom: I'm gonna have to skip Councilmember Kisserwin until she comes back, but Councilmember Lunopara?

1211
03:08:44.500 --> 03:08:59.860
Boardroom: Thank you. I'd like to thank BPD for putting this together. I recognize the amount of work that has gone into it, but I'm fundamentally unconvinced that these tools are what our constituency wants and are without risk.

1212
03:09:00.000 --> 03:09:16.910
Boardroom: Both of these technologies sell speed and convenience as safety, and I do not believe in them as a way to improve our lives, and I seriously worry about further encroachment on our civil liberties, and I have no interest in aiding a fascist government by expanding surveillance in our city, so I oppose this item.

1213
03:09:19.420 --> 03:09:21.749
Boardroom: Thank you very much. Councilmember O'Keefe?

1214
03:09:24.260 --> 03:09:25.340
Boardroom: Ugh…

1215
03:09:26.010 --> 03:09:42.040
Boardroom: I think, I want to mostly join with, Councilmember Humbert's comments, so I won't, go over that. I just, I actually want to say I was quiet during the, questioning period, but I do want to say I was the third member of the Public Safety Committee, along with Councilmember Blackaby and the Mayor.

1216
03:09:42.070 --> 03:09:49.209
Boardroom: And I just want to say thanks again. You know, we spent a lot of time with this item, and I just want to thank you again for being responsive to our really extensive comments.

1217
03:09:49.320 --> 03:09:54.819
Boardroom: And I was very satisfied. And one of the things that I was really concerned about at that meeting was the,

1218
03:09:55.060 --> 03:10:03.220
Boardroom: the restrictions around when and how the livestream was gonna be viewable. That, to me, that was a big distinction, because

1219

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03:10:03.620 --> 03:10:07.319
Boardroom: to me, and Councilmember Humbert already said this well, but…

1220
03:10:08.110 --> 03:10:11.949
Boardroom: There's… there's no… there's nothing really new here.

1221
03:10:12.180 --> 03:10:18.520
Boardroom: It's… there's no new surveillance. This surveillance exists. It's existed for decades.

1222
03:10:18.570 --> 03:10:36.540
Boardroom: that we're just talking about giving our police officers a faster and easier way to access it, so they don't have to walk up and down the street and go into every building while they're trying to solve a crime where there's minutes and hours count. I mean, this is the simplest, easiest, most obvious…

1223
03:10:36.840 --> 03:10:52.589
Boardroom: technological benefit here, and I… it's… I just can't emphasize enough, there is no new surveillance here, so there's really nothing to be concerned about. I mean, you can be concerned about the existing surveillance state, I get that. I understand people don't like that, but that's not what we're talking about right now.

1224
03:10:52.750 --> 03:10:55.380
Boardroom: Okay, folks, please.

1225
03:10:55.690 --> 03:11:09.070
Boardroom: And, so anyway, that's why I'm happy to support this motion. Oh, I just want to say, the livestream thing, that is different. That's why I really, wanted to flesh that out and make sure we understood very clearly

1226
03:11:09.150 --> 03:11:28.569
Boardroom: when and how, officers would be allowed to actually tap into the livestream, because that is… that's the one thing that does not apply. What I just said does not apply to that is a new capability that we're giving the officers, or the police, and I think that's… you know, I'm okay with it, but there needs to be some really good, restrictions and safeguards, and I think,

1227
03:11:28.720 --> 03:11:39.179
Boardroom: what was described here today satisfies me. And that brings me to the last point I want to make, which is a lot of the commenters talked

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about how they don't… the safeguards aren't enough. I heard that over and over again.

1228
03:11:39.680 --> 03:11:43.499
Boardroom: And, you know, we're talking… we're not talking about the federal government here, we're talking about our

1229
03:11:43.670 --> 03:11:49.060
Boardroom: Our own police, and how they're gonna use this data, and whether or not they're going to obey the rules.

1230
03:11:49.300 --> 03:11:51.050
Boardroom: And, you know, we…

1231
03:11:52.080 --> 03:12:00.550
Boardroom: We… well, I won't say we. I trust our police to follow their own rules. And you know, I have to, because they…

1232
03:12:00.760 --> 03:12:17.520
Boardroom: we let them have guns, and they… I mean, if our police didn't follow their own rules, we'd have a much bigger problem. But they do. And we have, of course, very extensive police oversight, and there's auditing, and all of that stuff is in place, because, you know, blind trust maybe isn't the right thing here, but in general.

1233
03:12:17.950 --> 03:12:32.259
Boardroom: they do follow the rules. We're making the rules here, and I'm gonna assume that they're going to follow them, and if they don't, we'll find out, and there will be consequences. And that's the best any of us can do here, and I think this is a very well-constructed proposal, and I'm very happy to support it.

1234
03:12:34.340 --> 03:12:36.890
Boardroom: Thank you. Councilmember Cassarwani.

1235
03:12:37.260 --> 03:12:42.359
Boardroom: Thank you very much, Madam Mayor. Thank you for the presentation tonight.

1236
03:12:42.360 --> 03:13:05.290
Boardroom: I support this item. Both the community video streams and investigative software policies were thoroughly vetted by the Public Safety Policy Committee process. I want to thank my colleagues for the important amendments that were added through that process, which I think,

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strengthened this item even further. And I also want to talk about the budget last week. We heard

1237
03:13:05.290 --> 03:13:08.849
Boardroom: Somebody talk about the budget in public comment.

1238
03:13:09.380 --> 03:13:17.110
Boardroom: You know, in that budget, we made some very hard decisions, and we voted to eliminate 17 police positions.

1239
03:13:17.230 --> 03:13:27.009
Boardroom: They were vacant, and if the sales tax measure doesn't pass in November, we could be looking at the loss of more public safety positions.

1240
03:13:27.160 --> 03:13:40.389
Boardroom: And, you know, that staffing situation that we're in, that is a big part of why I believe in equipping our police department with modern crime-fighting tools.

1241
03:13:41.310 --> 03:13:45.410
Boardroom: I respect the opinions of others about

1242
03:13:45.650 --> 03:13:53.970
Boardroom: desiring privacy, I respect that view, but I also have to consider…

1243
03:13:54.130 --> 03:14:10.819
Boardroom: the rights of victims of violent crime, and I believe strongly in accountability for victims. When someone in our community is harmed, I believe they deserve a police department with the tools to solve the case.

1244
03:14:10.930 --> 03:14:18.650
Boardroom: And we've already seen how automated license plate reader technology has helped solve crimes that would have otherwise gone unsolved.

1245
03:14:18.980 --> 03:14:29.899
Boardroom: And I also want to recognize the real guardrails that you talked about, right? The ban on facial recognition, the stronger audit requirements.

1246

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03:14:29.930 --> 03:14:41.519
Boardroom: and clear restrictions on immigration and out-of-state enforcement. So, I'm confident that we have, reached a balance of,

1247
03:14:42.420 --> 03:14:52.960
Boardroom: enabling us to use technology while balancing, the important civil liberties that we all care about. So I'm prepared to vote on this item. Thank you very much.

1248
03:14:53.180 --> 03:14:55.020
Boardroom: Thank you, Vice Mayor Trey Gob.

1249
03:14:55.940 --> 03:15:04.469
Boardroom: Thank you, Madam Mayor. I want to provide a glimpse into and walk you through the decision-making that I and

1250
03:15:04.670 --> 03:15:11.509
Boardroom: I think all of my colleagues are, weighing when issues like this come before us.

1251
03:15:12.000 --> 03:15:17.689
Boardroom: On the one hand, we hear from constituents who are…

1252
03:15:17.930 --> 03:15:34.130
Boardroom: legitimately concerned with being watched and have fears associated with surveillance, and I can certainly understand those fears on a very personal level. As my family and I fled, a former,

1253
03:15:35.230 --> 03:15:46.099
Boardroom: Country that, at the time, was part of a system that watched its citizens, and there were consequences for any real or perceived deviation from the state.

1254
03:15:46.370 --> 03:15:57.030
Boardroom: Those concerns are real, and they're exactly why any technology we consider must come with strong guardrails, transparency, oversight, and accountability.

1255
03:15:57.440 --> 03:16:03.270
Boardroom: On the other hand, I, continuously hear stories

1256
03:16:03.620 --> 03:16:10.410

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Boardroom: Like the one I have heard from several of my constituents, who…

1257
03:16:10.850 --> 03:16:23.089
Boardroom: unfortunately were attacked and beaten on the street, and without cameras on the houses in their neighborhood, they would not have had any recourse at all.

1258
03:16:23.320 --> 03:16:32.919
Boardroom: Several times now, I've also visited and talked to business owners after their small business have been… businesses have been burglarized.

1259
03:16:32.990 --> 03:16:50.110
Boardroom: I had to do that with 5 businesses in my district after a string of burglaries. I was on the scene, later that day with information about damage mitigation relief, which I'm so glad we

1260
03:16:50.110 --> 03:16:53.330
Boardroom: funded, but, there is…

1261
03:16:53.420 --> 03:17:00.729
Boardroom: You know, even that few hundred bucks is serious money for them and their employees.

1262
03:17:00.870 --> 03:17:08.440
Boardroom: Not to mention the emotional toll that it takes to see your things broken and stolen, and have to invest

1263
03:17:08.810 --> 03:17:16.259
Boardroom: Time and money, your hard-earned time and money, and find the energy to rebuild, sometimes over and over again.

1264
03:17:16.560 --> 03:17:19.640
Boardroom: And many of these owners are immigrants themselves.

1265
03:17:19.850 --> 03:17:23.259
Boardroom: And might not want to testify publicly.

1266
03:17:23.440 --> 03:17:27.250
Boardroom: I also think about our city's, police leadership.

1267

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03:17:27.390 --> 03:17:29.500
Boardroom: We are fortunate to have leaders

1268
03:17:29.640 --> 03:17:40.310
Boardroom: Who understand that public safety and accountability must go hand in hand, and that any use of technology must be accompanied by transparency, oversight, and respect.

1269
03:17:40.410 --> 03:17:42.030
Boardroom: For civil liberties.

1270
03:17:42.950 --> 03:18:01.930
Boardroom: Having worked with the mayor and others of my colleagues on a strong set of guardrails for surveillance technologies, which were approved by the Council in May, I believe the item before us is responsive to, everything that

1271
03:18:01.930 --> 03:18:05.220
Boardroom: At least at the time, we directed staff to look at.

1272
03:18:05.420 --> 03:18:12.339
Boardroom: With that said, a few new questions have come up for me, and I'm working closely with staff to track them down.

1273
03:18:12.590 --> 03:18:20.270
Boardroom: While I won't be able to get those answers tonight, should decide to move forward, that collaboration will continue.

1274
03:18:20.740 --> 03:18:33.099
Boardroom: Whatever the outcome, is tonight, and whatever my vote ends up being, in no way reflects any feelings other than deep appreciation and respect to.

1275
03:18:33.100 --> 03:18:45.580
Boardroom: BPD leadership and staff, I've been nothing but impressed and appreciative of the professionalism, thoroughness, and transparency that RPD is approaching this process with.

1276
03:18:45.790 --> 03:18:49.050
Boardroom: We still have several decision points ahead of us.

1277
03:18:49.400 --> 03:19:02.349

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Boardroom: Before any contract is voted on and implemented, I will continue to do my research. I will continue to listen to District 4 neighbors whom I have the privilege to serve.

1278
03:19:02.500 --> 03:19:10.010
Boardroom: Thank you for keeping me informed, providing me with a multitude of perspectives, and sharing your lived experiences with me.

1279
03:19:11.490 --> 03:19:35.980
Boardroom: Thank you. Thank you, Councilmembers. I already made comments, essentially, at the beginning, but I do want to thank you all so much. I know there was a comment made earlier, but you did a lot of work, and so there were 11 points here from the Public Safety Policy Committee. I think, like, 10 of those were from my comments and questions, so I know, you know, our staff did an analysis and looked through, which is why we asked that follow-up question.

1280
03:19:35.980 --> 03:19:59.659
Boardroom: And then just in the future, we'd love to see more information, like, more clearly about, about that. I think that would be helpful for folks. But I do really appreciate all the work that you did put into this, and your patience in answering my millions and millions of questions. And so, I do want to, move us forward. I think we actually have already someone made the motion, so…

1281
03:19:59.960 --> 03:20:03.210
Boardroom: Did you make it?

1282
03:20:03.390 --> 03:20:10.450
Boardroom: Yeah, of course I thought. That's what I thought. Okay. Alright, so, let's take the roll, please.

1283
03:20:11.610 --> 03:20:27.240
Boardroom: Okay, to approve, to adopt the resolution accepting the surveillance Acquisition report and surveillance use policy for community video Streams and Surveillance Acquisition report and surveillance use policy for investigative software.

1284
03:20:27.340 --> 03:20:31.340
Boardroom: On the motion, Councilmember Kastarwani? Yes. Taplin?

1285
03:20:31.820 --> 03:20:32.600
Terry Taplin: Yes.

1286

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03:20:33.600 --> 03:20:36.039
Boardroom: Borlet is absent. Draga? Pass.

1287
03:20:36.650 --> 03:20:38.160
Boardroom: O'Keefe? Yes.

1288
03:20:38.340 --> 03:20:40.060
Boardroom: Blackaby? Yes.

1289
03:20:40.290 --> 03:20:42.290
Boardroom: Unopara? No.

1290
03:20:43.050 --> 03:20:44.439
Boardroom: Humber? Yes.

1291
03:20:44.890 --> 03:20:46.960
Boardroom: Mayor Ishii? Yes.

1292
03:20:47.180 --> 03:20:50.339
Boardroom: Vice Mayor Treghum? Abstain.

1293
03:20:51.820 --> 03:20:53.520
Boardroom: Motion carries.

1294
03:20:54.690 --> 03:21:01.360
Boardroom: Thank you very much. Okay, so, we… Next…

1295
03:21:03.740 --> 03:21:07.230
Boardroom: Is there any public comment for items not listed on the agenda? Yes.

1296
03:21:11.150 --> 03:21:18.999
Boardroom: So, 4 months ago, Amber Whitson, who I believe most of you are familiar with, was told

1297
03:21:19.150 --> 03:21:42.460
Boardroom: if you find housing, we'll make it happen. And I, I'm sure the person who told her that, the worker had the best of intentions. Amber has been on, homeless, on the streets, living in an RV or otherwise homeless, for 28 years since she was 16 years old. She took this literally. She actually went out

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1298
03:21:42.460 --> 03:22:02.340
Boardroom: and secured housing, has a landlord who wants her, thinking that she would get a subsidy. Both that landlord and her have relentlessly trying to identify something. This landlord wants her, she knows her as a person who has been reliable in seeing that another tenant pays rent.

1299
03:22:02.930 --> 03:22:15.999
Boardroom: she hasn't been able to get anything. And she even went out and had an offer for a job to take on part-time, thinking she was gonna be in an apartment. This is 4 months ago, she's now… Thank you. Thanks, Carol.

1300
03:22:16.340 --> 03:22:21.540
Boardroom: Anyone online for public comment for items not listed on the agenda?

1301
03:22:22.480 --> 03:22:24.070
Boardroom: Two hands raised.

1302
03:22:24.560 --> 03:22:29.060
Boardroom: First item, first caller, phone number ending in 211.

1303
03:22:35.500 --> 03:22:36.460
1510****211: With the top…

1304
03:22:36.730 --> 03:22:45.169
1510****211: With the subject you're talking about, I would like to bring a great memory of our great police chief, Dash Potler. He was a great man. He was a great… one of the best police chiefs in Berkeley.

1305
03:22:45.810 --> 03:22:51.799
1510****211: driven my life, my family life, after we had two… over $2 million investment from our San Francisco store.

1306
03:22:52.250 --> 03:22:55.739
1510****211: The other thing I'd like to say, we really are living in a very dark time.

1307
03:22:56.010 --> 03:22:59.649
1510****211: And, I'd also like everybody, please look online for

1308

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03:23:00.050 --> 03:23:05.270
1510****211: Lawrence Apollo Museum, Lawrence Lab Hollow Museum, about the video

1309
03:23:05.500 --> 03:23:08.020
1510****211: Review. It's about 10 minutes, 3 to…

1310
03:23:08.200 --> 03:23:11.389
1510****211: Mother of Nuclear Physics, Namira Musa.

1311
03:23:11.780 --> 03:23:18.529
1510****211: the Egyptian mother of nuclear physics, and if they did that to her, he also did that to hundreds of nuclear scientists.

1312
03:23:18.850 --> 03:23:32.980
1510****211: And that's why, you see, Lawrence Lab buses only have one person, because they're afraid that they will be assassinated. Have a good night, look forward to better Berkeley, and do give me a call. Please do, and we're definitely moving to a new place very soon.

1313
03:23:33.440 --> 03:23:35.660
1510****211: Help us do that. Have a good night.

1314
03:23:35.660 --> 03:23:38.740
Boardroom: Thank you. Next is JL.

1315
03:23:42.220 --> 03:23:43.639
JL: Right, can you hear me?

1316
03:23:44.300 --> 03:23:45.250
Boardroom: Yes.

1317
03:23:45.550 --> 03:24:03.460
JL: Thank you. I don't know if this was on the agenda, I don't think I saw it, but, I'd read recently that there's, that the city is looking to, increase parking fees or days, and moving, and move to a cashless parking system. I suppose

1318
03:24:03.490 --> 03:24:09.650
JL: increasing the fees and the days, but I vehemently oppose

1319
03:24:10.340 --> 03:24:15.160

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JL: Switching to some kind of cashless system, where you need an app in order to park.

1320
03:24:15.430 --> 03:24:28.569
JL: That's not easy for a lot of people to navigate, and a lot of people may not be able to have that capability, and to take that away from them for the simple act of wanting to park on the street somewhere, I think we should keep the…

1321
03:24:29.010 --> 03:24:38.740
JL: whatever machines are in place that allow people to pay with cash or credit cards, and we should not be moving to a solely app-based payment system. Thank you.

1322
03:24:39.100 --> 03:24:56.330
Boardroom: Just to be clear, we did vote on that, and you can still pay with a credit card. They're also trying to increase the ability to pay with other types of cards in case people can't have bank accounts, so… just to address that. Okay. I know we have another comment from Maria. Maria's soul.

1323
03:24:59.100 --> 03:25:14.370
maria sol: Yes, and thank you again, because, you know, I just adore Berkeley. I moved myself from across the country to come here, because it's such a beacon of light, and love, and equity, and peace, and…

1324
03:25:14.490 --> 03:25:21.840
maria sol: Justice, and equality, and creativity. Minds, brilliance, with hearts.

1325
03:25:22.280 --> 03:25:26.319
maria sol: I just want to start at the basic.

1326
03:25:27.200 --> 03:25:33.570
maria sol: Hope. Which is, if we value ourselves and each other. If we…

1327
03:25:34.610 --> 03:25:38.330
maria sol: participate as a community. We can create

1328
03:25:38.770 --> 03:25:53.089
maria sol: things that prevent harm and create solutions without being dominated, controlled, and buried. Please remember who we are. We can do this. Thank you.

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1329
03:25:55.180 --> 03:25:56.210
Boardroom: Thanks, Maria.

1330
03:25:57.110 --> 03:26:02.159
Boardroom: That's it. Okay, is there a motion to adjourn? Second.

1331
03:26:02.500 --> 03:26:04.290
Boardroom: Can we take the roll on that, please?

1332
03:26:05.430 --> 03:26:09.949
Boardroom: Okay, to adjourn the meeting, Councilmember Kessler-Whine? Yes. Taplin?

1333
03:26:09.950 --> 03:26:10.590
Terry Taplin: Yes.

1334
03:26:10.770 --> 03:26:22.829
Boardroom: Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mayor Ische? Yes. Okay, meeting is adjourned. Meeting adjourned. Thanks, everyone.

1335
03:26:23.900 --> 03:26:25.440
Boardroom: Call me and Father.

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